

## **Department of Regulatory Agencies**

### **Public Utilities Commission**

## **RULES REGULATING RAILROADS, RAIL FIXED GUIDEWAYS, TRANSPORTATION BY RAIL, AND RAIL CROSSINGS**

### **4 CCR 723-7**

*[Editor's Notes follow the text of the rules at the end of this CCR Document.]*

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### **BASIS, PURPOSE, AND STATUTORY AUTHORITY**

The basis for and purpose of these rules is to describe the manner of regulation over railroads, railroad corporations, rail fixed guideways, rail fixed guideway systems, transit agencies, persons holding a certificate of public convenience and necessity to operate by rail, any other person operating by rail, governmental or quasi-governmental entities that own and/or maintain public highways at rail crossings, railroad peace officers, and to Commission proceedings concerning such entities. These rules address a wide variety of subject areas including, but not limited to, applications, petitions, annual reporting, civil penalties, formal and informal complaints, operating authority, transfers of operating authority, mergers, tariffs, crossings and warning devices, cost allocation for grade separations, crossing construction and maintenance, railroad clearances, program standard for rail fixed guideway systems, and employment of railroad peace officers.

The statutory authority for the promulgation of these rules can be found at §§ 40-2-108, 40-2-119, 40-3-101(1), 40-3-102, 40-3-103, 40-3-110, 40-4-101(1), 40-4-101(2), 40-4-106, 40-5-105, 40-6-108(2), 40-6-111(3), 40-9-108(2), 40-18-101, 40-18-102, 40-18-103, 40-18-104, 40-20-302, 40-20-303, 40-20-305, 40-20-310, 40-29-110, and 40-32-108, C.R.S.

### **GENERAL PROVISIONS**

#### **7000. Scope and Applicability.**

- (a) The rules in this Part 7, the "7000" series, apply to railroads, railroad corporations, rail fixed guideways, rail fixed guideway systems, transit agencies, persons holding a certificate of public convenience and necessity to operate by

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rail, any other person operating by rail, governmental or quasi-governmental entities that own and/or maintain public highways and/or public pathways at rail crossings, railroad peace officers, and to all Commission proceedings concerning such entities.

- (b) Except as otherwise required by law, the Commission's jurisdiction over rail fixed guideway systems shall be limited to matters concerning the following rules:
  - (I) 7001 – 7003;
  - (II) 7006 – 7007;
  - (III) 7200 – 7213;
  - (IV) 7301; and
  - (V) 7340 – 7363.
- (c) Specific applicability provisions are found in rules 7100, 7200, 7300, 7320, 7340, and 7400.

**7001. Definitions.**

The following definitions apply throughout this Part 7, except where a specific rule or statute provides otherwise:

- (a) “Alterations” or “changes” or “modifications” at a public crossing include, but are not limited to installing sidewalk panels, installing passive warning devices other than crossbucks and yield signs, installing active warning devices, changing crossing detection circuitry, interconnecting a crossing with a traffic signal or queue cutter signal, and adding or removing additional tracks.
- (b) “Common carrier” is defined by § 40-1-102(3)(a)(II), C.R.S.
- (c) “Imminent safety hazard” means an imminent and unreasonable risk of death or severe personal injury.
- (d) “Rail fixed guideway” means any person possessing rail fixed guideway system facilities by ownership or lease.

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- (e) “Rail fixed guideway system” means “rail fixed guideway system,” as defined by § 40-18-101(3), C.R.S. Rail fixed guideway systems include “street railroads,” “street railways,” and “electric railroads,” as those terms are used in Article 24 of Title 40, C.R.S.
- (f) “Railroad:”
  - (I) “Railroad” means either of the following, as the context may require:
    - (A) facilities, including without limitation: tracks; track roads; bridges used or operated in connection therewith; switches; spurs; and terminal facilities, freight depots, yards, and grounds, including rights-of-way, used or necessary for the transportation of passengers or property; or
    - (B) any person possessing such facilities by ownership or lease.
  - (II) “Railroad” does not include rail fixed guideways or rail fixed guideway systems.
- (g) “Railroad corporation” means five or more persons associating to form a company for the purpose of constructing and operating a railroad, in accordance with the provisions of § 40-20-101, C.R.S.
- (h) “Road authority” means any municipality, county, state agency, federal agency, or other governmental or quasi-governmental entity that owns and/or maintains the public highway at the highway-rail crossing or the public pathway at the pathway crossing.
- (i) “Transit agency” means “transit agency,” as defined by § 40-18-101(6), C.R.S.

**7002. Applications.**

- (a) Commission action shall be sought regarding any of the following matters unless otherwise excepted by these rules through the filing of an appropriate application:
  - (I) for a certificate of public convenience and necessity, as provided in rule 7101;

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- (II) to amend a certificate of public convenience and necessity, or to change, extend, curtail, abandon, or discontinue any service, as provided in rule 7102;
  - (III) for authority to transfer a certificate of public convenience and necessity, to obtain a controlling interest in any utility, to transfer assets or stock, or to merge a utility with another entity, as provided in rule 7103;
  - (IV) for authority to construct, alter, or abolish a utility crossing, or a highway-rail or pathway crossing; or for authority to install or modify crossing warning devices, as provided in rule 7204;
  - (V) for authority to allocate costs for highway-rail grade separations, as provided in rule 7205;
  - (VI) for approval of a transit agency's public transportation agency safety plan, as provided in rule 7345, roadway worker protection manual as provided in rule 7357, or annual report, as provided in rule 7352; or
  - (VII) for any other matter provided by statute or rule but not specifically described in this rule.
- (b) In addition to the requirements of specific rules, all applications shall include, in the following order and specifically identified, the following information, either in the application or in appropriately identified attachments:
- (I) the name and mailing address of the applicant;
  - (II) if the applicant is a corporation or limited liability company; the name of the state in which the applicant is incorporated or organized and the location of its principal office, if any, in Colorado;
  - (III) if the applicant is a partnership; the names, titles and addresses of all general and limited partners;
  - (IV) the name, address, telephone number, and e-mail address of the applicant's representative to whom all inquiries concerning the application may be made;

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- (V) a statement that the applicant agrees to respond to all questions propounded by the Commission or its staff concerning the application;
- (VI) a statement indicating the town or city, and any alternative town or city, where the applicant prefers any hearings to be held;
- (VII) a statement that the applicant understands that, if any portion of the application is found to be false or to contain material misrepresentations, any authorities granted pursuant to the application may be revoked upon Commission decision;
- (VIII) acknowledgment that by signing the application, the applicant understands that:
  - (A) the filing of the application does not by itself constitute approval of the application for the requested action;
  - (B) if the application is granted, the applicant shall not commence the requested action until the applicant complies with applicable Commission rules and any pre-construction conditions established by Commission decision granting the application;
  - (C) if a hearing is held, the applicant must present evidence at the hearing to establish its qualifications to undertake, and its right to undertake, the requested action; and
  - (D) in lieu of the statements contained in subparagraphs (b)(VIII)(A) through (C) of this paragraph, an applicant may include a statement that it has read, and agrees to abide by, the provisions of subparagraphs (b)(VIII)(A) through (C) of this paragraph.
- (IX) An attestation which is made under penalty of perjury; which is signed by an officer, a partner, an owner, an employee of, an agent for, or an attorney for the applicant, as appropriate, who is authorized to act on behalf of the applicant; and which states that the contents of the application are true, accurate, and correct. The application shall contain the title and the complete address of the affiant.

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**7003. Petitions.**

Commission action may be sought regarding any of the following matters through the filing of an appropriate petition:

- (a) for a variance of any rule, as provided in rule 1003; or
- (b) for a declaratory order, as provided in paragraph 1304(i).

**7004. - 7005. [Reserved].****7006. Annual Report.**

- (a) Each railroad, railroad corporation, rail fixed guideway, transit agency and holder of a certificate of public convenience and necessity to operate by rail shall, on or before April 30th of each year, file an annual report for the preceding calendar year. The annual report shall be submitted on forms prescribed by the Commission. The annual report shall be verified and signed by a person authorized to do so. Submission of a federal R-1 form in lieu of the form prescribed by the Commission shall be sufficient as long as a Colorado supplement containing apportioned Colorado information is also filed.
- (b) If the railroad, railroad corporation, rail fixed guideway, transit agency or holder of the certificate of public convenience and necessity publishes an annual report or annual statistical report for the federal government, a federal agency, stockholders, other security holders, or members, or receives an annual report from a certified public accountant, it shall file a copy of such report(s) within 30 days after publication or receipt. It shall also include a Colorado-specific supplement detailing Colorado revenues.
- (c) If the railroad, railroad corporation, rail fixed guideway, transit agency or holder of the certificate of public convenience and necessity is granted an extension of time to file its annual report, it must nevertheless file, on or before April 30th, its total gross operating revenue from intrastate business transacted in Colorado for the preceding calendar year.
- (d) The annual report shall disclose the method of depreciation used.

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**7007. Formal and Informal Complaints.**

Formal and informal complaints may be filed or made pursuant to the Commission's Rules Regulating Practice and Procedure.

**7008. Incorporation by Reference.**

- (a) The Commission incorporates by reference the Sections 1A.13, 4L.03, and 8 of the 2009 Edition of the Manual on Uniform Traffic Control Devices for Streets and Highways and the Colorado Supplement to the Federal Manual on Uniform Traffic Control Devices 2009 (collectively MUTCD) as adopted by the Transportation Commission of Colorado on December 15, 2011 and updated February 26, 2016. No later amendments to or editions of the MUTCD are incorporated into these rules. The Commission also incorporates by reference Chapter 1 (Highway Functions) of the 2011 edition of the American Association of State Highway and Transportation Officials A Policy on Geometric Design of Highways and Streets (AASHTO Green Book). No later amendments to or editions of the AASHTO Green Book are incorporated into these rules. The Commission also incorporates by reference the National Electrical Safety Code, 2012 edition, published by the Institute of Electrical and Electronics Engineers and endorsed by the American National Standards Institute. No later amendments to or editions of the National Electrical Safety Code are incorporated into these rules.
- (b) The Commission incorporates by reference the Colorado Department of Transportation Staff Bridge Design Manual adopted October 1987 with all updates up to and including the effective date of January 6, 2017 published by the Colorado Department of Transportation Staff Bridge Section (CDOT Bridge Design Manual) for purposes of the design of the theoretical structure defined in rule 7201(oo) for grade separation cost allocation only. No later amendments to or editions of the CDOT Bridge Design Manual are incorporated into these rules.
- (c) Any person seeking information regarding how the incorporated material may be obtained or examined may contact the Director or his/her designee, Colorado Public Utilities Commission, 1560 Broadway, Suite 250, Denver, Colorado

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80202. . Incorporated standards shall be available electronically and provided in certified copies, at cost, upon request. Restrictions on the provision of physical copies due to copyright protections may apply. The material incorporated by reference may be examined at any state publications depository library. The standards and regulations are also available from the agency, organization or association originally issuing the code, standard, guideline or rule as follows: US Department of Transportation: [www.mutcd.fhwa.dot.gov](http://www.mutcd.fhwa.dot.gov) and [www.fhwa.dot.gov/design/standards/151112.cfm](http://www.fhwa.dot.gov/design/standards/151112.cfm); and Colorado Department of Transportation: [www.codot.gov/library/bridge/bridge-manuals/lrfd-bridge-design-manual](http://www.codot.gov/library/bridge/bridge-manuals/lrfd-bridge-design-manual).

**CIVIL PENALTIES****7009. Definitions.**

The following definitions apply to rules 7009 through 7011 unless a specific statute or rule provides otherwise. In the event of a conflict between these definitions and a statutory definition, the statutory definition shall apply.

- (a) “Civil penalty” means a monetary penalty imposed by the Commission against a railroad, railroad corporation, rail fixed guideway, owner of the track, or transit agency that is not a political subdivision of the State of Colorado for failure to comply with the Colorado Constitution, a provision of articles 1 to 7 of title 40, C.R.S., or a Commission order or rule,
- (b) “Civil penalty assessment” means the act by the Commission of imposing a civil penalty.
- (c) “Civil penalty assessment notice” means the written document by which the Commission gives initial notice to a railroad, railroad corporation, rail fixed guideway, owner of the track, or transit agency that is not a political subdivision of the State of Colorado of an alleged failure to comply with the Colorado Constitution, a provision of articles 1 to 7 of title 40, C.R.S., or a Commission order or rule and sets forth the proposed civil penalty amount.



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**7010. Civil Penalties.**

- (a) The Commission may impose a civil penalty against a railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track for failure to comply with the Colorado Constitution, a provision of articles 1 to 7 of title 40, C.R.S., a Commission order or rule, except for an order requiring payment of money, as authorized in §§ 40-4-106(1)(b) and 40-7-105, C.R.S. The Commission may impose a civil penalty against a railroad, as defined in § 40-20-302(20), C.R.S., if the railroad or any officer, agent, or employee of the railroad violates § 40-20-303, C.R.S. Before issuing a civil penalty assessment notice, the entity alleged to have failed to comply with the Colorado Constitution, a provision of articles 1 to 7 of title 40, C.R.S., § 40-20-303, C.R.S., or a Commission order or rule, must be provided written notice of the alleged violation(s), and an opportunity to cure the alleged violation(s) within a minimum of 14 calendar days. The Commission, in its discretion, may provide additional time to cure the alleged violation(s).
- (b) Civil penalty assessment notice.
- (I) The Director of the Commission or his or her designee has the authority to issue a civil penalty assessment notice for an alleged failure to comply with or violation(s) of the Colorado Constitution, a provision of articles 1 to 7 of title 40, C.R.S., § 40-20-303, C.R.S., or a Commission order or rule.
- (II) The civil penalty assessment notice must be served in person, by certified mail or by personal service and shall contain:
- (A) the name and address of the entity cited for the violation;
- (B) a citation to the specific constitutional provision, rule, statute or Commission order alleged to have been violated;
- (C) a brief description of each alleged violation, and the date and approximate location (as applicable) of the alleged violation;
- (D) the maximum penalty amount for each alleged violation and the maximum amount of the penalty surcharge imposed pursuant to §

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- 24 34-108(2), C.R.S., if any. The penalty surcharge shall be equal to the percentage set by the Department of Regulatory Agencies on an annual basis;
- (E) a statement allowing for a reduced penalty of 50 percent of the maximum penalty amount and surcharge if paid within ten calendar days of the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track's receipt of the civil penalty assessment notice;
  - (F) a place for the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track to execute a signed acknowledgment of receipt of the civil penalty assessment notice;
  - (G) a place for the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track to execute a signed acknowledgement of liability for the violation;
  - (H) a statement that if the prescribed penalty is not paid within ten calendar days of the railroad, railroad corporation, rail fixed guideway, transit agency or owner of the track's receipt of the civil penalty assessment notice, that the civil penalty assessment notice becomes a notice of complaint to appear before the Commission; and
  - (I) for alleged violations of § 40-20-303, C.R.S., the civil penalty assessment notice shall include a place for the railroad, as defined in § 40-20-302(20), C.R.S., to execute a signed acknowledgement of: (1) receipt of the civil penalty assessment notice, and (2) liability for the violation.
- (III) A civil penalty assessment notice may not be considered defective so as to provide cause for dismissal solely because of a defect in its content. Any defect in the content of a civil penalty assessment notice may be cured by a motion to amend the same filed with the Commission prior to a

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hearing on the merits. No such amendment may be permitted if the substantial rights of the cited entity are prejudiced.

(c) Adjudication.

- (I) The railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track cited with alleged violation(s) or the railroad, as defined in § 40-20-302(20), C.R.S., cited with alleged violation(s) of § 40-20-303, C.R.S. may either admit liability for the violation(s) by executing the acknowledgement of liability and paying the penalty prescribed in the civil penalty assessment notice or contest the alleged violation(s) as set forth below. When the cited entity admits liability, it must pay the civil penalty specified for the violation(s) in person at the Commission's office or by depositing payment postage prepaid in the United States mail within ten days after the citation is issued.
- (II) The railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track cited with alleged violation(s), or the railroad, as defined in § 40-20-302(20), C.R.S., cited with alleged violations of § 40-20-303, C.R.S. may contest the violation(s) identified in the civil penalty assessment notice and request a hearing before the Commission. If the cited entity does not pay the prescribed penalty within ten calendar days after the civil penalty assessment notice is issued, the notice constitutes a complaint to appear before the Commission. The cited entity must contact the Commission on or before the time and date specified in the civil penalty assessment notice to set the complaint for a hearing on the merits. If the cited entity fails to contact the Commission as required, the Commission will set the complaint for a hearing. At the hearing, Commission trial staff shall have the burden of demonstrating the violation(s) by a preponderance of the evidence.

(d) Civil penalty assessment.

- (I) The Commission shall assess a civil penalty only after a railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track, or

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the railroad, as defined in § 40-20-302(20), C.R.S., either admits liability or is adjudicated to have committed the violation.

- (II) In any written decision entered by the Commission assessing a final civil penalty, the Commission may impose a civil penalty of not more than \$2,000.00 for each offense, pursuant to § 40-7-105(1), C.R.S., unless the civil penalty is assessed for a violation of § 40-20-303, C.R.S., in which case the Commission may impose a civil penalty of not less than \$10,000.00 but not more than \$25,000.00 on the railroad for each offense, pursuant to § 40-20-308(1), C.R.S., or not more than \$100,000.00 for each offense where authorized by § 40-20-308(2)(a) or (b), C.R.S. In determining the civil penalty amount, the Commission shall consider the factors set forth in paragraph 1302(b) of the Commission's Rules of Practice and Procedure, 4 Code of Colorado Regulations 723-1.
- (III) In accordance with § 40-7-105(2), C.R.S. and § 40-20-308(1), C.R.S., every violation is considered a separate and distinct offense, and, in the case of a continuing violation, each day's continuance thereof shall be deemed a separate and distinct offense.
- (e) Nothing in these rules shall affect the Commission's ability to pursue other remedies in lieu of imposing a civil penalty.

**7011. Regulated Railroad, Railroad Corporation, Rail Fixed Guideway, or Transit Agency Rule Violations, Civil Enforcement, and Civil Penalties.**

- (a) Violation of the Colorado Constitution, a provision of articles 1 to 7 of title 40, C.R.S., a Commission order, and the following rules may result in the assessment of a civil penalty of up to \$2,000.00 per offense. The total amount of civil penalties assessed against any one railroad, railroad corporation, rail fixed guideway, transit agency, and owner of track may not exceed \$150,000.00 in any consecutive 12-month period.

| Citation           | Description       |
|--------------------|-------------------|
| Rule 7204(a)(X)(D) | Schematic Diagram |

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| <b>Citation</b> | <b>Description</b>                                                                       |
|-----------------|------------------------------------------------------------------------------------------|
| Rule 7211(b)    | Track Construction or Removal                                                            |
| Rule 7211(c)    | Railroad Projects Involving Crossings                                                    |
| Rule 7211(h)    | Crossing Surface Maintenance                                                             |
| Rule 7211(k)    | Crossing Obstructions                                                                    |
| Rule 7211(l)    | Project Coordination, Public Notice and Detours                                          |
| Rule 7211(m)    | Project Management and Support                                                           |
| Rule 7211(n)    | Crossing Surface Replacement                                                             |
| Rule 7212(c)    | Warning Device Selection, Preemption Timing Selection, and Exit Gate Operation Selection |
| Rule 7212(d)    | Report Preparation and Payment Prohibition                                               |
| Rule 7212(e)    | Schematic Diagram Provision Requirements and Cost Estimate Provision Timeline            |
| Rule 7212(f)    | Construction and Maintenance Agreement Timeline                                          |
| Rule 7212(g)    | Railroad Consultant Review Time Limitation                                               |
| Rule 7212(h)    | Existing Crossing Easement Payment Prohibition                                           |
| Rule 7212(i)    | Formal Complaint for Delay and/or Untimeliness                                           |
| Rule 7213(a)    | Minimum Crossing Safety Requirements                                                     |
| Rule 7301(a)    | Crossing Warning Device Installation and Maintenance                                     |
| Rule 7301(d)    | Crossing Obstructions                                                                    |
| Rule 7302       | Accident Notification                                                                    |
| Rule 7324(a-f)  | Overhead Clearances                                                                      |

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| Citation       | Description                                          |
|----------------|------------------------------------------------------|
| Rule 7325(a-j) | Side Clearances                                      |
| Rule 7326(a-d) | Track Clearances                                     |
| Rule 7402(a-c) | Class I Railroad Peace Officers Minimum Requirements |

- (b) A violation of § 40-20-303, C.R.S. may result in the assessment of a civil penalty of not less than \$10,000.00 but not more than \$25,000.00 per offense, unless the Commission determines that either: (1) the railroad intentionally or knowingly violated § 40-20-303, C.R.S., or (2) the violation was part of a pattern and practice of repeated violations of § 40-20-303, C.R.S., in which case the Commission may impose a fine of up to \$100,000.00 per violation. Each day of a continuing violation of § 40-20-303, C.R.S., constitutes a separate violation.

**7012. – 7099. [Reserved].**

**OPERATING AUTHORITY****7100. Applicability.**

Rules 7101 through 7104 apply to all common carriers that:

- (a) operate on intrastate lines that are not connected to the interstate system of lines;
- (b) are not railroad corporations; and
- (c) do not operate under authority from the United States Surface Transportation Board.

**7101. Certificate Applications.**

An application for the issuance of a certificate of public convenience and necessity, including authority for approval of the exercise of franchise rights, must include all of the following information, as applicable:

- (a) the trade name under which the applicant's operations are being or will be conducted;

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- (b) if the applicant is a corporation: the names of its directors and officers; the name and address of its Commission designated agent for service of process; and a certified copy of its certificate of good standing authorizing it to do business in Colorado, certified within 14 days prior to the filing of the application. If the applicant does not possess authority qualifying it to do business in Colorado, the applicant shall:
  - (I) acknowledge that the Commission will not grant the application without such authority; and
  - (II) file such authority as soon as possible.
- (c) If the applicant is a limited liability company: a statement of that fact; the name of its managers; and a certified copy of its certificate of good standing authorizing it to do business in Colorado, certified within 14 days prior to the filing of the application. If the applicant does not possess authority qualifying it to do business in Colorado, the applicant shall:
  - (I) acknowledge that the Commission will not grant the application without such authority; and
  - (II) file such authority as soon as possible.
- (d) If the applicant is a partnership: a copy of the partnership agreement establishing the partnership and all subsequent amendments;
- (e) a statement describing the authority sought, or franchise rights proposed to be exercised. The statement shall include a description of the type of utility service to be rendered and a description of the area sought to be served. The statement also shall include a description of applicant's existing operations and general service area;
- (f) a statement describing in detail the extent to which the applicant is affiliated with any other company and the extent to which the applicant, or any person affiliated with applicant, holds authority duplicating in any respect the authority sought;
- (g) the applicant's most recent balance sheet, covering a period ending not earlier than six months before the date of the filing of the application;

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- (h) statements of income and retained earnings, if available, for the same time period as the balance sheet referred to in paragraph (g);
- (i) a statement disclosing whether the applicant or any affiliate of the applicant is currently in violation of any provision of Title 40, C.R.S., or any Commission rule or order. The disclosure, if applicable, shall include a description of the violations;
- (j) a statement of the facts (not conclusory statements) relied upon by the applicant to show that the public safety, convenience and necessity require the granting of the application; and
- (k) where the application is to exercise franchise rights: a certified copy of the franchise ordinance; and proof of publication, adoption, and acceptance by the applicant.

**7102. Revocation or Amendment of Certificate; Changing, Extending, Curtailing, Abandoning, or Discontinuing Service.**

- (a) The Commission may, after at least ten days' notice to the common carrier, hold a hearing to revoke, alter, or amend said common carrier's certificate of public convenience and necessity for any of the following reasons:
  - (I) failure to comply with any statutory requirement;
  - (II) failure to comply with the terms and conditions of, or exceeding the authority granted in, the certificate of public convenience and necessity; or
  - (III) failure to comply with any lawful order, rule, or regulation of the Commission.
- (b) Except as provided in paragraph (c) of this rule, an application to amend a certificate of public convenience and necessity, or to change, extend, curtail, abandon, or discontinue any service, must contain all of the information required by paragraph 7002(b) and rule 7101.
- (c) Applications to curtail or abandon any service and applications to in any manner restrict a certificate of public convenience and necessity must include all of the information in paragraph 7002(b) and the following information:



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- (I) the requested effective date for the curtailment, abandonment, or restriction;
- (II) a statement describing the curtailment, abandonment, or restriction sought. The statement shall include maps, as applicable. The statement shall also include a description of the applicant's existing operations and general service area; and
- (III) in addition to the notice requirements of the Rules Regulating Practice and Procedure, the applicant shall prepare a written notice as provided in subparagraph (IV) of this paragraph and shall mail or deliver the notice at least 30 days before the application's requested effective date to the Board of County Commissioners of each affected county, and to the mayor of each affected city, town, or municipality.
- (IV) The notice of subparagraph (III) of this paragraph shall contain all of the following:
  - (A) the name of the applicant;
  - (B) a statement detailing the requested curtailment, abandonment, or restriction, and its requested effective date;
  - (C) a statement indicating that any person may file a written objection with the Commission no later than ten days prior to the requested effective date; but that a written objection alone will not preserve any right to participate as a party in any Commission proceeding on the matter;
  - (D) a statement indicating that in order for any person to participate as a party, such person must file an appropriate and timely intervention according to the Commission's Rules Regulating Practice and Procedure; and
  - (E) the Commission's full mailing address.
- (V) Prior to 15 days before the requested effective date, the applicant shall file with the Commission a written affidavit stating its compliance with the

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notice requirements of subparagraphs (III) and (IV) of this paragraph. The affidavit shall state the date the notice was completed and the method used to give notice. The applicant shall attach a copy of the notice to the affidavit.

- (d) No proposed amendment, change, extension, curtailment, or abandonment shall be effective unless and until the Commission has entered an order approving it.

**7103. Transfers, Mergers, and Encumbrances.**

- (a) For purposes of this rule, “transferee” means any entity newly acquiring control of operations under a certificate of public convenience and necessity.
- (b) An application to transfer or encumber a certificate of public convenience and necessity, to obtain a controlling interest in any utility, to transfer assets or stock, or to merge a utility with another entity, shall take the form of a joint application if possible, and must include all of the information in paragraph 7002(b) and the following:
- (I) each applicant's name, trade name if applicable, physical address, and mailing address;
  - (II) a statement detailing the purpose of the application; and
  - (III) in the case of an application to transfer a certificate of public convenience and necessity, to obtain a controlling interest in any utility, or to merge a utility with another entity:
    - (A) the transferee's most recent balance sheet, covering a period ending not earlier than six months before the date of the filing of the application;
    - (B) the transferee's statements of income and retained earnings, if available, for the same time period as provided by subparagraph (III)(A); and

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- (C) the transferee's statement that it understands it must present evidence at the hearing to show its qualifications to operate under the certificate of public convenience and necessity.
  - (IV) A statement disclosing whether any applicant or any affiliate of an applicant is currently in violation of any provision of Title 40, C.R.S., or any Commission rule or order. The disclosure, if applicable, shall include a description of the violations;
  - (V) any agreement or contract and all documents pertaining to the transfer, encumbrance, or merger;
  - (VI) facts showing that the transfer, encumbrance, or merger is in the public interest, and an evaluation of the benefits and detriments, if any, to the customers of each party and to all other persons who will be affected by the transaction; and
  - (VII) a comparison of the kinds and costs of service rendered before and after the proposed transaction.
- (c) When control of a utility is transferred to another utility, or the name is changed, the utility that will afterwards operate under the certificate shall file an adoption notice with the Commission and have the adoption notice available for public inspection at each local office. Adoption notice forms are available from the Commission. The adoption notice shall contain all of the following information:
- (I) the name, phone number, and complete address of the adopting utility;
  - (II) the name of the previous utility;
  - (III) the number of the tariff adopted, and the description or title of the tariff adopted; and
  - (IV) a statement that the adopting utility is making its own all rates, rules, terms, conditions, agreements, concurrences, instruments, and all other provisions that have been filed or adopted by the previous utility.

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- (d) Upon approval of a transfer application, the transferor and transferee shall file an acceptance of transfer form, which form shall be provided by the Commission. The form shall be signed by both parties, indicating acceptance of the terms and conditions of the Order authorizing the transfer. The acceptance of transfer shall contain a statement indicating that the transferee has complied with all provisions of the agreement of sale, lease, or other transfer.
- (e) A transferee shall not begin operations until after the Commission has advised the transferee that it is in compliance with all requirements and is authorized to begin operations.
- (f) A transferor shall not cancel its tariffs until the Commission has approved the transfer, the transferee has filed all required documents in the transferee's own name, and the Commission has advised the transferee that it is authorized to begin operations.

**7104. – 7199. [Reserved].**

**CROSSINGS AND WARNING DEVICES****7200. Applicability.**

- (a) Rules 7201 through 7214 apply to railroads, railroad corporations, rail fixed guideways, rail fixed guideway systems and transit agencies.
- (b) Rules 7201 through 7214 apply to all road authorities that own and/or maintain public highways at highway-rail crossings or public pathways at pathway crossings.

**7201. Definitions.**

The following definitions apply only in the context of rules 7200 through 7214, 7301, and 7327.

- (a) "Accident report" means the U.S. Department of Transportation Highway-Rail Grade Crossing Accident/Incident Report containing information about accidents/incidents that have occurred at a highway-rail or pathway grade crossing available from the Federal Railroad Administration Office of Safety Analysis.

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- (b) “Active warning” means traffic control devices and equipment that are activated upon the detected presence of a train including but not limited to, flashing light signals, with or without warning gates, traffic signals, queue cutter signals, wayside horns, and/or blank-out signals that are used to regulate, warn and inform highway or pathway users of the approach or presence of rail traffic at grade crossings.
- (c) “Advance preemption” means “advance preemption” as that term is defined in Section 1A.13 of the MUTCD.
- (d) “Advance preemption time” means the period of time that is the difference between the required maximum highway traffic signal preemption time and the activation of the railroad or rail fixed guideway system active warning devices.
- (e) “Advance warning sign” means a MUTCD W10-1, W10-2, W10-3, and/or W10-4 sign that gives notice to highway and/or pathway users of the presence of an upcoming crossing.
- (f) “ADT” means average daily traffic.
- (g) “Arterial” means “arterial,” as that term is used in Chapter 1 (Highway Functions) of the AASHTO Green Book.
- (h) “Buffer time” means a discretionary time that may be provided in the total warning time to accommodate for minor variations in train handling, track circuit variability and allowable tolerance within locomotive speed measurement apparatus.
- (i) “Clear storage distance” means “clear storage distance” as that term is defined in Section 1A.13 of the MUTCD.
- (j) “Clearance time” means additional time included in the total warning time to account for crossing site specific needs including, but not limited to, widths at multiple track crossings, additional gate delay time, and additional time for simultaneous preemption.
- (k) “Collector” means “collector,” as that term is used in Chapter 1 (Highway Functions) of the AASHTO Green Book.

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- (l) “Crossing” means either a highway-rail crossing or a pathway crossing.
- (m) “Crossing safety diagnostic” means a gathering of safety and traffic professionals at an existing or proposed highway-rail or pathway crossing including Commission staff and representatives from the road authority and railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track to evaluate the highway-rail crossing or pathway crossing conditions or proposed conditions and determine the appropriate safety mitigation measures for the existing or proposed highway-rail or pathway crossing.
- (n) “Cycle length” means “cycle length” as that term is defined in Section 1A.13 of the MUTCD.
- (o) “Dynamic envelope” means “dynamic envelope” as that term is defined in Section 1A.13 of the MUTCD.
- (p) “Dynamic exit gate operating mode” means “dynamic exit gate operating mode” as that term is defined in Section 1A.13 of the MUTCD.
- (q) “Equipment response time” means the time necessary for the active warning equipment to respond to detection of a train.
- (r) “Exit gate clearance time” means “exit gate clearance time” as that term is defined in Section 1A.13 of the MUTCD.
- (s) “Exposure factor” means the ADT multiplied by the average daily number of train movements.
- (t) “Freeway” means “interstate highway,” “other freeway,” and “expressway” as those terms are used in Chapter 1 (Highway Functions) of the AASHTO Green Book.
- (u) “Highway” means any roadway classified as an arterial, collector, freeway or local road.
- (v) “Highway-rail crossing means:
  - (l) the point at which any public highway may be constructed across the tracks or other facilities of any railroad, railroad corporation, rail fixed

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- guideway, rail fixed guideway system, or transit agency at, above, or below grade; or
- (II) the point at which the tracks or other facilities of any railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency may be constructed across any public highway at, above, or below grade; or
- (III) the point at which any public highway may be constructed across private tracks, over which any railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency may operate, at, above, or below grade; or
- (IV) the point at which private tracks, over which any railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency may operate, may be constructed across any public highway at, above, or below grade.
- (w) “Local road” means “local road” as that term is used in Chapter 1 (Highway Functions) of the 2011 edition of the AASHTO Green Book.
- (x) “Maintain” means actions necessary to preserve an existing crossing and to keep the crossing from a state of decline or disrepair. Maintain does not include the installation, reconstruction, or improvement and operation of an automatic or other safety appliance signal or device, as described in § 40-4-106(2)(b), C.R.S.
- (y) “Maximum highway traffic signal preemption time” means “maximum highway traffic signal preemption time” as that term is defined in Section 1A.13 of the MUTCD.
- (z) “Minimum track clearance distance” means “minimum track clearance distance” as that term is defined in Section 1A.13 of the MUTCD.
- (aa) “Minimum warning time” means the least amount of time active warning devices shall operate prior to the arrival of rail traffic at a crossing, which shall be a minimum of 20 seconds.

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- (bb) “National Inventory Form” means the U.S. Department of Transportation Crossing Inventory Information form containing specific crossing information available from the Federal Railroad Administration Office of Safety Analysis.
- (cc) “National Inventory Number” means the U.S. Department of Transportation six digit and one letter crossing identification number assigned to a highway-rail or pathway crossing.
- (dd) “Passive warning” means traffic control devices including signs and/or markings that are used to inform, regulate and warn highway or pathway users of the presence of a highway-rail or pathway crossing and the requirement to take appropriate action at the crossing.
- (ee) “Pathway” means a general term denoting a public way for purposes of travel by authorized users outside the traveled way and physically separated from a highway by an open space or barrier, either within the highway right-of-way or within an independent alignment. Pathways are intended for use by non-vehicular traffic including pedestrians, bicyclists, and others and use can be shared by more than one type of authorized user. Pathways include shared-use paths, but do not include sidewalks contiguous with, or separated but adjacent to and within 25 feet of highway-rail crossings.
- (ff) “Pathway crossing” means:
  - (I) the point as which any public pathway may be constructed across the tracks or other facilities of any railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency at, above, or below grade; or
  - (II) the point at which the tracks or other facilities of any railroad, railroad corporation, railroad, rail fixed guideway, rail fixed guideway system, or transit agency may be constructed across any public pathway at, above, or below grade; or
  - (III) the point at which any public pathway may be constructed across private tracks, over which any railroad, railroad corporation, rail fixed guideway,



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- rail fixed guideway system, or transit agency may operate, at, above, or below grade; or
- (IV) the point at which private tracks, over which any railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency may operate, may be constructed across any public pathway at, above, or below grade.
- (gg) “Pavement marking” means a retroreflectorized white marking in advance of an at-grade crossing that consists of an X, the letters RR as shown in Figure 8B-7 of the MUTCD.
- (hh) “Private crossing” means a highway-rail or pathway crossing where the highway or pathway on either side or both sides of the crossing is privately owned, and/or maintained, is intended for use by the owner or by the owner’s licenses and invitees, and is not permitted to be used by the public.
- (ii) “Public crossing” means a highway-rail or pathway crossing where the highway or pathway on both sides of the crossing is under the jurisdiction of and/or maintained by a road authority and open to public travel.
- (jj) “Reasonably adequate facility,” except as may be otherwise demonstrated, means the bridge structure designed for purposes of grade separation cost allocation that is designed to include:
- (I) for the highway facility:
- (A) a rural collector roadway that allows for two 12-foot travel lanes with two 5-foot shoulders; or
- (B) a rural arterial roadway that allows for two 12-foot travel lanes with two 8-foot shoulders and an 8-foot pedestrian-bikeway; or
- (C) an urban collector roadway that allows for two 12-foot travel lanes with two 10-foot parking lanes and an 8-foot pedestrian-bikeway; or

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- (D) an urban arterial roadway that allows for four 12-foot travel lanes with an 11-foot median and an 8-foot pedestrian-bikeway on one side; and
  - (E) collector roadways shall be designed for a 35 mile per hour design speed and arterial roadways shall be designed for a 45 mile per hour design speed;
- (II) for the railroad facility:
  - (A) a single main line track that allows for one mainline track, one passing track on 15-foot centers and a 12-foot maintenance road under bridge structures on one side, or a 4-foot walkway on bridge structures on one side; or
  - (B) a double mainline track that allows for two mainline tracks and one passing track on 15-foot centers and a 12-foot maintenance road under bridge structures on one side, or a 4-foot walkway on bridge structures on one side; or
  - (C) railroad yards or terminals that allow for currently existing tracks and service facilities.
- (kk) “Right-of-way transfer time” means “right-of-way transfer time” as that term is defined in Section 1A.13 of the MUTCD.
- (ll) “Rural” means “rural” as that term is used in Chapter 1 (Highway Functions) of the AASHTO Green Book.
- (mm) “Separation time” means “separation time” as that term is defined in Section 1A.13 of the MUTCD.
- (nn) “Sidewalk” means “sidewalk” as that term is defined in §42-1-102(90), C.R.S.
- (oo) “Simultaneous preemption” means “simultaneous preemption” as that term is defined in Section 1A.13 of the MUTCD.
- (pp) “Theoretical structure” means the structure and approaches required to transition to the reasonably adequate facility in accordance with the design standards

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outlined in the CDOT Bridge Design Manual and shall be designed to include the following requirements:

- (I) without consideration to the presence of other adjacent highway or waterway facilities located within the limits of the grade separation project that would also require a bridge structure;
  - (II) using the same selected structure and abutment type as the actual proposed bridge structure;
  - (III) along the same alignment as the actual proposed bridge structure;
  - (IV) to the same minimum horizontal and vertical clearances as the actual proposed bridge structure; and
  - (V) to the CDOT Bridge Design Manual preliminary plan stage (30 percent design stage including construction design and phasing costs).
- (qq) “Timed exit gate operating mode” means “timed exit gate operating mode” as that term is defined in Section 1A.13 of the MUTCD.
- (rr) “Total warning time” means the sum of the minimum time, clearance time, and buffer time.
- (ss) “Urban” means “urban” as that term is used in Chapter 1 (Highway Functions) of the AASHTO Green Book.
- (tt) “Utility crossing” means the point at which the tracks or facilities of any public utility may be constructed across the facilities of any other public utility at, above, or below grade, or at the same or different levels.

**7202. [Reserved].****7203. Who May Apply.**

- (a) An application for authority to construct a crossing where the highway or pathway currently exists may be made by the railroad, railroad corporation, rail fixed guideway, transit agency, or other person, firm, or corporation that will own the tracks proposed to be constructed.

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- (b) An application for authority to construct a crossing where the tracks or other facilities currently exist may be made by the appropriate road authority that will own the highway or pathway.
- (c) An application for authority to alter or abolish a crossing may be made by the appropriate railroad, railroad corporation, rail fixed guideway, or transit agency that owns the tracks at the crossing, or road authority that owns the highway or pathway at the crossing.
- (d) An application for authority to install or modify active warning or passive warning devices may be made by a railroad, railroad corporation, rail fixed guideway, or transit agency that owns the tracks at the crossing, or road authority that owns the highway or pathway. The Colorado Department of Transportation may make application for Federal Section 130 crossing projects in conjunction with, or on behalf of the road authority.
- (e) An application for authority to construct, alter or abolish a utility crossing may be made by the appropriate public utility, railroad, railroad corporation, rail fixed guideway, transit agency or other person, firm, or corporation that will own or owns the tracks or other facilities proposed to be constructed. Applications for utility crossings can be made if the public utility and railroad, railroad corporation, rail fixed guideway, transit agency or other person, firm or corporation that will own or owns the tracks or other facilities proposed to be constructed are unable to reach agreement on the terms and conditions of a negotiated agreement.
- (f) An application that includes a request for authority to install temporary safety measures as part of an application to install or modify active warning or passive warning devices may be made by a railroad, railroad corporation, rail fixed guideway, transit agency, or road authority. The Colorado Department of Transportation may make application that includes a request for temporary safety measures for Federal Section 130 crossing projects in conjunction with, or on behalf of the road authority.

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**7204. Application Contents.**

- (a) An application may be filed for final approval of plans/drawings or for preliminary approval of conceptual level design plans/drawings (plans at any level other than final design). If a request for preliminary approval is included, an additional filing of final plans and estimates for final Commission approval will be required in the same proceeding. In the case of an application (other than to modify or replace the existing crossing surface without changing the width or configuration of a crossing) to construct, alter, or abolish a crossing, a utility crossing, or to install or modify active or passive crossing warning devices, the application shall include, in the following order and specifically identified, the information, as applicable to the specific type of application, in the application or in appropriately identified attachments.
- (l) All crossing applications shall contain the following information:
- (A) the contact person name, mailing address and e-mail address to whom the Commission notice is to be sent:
    - (i) for each railroad, railroad corporation, rail fixed guideway, or transit agency that owns the tracks affected by an application filed by a road authority;
    - (ii) for each road authority that owns the roadway affected by the application filed by a railroad, railroad corporation, rail fixed guideway, transit agency, or other person, firm, or corporation that will own the tracks affected by the application;
  - (B) the railroad and/or rail fixed guideway line name and milepost number where the crossing that is subject of the application is located;
  - (C) the National Inventory Number and the National Inventory Form for an existing crossing, or a statement that no National Inventory Number and/or National Inventory Form exists for a new crossing;

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- (D) all accident reports for the crossing and/or a listing of all accidents for any rail fixed guideway tracks through the crossing, or a statement that no accident reports and/or listing of rail fixed guideway accidents exist for the crossing;
- (E) a statement of the date that the required crossing safety diagnostic occurred, or a copy of written correspondence from Commission staff that a crossing safety diagnostic was not required;
- (F) a statement of:
  - (i) the existing number and character of trains (e.g., through movements, switching movements) passing through the crossing each day if the National Inventory Form has not been updated within three years from the date of the filing of the application, or the existing number, character, and timetable speed of trains as shown on the National Inventory Form if the form has been updated within three years from the date of the filing of the application;
  - (ii) the five-year projection of increases or decreases of the number and character of trains using the crossing; and
  - (iii) the maximum timetable speed of trains using the crossing.
- (G) A detailed statement as to the nature of and need for the construction, alteration, abolition, installation, or modification for which approval is sought;
- (H) a statement of the scope of the project, including without limitation:
  - (i) the highway design, pathway design, crossing warning devices, and necessary traffic signal interconnection and preemption;
  - (ii) the detailed itemized estimated cost of the proposed construction, alteration, abolition, or highway-rail or pathway crossing warning device installation or modification;

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- (iii) how applicant proposes to provide for the cost, explaining the proposed apportionment between or among the parties in interest if applicable; and
    - (iv) if the funds necessary for the project are currently available and encumbered.
  - (I) A statement of the estimated month and year for:
    - (i) the start date for the construction, alteration, abolition, or crossing warning device installation or modification;
    - (ii) the completion date for the construction, alteration, abolition, or crossing warning device installation or modification; and
    - (iii) the date for commencement of operations through the crossing for new crossings.
  - (J) A vicinity map that includes the proposed project limits (i.e., a map that includes the general area circumscribing the project);
  - (K) the names and mailing addresses of all persons, including adjacent property owners, public utilities, and local government agencies that may be interested in or affected by the application;
  - (L) if the crossing is at-grade: a statement fully justifying why a separation of grades is not practicable under the circumstances.
  - (M) a statement if the application is seeking preliminary approval of conceptual level design plans, or if the application is seeking final approval of final design plans; and
  - (N) a statement if the application includes a request to install a temporary safety measure.
- (II) Applications for all highway-rail crossings shall include:
- (A) the existing ADT volume and character of vehicles (including, but not limited to estimated percentage of heavy vehicles and a statement about whether school buses use the crossing) passing

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- through the highway-rail crossing each day if the traffic volume on the National Inventory Form has not been updated within three years from the date of the filing of the application, or the existing ADT volume and character of vehicles passing through the highway-rail crossing each day as shown on the National Inventory Form if the traffic volume on the form has been updated within three years from the date of the filing of the application. If the ADT volume has not been updated within three years from the date of the filing of the application, the road authority will be responsible for paying for the cost of the updated ADT count;
- (B) the five-year and twenty-year ADT volume projections of vehicles using the highway-rail crossing; and
  - (C) the posted or unposted speed limit for the vehicles traveling through the highway-rail crossing.
- (III) Applications for all pathway crossings shall include:
- (A) the existing or estimated number of pedestrians and bicycles passing through the pathway crossing each day and a statement if the number is based on an actual count or an estimate; and
  - (B) the five-year and twenty-year projections of the number of pedestrians and bicycles using the pathway crossing.
- (IV) Applications that include a request for temporary safety measures filed pursuant to paragraph 7203(f) shall include:
- (A) a statement of the temporary safety measure being sought;
  - (B) schematic plans of the temporary measure to be implemented;
  - (C) the diagnostic notes including a list of all in attendance; and
  - (D) a statement that the diagnostic team is in consensus with the temporary safety measure being sought.



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- (V) Applications for preliminary or final approval of new at-grade crossing shall include:
  - (A) detailed plans/drawings of a suitable scale, showing the at-grade crossing, including signing and striping, tracks, buildings, structures, property lines, and public highways within the right-of-way limits of the railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency;
  - (B) a profile drawing showing grade lines and proposed grade lines of approaches on the public highway or pathway, and the tracks being crossed that may be affected by the proposed or existing crossing;
  - (C) proposed roadway classification (e.g., local road, collector, arterial, freeway) and a cross-section drawing of the road authority's standards for that roadway classification or cross-section drawing of the pathway; and
  - (D) the following documentation for all existing crossings within one-mile of the proposed location of the new crossing in urban locations or within towns, or the two crossings nearest the proposed crossing in rural locations:
    - (i) the National Inventory Number and National Inventory Form;
    - (ii) all accident reports or a statement that no accident reports are available; and
    - (iii) the existing ADT volume and character of vehicles (including, but not limited to, estimated percentage of heavy vehicles and a statement about whether school buses use the crossing) passing through the highway-rail crossing each day if the traffic volume on the National Inventory Form has not been updated within three years from the date of the filing of the application, or the existing ADT volume and

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character of vehicles passing through the highway-rail crossing each day as shown on the National Inventory Form if the traffic volume on the form has been updated within three years from the date of the filing of the application. If the ADT volume has not been updated within three years from the date of the filing of the application, the road authority will be responsible for paying for the cost of the updated ADT count.

- (VI) Applications for preliminary or final approval to widen, narrow, or relocate an existing crossing shall include:
  - (A) detailed plans/drawings of a suitable scale, showing the grade crossing, including signing and striping, tracks, buildings, structures, property lines, and public highways within the right-of-way limits of the railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency;
  - (B) a profile drawing showing grade lines and proposed grade lines of approaches on the public highway or pathway and the tracks being crossed that may be affected by the proposed or existing crossing;
  - (C) existing roadway classification (e.g., local, collector, arterial, freeway) and a cross-section drawing of the roadway authority's standards for that roadway classification or cross-section drawing of the pathway; and
  - (D) proposed roadway classification (e.g., local road, collector, arterial, freeway) and a cross-section drawing of the roadway authority's standards for that roadway classification or cross-section drawing of the pathway;
- (VII) Applications for preliminary or final approval to close a crossing by removal of the tracks shall include:

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- (A) detailed plans/drawings of a suitable scale showing the details of the crossing closure plan;
  - (B) a copy of the notice of proposed closure of the crossing as required under paragraph 7208(c); and
  - (C) traffic volumes required under (II) are not required.
- (VIII) Applications to close a crossing by removal of the roadway or pathway shall include:
- (A) the following documentation for all existing crossings within one-mile of the proposed location of the crossing to be closed in urban locations or within towns, or the two crossings nearest the proposed crossing to be closed in rural locations:
    - (i) the National Inventory Number and National Inventory Form;
    - (ii) all accident reports or a statement that no accident reports are available;
    - (iii) the existing ADT volume and character of vehicles (including, but not limited to, estimated percentage of heavy vehicles and a statement about whether school buses using the crossing) passing through the highway-rail crossing each day if the traffic volume on the National Inventory Form has not been updated within three years from the date of the filing of the application, or the existing ADT volume and character of vehicles passing through the highway-rail crossing each day as shown on the National Inventory Form if the traffic volume on the form has been updated within three years from the date of the filing of the application. If the ADT volume has not been updated within three years from the date of the filing for the application, the road authority will be responsible for paying for the cost of the updated ADT count;

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- (B) detailed plans/drawings of a suitable scale showing the details of the crossing closure plan; and
  - (C) the notice of proposed closure of the crossing as required under paragraph 7208(c).
- (IX) Applications for preliminary or final approval to install or change passive warning devices at crossings shall include:
  - (A) a description of the type of warning device the applicant proposes to install; and
  - (B) the detailed railroad cost estimate of the crossing warning devices;
- (X) Applications for preliminary or final approval for installation of new active warning devices, replacement of existing active warning devices, or replacement of existing train detection circuitry at crossings shall include:
  - (A) detailed plans/drawings of a suitable scale, showing the crossing, including signing and striping, tracks, buildings, structures, property lines, and public highways within the right-of-way limits of the railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency;
  - (B) a description of the type of warning devices the applicant proposes to install (reference may be made to recommended standards on highway-rail grade crossing warning devices as published in current editions of the MUTCD and/or the American Railway Engineering and Maintenance-of-Way Association's Signal Manual of Recommended Practice);
  - (C) the initial written railroad, railroad corporation, rail fixed guideway, transit agency or owner of the track cost estimate, which, as applicable, must include, at a minimum, specific lines for labor, materials, and circuitry costs of the crossing warning devices and must be provided by such entity to the road authority within the timeframe outlined in paragraph 7212(e); and

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- (D) the schematic diagram of the crossing warning devices (commonly referred to as the “front sheet” or the “state sketch”) and shall specifically identify the equipment response time, advanced preemption time, minimum warning time, clearance time, buffer time, and total warning time, and must be provided within the timeframe outlined in paragraph 7212(e).
- (XI) Applications for preliminary or final approval involving installation of four quadrant gate active warning devices shall include:
  - (A) a description of the type of four quadrant exit gate operating mode proposed (e.g., timed, dynamic exit gate vehicle detection, or timed/dynamic combination);
  - (B) for timed exit gate operating mode, the proposed exit gate clearance time, a description of the methodology used to determine the exit gate clearance time and the calculations performed to determine the exit gate clearance time;
  - (C) for dynamic exit gate operating mode, a description of the type of vehicle detection proposed, a plan drawing showing the proposed vehicle detector placement(s) and description and timings of how the vehicle detection will operate; and
  - (D) a letter of concurrence from Commission staff regarding the proposed four-quadrant operations and timings, or a statement that Commission staff does not concur with the proposed four-quadrant operations and timings.
- (XII) Applications for preliminary or final approval involving interconnection to traffic signals or queue cutter signals and preemption by active warning signals shall include:
  - (A) a statement of the proposed preemption operations (e.g., simultaneous, advanced);
  - (B) the traffic signal timings, including:

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- (i) the traffic signal cycle length;
  - (ii) minimum green time for each signal phase and pedestrian phase;
  - (iii) green times for each signal phase;
  - (iv) yellow change times for each signal phase;
  - (v) red clearance times for each signal phase;
  - (vi) walk times for each pedestrian phase;
  - (vii) flashing don't walk times for each pedestrian phase;
  - (viii) the traffic signal phasing diagram including the preemption sequence; and
  - (ix) a statement of whether and what type of gate down circuitry will be used.
- (C) A list of and calculations for the following distances and timings:
  - (i) minimum track clearance distance;
  - (ii) design vehicle designation and length;
  - (iii) clear storage distance;
  - (iv) preemption delay time;
  - (v) controller response time to preemption call;
  - (vi) worst case conflicting vehicle time and worst case conflicting pedestrian time;
  - (vii) maximum highway traffic signal preemption time;
  - (viii) right-of-way transfer time;
  - (ix) queue clearance time;
  - (x) clearance time;
  - (xi) separation time;

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- (xii) advance preemption time;
    - (xiii) minimum warning time; and
  - (D) a letter of concurrence from Commission staff regarding the proposed preemption operations and timings, or a statement that Commission staff does not concur with the proposed preemption operations and timings.
- (XIII) Applications requesting cost allocation to the Highway-Rail Crossing Signalization Fund or projects for which the Colorado Department of Transportation has appropriated Federal Section 130 Fund shall contain specific information regarding the requested apportionment of costs between the railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency, the road authority, and the Highway-Rail Crossing Signalization Fund or Federal Section 130 Fund.
- (XIV) Applications for preliminary or final approval to change an existing crossing from a public crossing to a private crossing shall include:
  - (A) the following documentation for all existing crossings within one-mile of the proposed location of the new crossing in urban locations or within towns, or the two crossings nearest the proposed crossing in rural locations:
    - (i) the National Inventory Number and National Inventory Form;
    - (ii) copies of all accident reports or a statement that no accident reports are available for those crossings; and
    - (iii) the existing ADT volume and character of vehicles passing through the highway-rail crossing each day if the traffic volume on the National Inventory Form has not been updated within three years from the date of the filing of the application, or the existing ADT volume and character of vehicles passing through the highway-rail crossing each day as shown on the National Inventory Form if the traffic volume

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on the form has been updated within three years from the date of the filing of the application.

- (B) Documentation (ordinance, ruling, etc.) showing that the road authority agency is proposing to remove the road from its network of ownership, operation, and maintenance; and
  - (C) documentation showing the person that will be owning, operating, and maintaining the private roadway.
- (XV) Applications for preliminary or final approval to change an existing crossing from a private crossing to a public crossing shall include:
- (A) proposed roadway classification (e.g., local road, collector, arterial, freeway) and a cross-section drawing of the road authority's standards for that roadway classification or cross-section of the pathway;
  - (B) a statement that the existing crossing meets the standards of the proposed roadway classification or a statement that the roadway will be changed to meet the current roadway classification standards; and
  - (C) documentation (ordinance, ruling, etc.) showing that the road authority is accepting the road into its network for ownership, operation, and maintenance.
- (XVI) Applications for preliminary or final approval to construct a grade separated crossing shall include:
- (A) detailed plans/drawings of a suitable scale, showing the crossing, including signing and striping, tracks, buildings, structures, property lines, and public highways within the right-of-way limits of the railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency;
  - (B) a profile drawing showing grade lines and proposed grade lines of approaches on the public roadway, highways, streets, or



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pathways and the tracks being crossed that may be affected by the proposed or existing crossing;

- (C) bridge plan drawings that show, at a minimum:
  - (i) the total length of the bridge structure;
  - (ii) the length of each individual span for multiple span bridge structures;
  - (iii) the location of all existing and any possible proposed future tracks in relation to the bridge structure;
  - (iv) the minimum vertical clearance from the top of rail or pavement to the bottom of structure;
  - (v) the minimum horizontal clearance from centerline of track to face of pier or abutment if track is under the bridge structure; and
  - (vi) the cross-section of the bridge showing information regarding the roadway, pathway or railroad configuration including, but not limited to, out-to-out distance, fencing, lane widths, walkway widths and median widths.

(XVII) Applications for any preliminary approval of plans/drawings shall include:

- (A) the date by which all final plans/drawings for which preliminary or conceptual level plans/drawings were provided with the application will be filed for approval; and
- (B) a waiver of the applicable statutory period in §40-6-109.5, C.R.S. regarding the time limit for decisions.

(XVIII) Applications for a utility crossing shall include:

- (A) the contact person name, mailing address and e-mail address to whom the Commission notice is to be sent:

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- (i) for each railroad, railroad corporation, rail fixed guideway, or transit agency that owns the tracks affected by an application filed by a utility; and
  - (ii) for each utility affected by the application filed by a railroad, railroad corporation, rail fixed guideway, transit agency, or other person, firm, or corporation that will own the tracks affected by the application.
- (B) The railroad and/or rail fixed guideway line name and milepost number where the crossing that is subject of the application is located;
- (C) a detailed statement as to the nature of and need for the construction, alteration, abolition, installation, or modification for which approval is sought;
- (D) a statement of the scope of the project, including without limitation:
  - (i) the utility construction location;
  - (ii) the detailed itemized estimated cost of the proposed utility crossing construction, alteration, abolition, or modification;
  - (iii) how applicant proposes to provide for the cost, explaining the proposed apportionment between or among the parties in interest if applicable; and
  - (iv) if the funds necessary for the project are currently available and encumbered.
- (E) A statement of the estimated month and year for:
  - (i) the start date for the utility crossing construction, alteration, abolition, or modification; and
  - (ii) the completion date for the utility crossing construction, alteration, abolition, or modification.

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- (F) A vicinity map that includes the proposed project limits (i.e., a map that includes the general area circumscribing the project);
  - (G) the names and mailing addresses of all persons, including adjacent property owners, public utilities, and local government agencies that may be interested in or affected by the application;
  - (H) detailed plans/drawings of a suitable scale, showing the utility crossing, tracks, buildings, structures, and property lines within the right-of-way limits of the railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, or transit agency; and
  - (I) a profile drawing showing grade lines and proposed grade lines of the utility in relation to the tracks being crossed.
- (b) Any engineering schematics, plans, drawings, or maps submitted pursuant to this rule shall be submitted on pages no larger than 11" x 17". All engineering schematics, plans, drawings and maps must be legible. All plan and profile drawings submitted must be able to be printed to and measured by the identified scale.
- (c) If the applicant adopts a substantive change to any map, drawing, plan, or schematic that has been filed with the application, the applicant shall file the new map, drawing, plan, or schematic within ten days of the change. In all cases, the applicant shall submit final maps, drawings, plans, or schematics, as applicable, within ten days of the availability of such final maps, drawings, plans, and schematics.
- (d) An application filed pursuant to paragraph 7203(f), may only be filed subsequent to discussion of the temporary safety measure and consensus of a diagnostic team consisting of the road authority, the railroad, railroad corporation, rail fixed guideway, or transit agency, Commission staff, and the Colorado Department of Transportation if the project is a Section 130 project Notice of the temporary safety measure is provided pursuant to paragraph 7208(d).

**7205. Additional Application Contents for Cost Allocation Requests in Grade Separation Applications.**

- (a) Any engineering schematics, plans, drawings, or maps submitted pursuant to this rule shall be submitted on pages no larger than 11" x 17". All engineering schematics, plans, drawings and maps must be legible. All plan and profile drawings submitted must be able to be printed to and measurable by the identified scale.
- (b) In the case of applications concerning highway-rail grade separations for which contribution from one or more railroad corporations is requested, the applicant shall, in addition to the information required by paragraph 7204(a), include the following additional information in the application in the following order and specifically identified either in the application or in appropriately identified attachments:
  - (I) a complete description of the scope of the proposed separation project;
  - (II) a preliminary set of construction plans, including engineering costs;
  - (III) a preliminary engineer's cost estimate, including engineering costs;
  - (IV) the estimated costs of right-of-way, parcel by parcel, including railroad right-of-way;
  - (V) a proposed construction timetable;
  - (VI) a list of affected railroad corporations;
  - (VII) a preliminary design of the theoretical structure for a reasonably adequate facility; and
  - (VIII) a cost estimate of the theoretical structure, including the costs described in subparagraphs (III) and (IV) of this paragraph and including a 20 percent contingency.

**7206. Grade Separations — Minimum Criteria for Cost Allocation Consideration.**

- (a) For a highway-rail grade separation application to be considered for cost allocation, the following minimum criteria shall be met:

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- (I) exposure factor, actual or projected, shall exceed 85,000 at urban locations and 35,000 at rural locations;
  - (II) the roadway shall be a collector, arterial, or freeway with an actual or no greater than five-year projected ADT volume of 6,000 vehicles per day or greater for urban locations or 2,500 vehicles per day or greater for rural locations; and
  - (III) any rail lines shall have an actual or projected volume of four train movements per day or greater.
- (b) The Commission may consider other locations for cost allocation, if warranted by unusual conditions or circumstances.

**7207. Cost Allocation for Grade Separation.**

- (a) Upon receipt of an application for a highway-rail grade-separation project, which application meets the criteria of rule 7206, the Commission shall allocate the costs of right-of-way acquisition, engineering, and construction of the theoretical structure that separates a reasonably adequate highway facility from a reasonably adequate railroad facility. The Commission shall impose allocation of costs in the following manner.
- (I) Except as provided in subparagraph (II) of this paragraph, 50 percent of the cost shall be borne by the railroad corporation or corporations and 50 percent of the cost shall be borne by the State, County, Municipality, or public authority in interest.
  - (II) Notwithstanding subparagraph (I) of this paragraph, the Commission may impose a different allocation if demonstrated by evidence of benefit and need. Among other things, the Commission shall consider whether piers or abutments of a roadway overpass hinder the construction of future additional rail lines within the railroad right-of-way and whether the projected life of the overpass structure exceeds the anticipated construction date of the additional rail lines.

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- (b) The Commission may determine whether to treat the replacement or realignment of existing grade separations as if there were an at-grade crossing requiring separation. The Commission may determine whether to treat grade separation of roadways on a new alignment as if there were an existing at-grade crossing requiring separation.
- (c) The Commission shall order the total allocation of grade separation expenses and the railroad allocated share of the theoretical structure expenses by year to a railroad through Commission Decision for the approved grade separation project. The Commission shall allocate and track expenses for the approved grade separation project by railroad starting in the first calendar year in which allocation dollars are available, and for each successive calendar year until the railroads allocated share of the theoretical structure has been fully allocated to the railroad. Total tracked expenditures for a single calendar year shall not exceed two million five hundred thousand dollars per railroad.

**7208. Notice.**

The Director shall give notice of any application filed under rules 7204 and/or 7205. The Director shall provide said notice to all persons who, in the opinion of the Commission, would be interested in or affected by the grant or denial of the application, including those interested persons the applicant lists in its application.

- (a) The notice provided by the Commission shall take the form of a Notice and Order, and shall contain the following information in addition to the information required by paragraph 1206(b):
  - (I) the name of the applicant;
  - (II) the proceeding number assigned to the application;
  - (III) the application's caption, which shall include the crossing's designation, if any;
  - (IV) the date of the notice;

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- (V) a statement that any person desiring to participate as a party in any proceedings to be held must file an appropriate intervention as required under the Commission's Rules Regulating Practice and Procedure;
  - (VI) the date by which interventions must be filed which shall ordinarily be not less than 30 days after mailing date of the notice, except as to temporary safety measures addressed in subparagraph (d);
  - (VII) a statement regarding whether the application has been deemed complete as of the date of the notice;
  - (VIII) a statement that the Commission may, without a hearing, issue an order granting or denying the application, if no intervention contesting the application has been timely filed;
  - (IX) a statement that if a hearing regarding the application is set, the parties will be notified of the setting; that applicants must appear at the hearing to present evidence in support of the application; and that other parties may appear to present evidence in support of their positions;
  - (X) a statement that, unless previously filed, the applicant shall either file through the E-Filings System or shall file an original and three copies of its list of witnesses and an original and three copies of its attachments at least 20 days prior to the first day of hearing; and that the applicant shall serve each party with its list of witnesses and copies of its attachments;
  - (XI) a statement that each intervenor shall either file through the E-Filings System or shall file an original and three copies of its list of witnesses and an original and three copies of its attachments at least ten days prior to the first day of hearing; and that each intervenor shall serve each party with its list of witnesses and copies of its attachments; and
  - (XII) any other information that the Commission deems appropriate.
- (b) Where the application is for authority to install or modify crossing warning devices under § 40-4-106(2)(b), C.R.S., the notice shall state, in addition to the

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requirements of paragraph (a) of this rule, that the question of how costs will be borne and paid will be considered at and determined as a result of the hearing.

- (c) Where the application is for authority to close a crossing, the applicant shall give notice by posting notice of the closing on both sides of the trackage of the crossing proposed to be closed and the Commission shall provide notice to the affected parties listed in the application. The posting of notice at the crossing and the Commission notice shall occur on the same day. The notice shall be posted at the crossing and the Commission shall send the Notice of Application Filed 15 days after the application is filed with the Commission, unless the 15th day falls on a weekend or holiday in which case the notice shall be posted on the last business day prior to the weekend or holiday. The notice is to be posted at the crossing for a period of 30 days. The applicant shall file a written affidavit stating the date the notice was posted at the crossing and shall attach a copy of the notice posted at the crossing to the affidavit.

- (I) The notice shall contain, at a minimum, the following information:

- (A) the title: Notice of Proposed Closing of This Crossing;
- (B) a statement that an application to close the crossing has been filed with the Colorado Public Utilities Commission;
- (C) the current correct address of the Commission;
- (D) the date the closing of the crossing is requested;
- (E) the National Inventory Number of the crossing;
- (F) a sufficient description of the crossing so as to identify it, and the proceeding number assigned to the application;
- (G) a statement that parties have the right to file written interventions or objections with the Commission at the address stated on the notice; and
- (H) a statement of the last date for filing interventions or objections.

- (II) The notice must meet the following requirements:



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- (A) the posted notice to close the crossing shall be printed on a substantial placard, no less than 18" x 24";
  - (B) the title: Notice of Proposed Closing of This Crossing shall be printed in letters no less than one inch in height;
  - (C) all other information printed on the notice shall be in letters no smaller than one half inch in height;
  - (D) the background of the notices shall be white; and
  - (E) the letters of the notice shall be black.
- (III) The notices shall be posted so as to be clearly visible from a distance of no less than 100 feet from the notice, and shall not be posted so as to obstruct the vision of motorists or trains at the crossing.
- (d) If an application contains a request to install a temporary safety measure made pursuant to paragraph 7203(f), the time period listed in subparagraph (a)(VI) shall be reduced to 14 days for the temporary safety measure only.
- (e) Notices outside of formal proceeding.
  - (I) Whenever these rules require written notice to a railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track outside of a formal Commission proceeding, such written notice must be provided by email or certified first-class mail to the person or persons, or centralized contact center, that the railroad, railroad corporation, rail fixed guideway, transit agency or owner of the track designate on their websites using the email or mailing address that such entities conspicuously publish on their websites as required by subparagraph 7208(e)(II).
  - (II) A railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track must conspicuously publish information on its website identifying the name, email address, and mailing address of the person or persons, or centralized contact center, that such entities designate to receive written notices that are required by these rules outside of a formal

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Commission proceeding. Such entities must update their websites within one business day of any changes to this information.

**7209. Uncontested Applications.**

Except as provided by § 40-4-106(2)(b), C.R.S., an uncontested and unopposed application may be processed as such under the Commission's Rules Regulating Practice and Procedure.

**7210. Failure to Provide Required Information.**

If an application does not provide the information required by rules 7204 and 7205, as applicable, the Commission may summarily dismiss the application and close the proceeding.

**7211. Crossing Construction and Maintenance.**

- (a) Whenever a highway, pathway, or sidewalk is removed at an existing crossing or constructed at a new crossing, or the highway, pathway, or sidewalk portion of an existing crossing is widened, the road authority shall bear all costs to remove, construct or widen crossing surfaces at the crossing including the cost of the crossing surface; the highway, pathway, and/or sidewalk approaches; and highway and/or pathway construction traffic control. Extensions of crossing surfaces for the addition of sidewalks to an existing crossing require only the addition of crossing surface panels for the sidewalks and do not require the entire crossing surface to be replaced.
- (b) Whenever a track is removed at an existing crossing, or constructed at a new crossing, or the track portion of an existing crossing is widened, the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track shall bear all costs to remove, construct or widen the track including the cost of the crossing surface; the highway, pathway, and or sidewalk approaches; and highway and/or pathway construction traffic control..
- (c) In addition to projects described in paragraph 7211(b), railroads, railroad corporations, rail fixed guideways, transit agencies, or owners of the track shall

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- bear all costs of their initiated projects (e.g., capital improvement projects) involving crossings.
- (d) The crossing surface shall be of plank, concrete, rubber, flangeway and asphalt, or other suitable material that is compatible with the highway approached, and shall be of the same width as the pavement or other surfacing material in the approaches of the adjacent highway including the roadway shoulders. The crossing surface material shall make a reasonably smooth riding surface over the track or tracks and be approximately level with the top of the rails. Wherever practicable, the tracks at multiple track crossings shall be level with the mainline track.
  - (e) The Commission may determine the materials to be used in a crossing at the time the Commission considers the application regarding the crossing.
  - (f) Whenever practicable, sidewalks should be detached from the curb and constructed behind the crossing signal mast. The crossing surface material for sidewalks need not be continuous with the crossing surface material of the vehicle travel lanes.
  - (g) Pathway crossings of mainline trackage shall be grade separated. Rail fixed guideway and rail fixed guideway systems are exempted from this requirement. Sidewalks or pathway crossings under railroad open deck bridges or trestles shall have a protective cover (roof) extending a reasonable distance beyond the edges of the bridge or trestle to prevent material or debris from striking users of the sidewalk or pathway crossings. Sidewalks and pathway crossings under closed deck bridges may have either a protective cover extending a reasonable distance beyond the edges of the bridge or may have fencing attached to the bridge structure to prevent material or debris from striking users of the sidewalk or pathway crossing.
  - (h) A railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track shall maintain the grade crossing surface from the outside end of the tie to the outside end of the tie at single track crossings. Railroads, railroad corporations, rail fixed guideways, transit agencies, and owners of the track shall

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promptly assist any road authority to the extent required to maintain the road surface between tracks at multiple track crossings. The road authority shall bear the cost of railroad flagging required to maintain the roadway surface between tracks at multiple track crossings.

- (i) The road authority that owns the highway shall maintain at its own expense the highway approaches up to the outside end of the ties.
- (j) If the road authority is other than a local government, the total costs to maintain an existing crossing surface, including, but not limited to, materials, labor, traffic control, railroad flagging, and any necessary permits shall be shared equally between the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track, on the one hand, and the road authority, on the other hand.
- (k) If the road authority is a local authority, the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track is responsible for all costs to maintain the portion of the existing crossing that is between the ends of the railroad ties. The local government road authority is responsible for the costs to maintain the portion of the existing crossing that is outside of the ends of the railroad ties.
- (l) A railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track, shall remove all obstructions along the tracks that block the view of motorists, bicycles, and/or pedestrians as outlined in paragraph 7301(d). The Commission may determine what obstructions are to be removed to ensure reasonable safety at the crossing.
- (m) A railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track must coordinate with the road authority to provide public notice and traffic and/or pedestrian and/or bicycle detours and may not close the crossing or perform any construction work at any highway-rail crossing and/or public pathway crossing that will lead to temporary closure of the highway-rail crossing and/or public pathway crossing prior to coordinating with the road authority to provide the referenced notice and detours. In the event of an imminent safety hazard or emergency, the railroad, railroad corporation, rail fixed guideway,

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transit agency, or owner of the track is not required to coordinate with the road authority before closing the crossing or performing construction but must provide notice to and coordinate with the road authority as soon as practicable, but not less than 24 hours after such crossing closure or construction commences.

- (n) A railroad, railroad corporation, rail fixed guideway, transit agency or owner of the track must provide road authorities with the project construction support necessary to construct and complete any highway-rail crossing and/or public pathway crossing project, as agreed upon by the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track and road authority pursuant to the applicable construction and maintenance agreement, and as ordered by the Commission.
- (o) Within 90 days of receiving a written notice that a crossing surface is in disrepair, a railroad, railroad corporation, rail fixed guideway, transit agency or owner of the track must provide a written reply that establishes a plan to repair the crossing surface, including a proposed timeline to repair the crossing surface that does not exceed one year from the date of the notice, except for crossing surface disrepairs that present an imminent safety hazard, which must be repaired as soon as practicable. If the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track believes repair is unnecessary, its written reply must explain why repair is unnecessary. The written notice to a railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track must comply with subparagraph 7208(e)(I).

**7212. Crossing Safety Diagnostics and Cost Estimates.**

- (a) A railroad, railroad corporation, rail fixed guideway, transit agency, owner of the track, road authority, or Commission staff may request a crossing safety diagnostic at any existing or proposed crossing to assess the condition of the existing crossing, to discuss proposed changes to an existing crossing, or to discuss a proposed new crossing. A crossing safety diagnostic must be held at least 30 days prior to the filing of an application for a new crossing, for changes to an existing crossing, or for closure of an existing crossing. If the railroad,

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railroad corporation, rail fixed guideway, transit agency, owner of the track, road authority, and Commission staff agree that a crossing safety diagnostic for a specific project for which an application will be sought is not necessary, Commission staff shall provide written correspondence to the railroad, railroad corporation, rail fixed guideway, transit agency, owner of the track, and road authority memorializing such agreement for use in any future application within fourteen days of the date of the agreement. Applications may be filed 30 days after receipt of either the written correspondence from Commission staff or from the date by which written correspondence is to be received from Commission staff.

- (b) Commission staff will be required to assist and review any proposed simultaneous or advance preemption timings at crossings for which interconnection and preemption exists or will be requested, and with proposed exit gate operations and timings at crossings for which four-quadrant gate systems exist or are proposed to be installed. If Commission staff concurs with the proposal, a letter of concurrence shall be provided. Commission staff's assistance, review and concurrence, if any, must occur more than 30 days prior to the filing date of the application.
- (c) During a crossing safety diagnostic held at an at-grade highway-rail crossing or pedestrian crossing, the road authority, and the railroad, railroad corporation, rail fixed guideway, transit agency or owner of the track, with any necessary assistance from Commission staff, shall review, and confer on the items in subparagraphs 7212(c)(I) through (III). While this conferral is required, the railroad, railroad corporation, rail fixed guideway, transit agency or owner of the track does not have authority to overrule the road authority's determinations as to aspects that directly relate to control and direction of vehicular traffic.
  - (I) The need for and selection of appropriate safety devices;
  - (II) the appropriate preemption operation and the timing of traffic control signals interconnected with highway-rail grade crossings adjacent to signalized highway intersections; and

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- (III) the appropriate exit gate operating mode and exit gate clearance time.
- (d) An applicant and its consultants, and a railroad, railroad corporation, rail fixed guideway, transit agency, owner of the track and their consultants may not require a road authority, railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track to accept the results of or pay for the preparation of any study or report not expressly requested by the road authority, railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track unless the parties have entered into an agreement for payment, (e.g., reimbursement which includes a general scope for the required study or report), and such study or report relates to the project.
- (e) Every railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track shall provide to a road authority an initial cost estimate (including labor, materials and circuitry costs) and a schematic diagram with all the information required to be shown on the schematic diagram per subparagraph 7204(a)(X)(D) for the specific configuration requested by the road authority no more than 120 calendar days after a road authority has submitted a request to such entity consistent with the notice requirements in subparagraph 7208(e)(I) and has provided the necessary documents for such entity to create the initial cost estimate and schematic diagram. If the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track determines that the road authority has not provided all necessary documents for it to create the initial cost estimate and schematic diagram, within 30 calendar days of receiving the road authority's request for an initial cost estimate and schematic diagram, the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track must notify the road authority in writing of the additional documents that it requires. If the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track does not provide this notice, the road authority is presumed to have provided the necessary documents and the 120-day timeframe will run from the date the road authority served its request for the initial cost estimate and schematic diagram. If the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track provides notice that it requires additional

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documents, its initial cost estimate and schematic diagram must be provided to the road authority within 120 calendar days of the date that the road authority provides the documents that the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track identified in its written notice to the road authority. This paragraph may not be used to circumvent the requirements in paragraphs 7212(d) and (g).

- (f) The signed construction and maintenance agreement or evidence of a signed intergovernmental agreement between any railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track shall be filed with the Commission within 90 calendar days of the Commission's final decision authorizing the highway-rail crossing project, or anytime within the 30-day period preceding the Commission-approved construction start date, whichever comes later.
- (g) If a railroad, railroad corporation, rail fixed guideway, transit agency or owner of the track uses a consultant to perform a public project review, in conjunction with or on its behalf, then review of the public project, including the scope of consultant time that may be billed to the road authority, is strictly limited as follows:
  - (I) to preemption calculation verification using the road authority's traffic signal timing information;
  - (II) shall not include the review of, or require the road authority to comment on or make changes to any of the following matters:
    - (A) construction plans that do not relate directly to the location of the highway-rail grade crossing;
    - (B) traffic engineering matters including signing, striping, traffic signal cabinet wiring plans, traffic signal design and construction, and traffic signal operations; and



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- (C) any other area of design, construction, implementation, and operations that is under the statutory authority and expertise of the road authority or the Commission;
- (III) the public project review shall be promptly completed and the preparation of a road authority requested front sheet and cost estimate shall be completed within the 120-day deadline set forth in paragraph 7212(e); and
- (IV) the road authority may request that the Commission review the reasonableness of the time billed by the consultant to the road authority.
- (h) A railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track may assess costs for new, or the new part of, revised easements or licenses but may not assess any costs for existing easements at existing public highway, utility, or public pathway crossings. If a new or expanded easement or license is required as a part of a road authority's public highway, utility, or public pathway crossing project, and the road authority cannot provide recorded documentation of existing easements, leases, or licenses, the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of track may assess the road authority its reasonable costs associated with researching, documenting, and recording such easements or licenses.

**7213. Minimum Crossing Safety Requirements.**

- (a) All public crossings in the state of Colorado shall have posted, at a minimum, one MUTCD R15-1 crossbuck sign, one MUTCD R15-2P number of tracks sign for crossings with more than one track, one MUTCD R1-2 yield sign, and one MUTCD I-13 emergency notification sign mounted on the same support, for each direction of vehicle and/or pedestrian traffic that crosses the tracks. Any signage configuration different from these minimum standards require approval from the Commission through the filing and granting of an application.
- (b) All public crossings shall have posted, at a minimum, one advance warning sign applicable to the roadway geometry posted for each direction of traffic that crosses the tracks. Applicable advance warning signs include MUTCD signs

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W10-1, W10-2, W10-3, and W10-4. The road authority may install warning beacons on advance warning signs in accordance with Section 4L.03 of the MUTCD.

- (c) All public highway-rail crossings where the measured storage distance between the dynamic envelope of the crossing and the stop bar location, leading edge of the pedestrian crosswalk, or the edge of the parallel roadway, whichever is less, for the intersection downstream from the crossing is less than 80 feet shall post in advance of the highway-rail crossing a MUTCD W10-11 storage space sign with a MUTCD W10-11a supplemental word message storage distance sign indicating the length of storage between the dynamic envelope and the stop bar for the highway.
- (d) Highway-rail grade crossing pavement markings shall be installed on all paved approach lanes to the highway-rail grade crossing for roadways with a posted or statutory speed limit of 40 miles per hour or greater. Highway-rail grade crossing pavement markings should be installed on all paved approach lanes to highway-rail grade crossings for roadways with a posted or statutory speed limit of less than 40 miles per hour. Grade crossing pavement markings may be installed on all approaches to a pathway crossing. Pavement markings shall be installed only on approach lanes where all vehicles will cross the crossing.

**7214. Template Agreements.**

Starting November 22, 2024, road authorities and railroads, railroad corporations, rail fixed guideways, transit agencies, or owners of the track are required to use Commission-approved template Construction and Maintenance Agreements and Preliminary Engineering Agreements for public crossing projects over which the Commission has jurisdiction, including the following types of public crossing projects: highway-rail at-grade crossings, grade separated crossings, pathway-rail at-grade crossings, pathway grade separated crossings, utility crossings, existing at-grade crossing modifications, relocating crossings, traffic signal interconnection, crossing status change (private to public or public to private), crossing closures, crossing active warning signal improvements, crossing passive warning improvements, and crossing

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surface improvements. Parties to contracts with the Colorado Department of Transportation are exempt from this requirement.

**7215. – 7299. [Reserved].**

**SAFETY****Generally****7300. Applicability.**

Rules 7301 through 7302 apply to all railroads, railroad corporations, rail fixed guideways, and transit agencies. Additionally, rule 7302 applies to common carriers.

**7301. Installation and Maintenance of Crossing Warning Devices.**

- (a) All passive and active crossing warning devices, whether electrically operated or otherwise, and of whatsoever nature, which have been installed at public crossings in the state of Colorado, shall be installed, and efficiently maintained and kept in good condition or good operating condition by the railroad, railroad corporation, rail fixed guideway, transit agency, or owner of the track at the crossing at the railroad, railroad corporation, rail fixed guideway, rail fixed guideway system, transit agency, or owner of the track's expense for the life of the crossing.
- (b) Whenever active crossing warning devices are interconnected to standard highway traffic signals, the highway traffic signal shall be efficiently maintained and kept in good operating condition by the road authority agency in interest at the road authority's expense for the life of the crossing.
- (c) All advance warning signs and pavement markings which have been installed at public crossings in the state of Colorado shall be efficiently maintained and kept in good condition by the road authority owning and maintaining the roadway at the crossing at the road authority's expense for the life of the crossing.
- (d) Every person to whom this rule applies shall at all times keep its right-of-way free and clear from all obstructions which substantially interfere with the safe sight distance of approaching trains at crossings; provided, however, that:

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- (I) this paragraph (d) shall not apply to existing buildings, permanent structures, and natural obstructions other than trees and vegetation;
- (II) this paragraph (d) shall not apply to rolling stock or materials temporarily on the right-of-way in connection with switching movements or with the loading or unloading of shipments;
- (III) this paragraph (d) shall not apply to crossings at which automatic signals and gates are installed. The exception provided by this subparagraph (III) shall only be applicable if such automatic signals and gates are kept free and clear of all obstructions interfering with either:
  - (A) the operation of the automatic signals and gates; or
  - (B) the ability of drivers to detect the automatic signals and gates.
- (e) No grain elevators, storage tanks, warehouses or other buildings which substantially obstruct the view of approaching trains at crossings shall be built on the right-of-way unless and until the railroad complies with any requirements which the Commission may impose as to signals or other safety installation in connection with such obstruction.

**7302. Notification of Accidents.**

Except as preempted by federal law or as otherwise provided by rules 7340 through 7349, the following provisions apply with regard to accident notification to the Commission.

- (a) Facsimile or telephone notification. When any wreck, collision of trains, or collision of trains with vehicles or pedestrians, results in loss of life or injury to persons and occurs upon the line of any person to whom this rule applies, such person shall notify the Commission by facsimile or telephone as soon as practicable. The notification shall disclose the details of such accident, stating the location and the nature of the accident, the number of persons killed or injured, and the name of the railroad involved.

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- (b) Supplemental letter. As soon as possible after the notification, such person shall supplement the notification by letter to the Commission. The supplemental letter shall describe in detail:
  - (I) the date, time, and location of the accident;
  - (II) the vehicles involved, and the vehicles' approximate speeds;
  - (III) the extent of injuries and other damages;
  - (IV) the names of all parties involved; and
  - (V) the circumstances relative to accident, including weather, visibility, type of safety devices, and any other pertinent information.
- (c) Notification of formal investigation. Every person to whom this rule applies, upon the setting of any formal investigation by either the Federal Railroad Administration or the National Transportation Safety Board, shall notify the Commission by telephone or facsimile of the date, time, and place of such investigation.

**7303. - 7319. [Reserved].****Railroad Clearances****7320. Applicability.**

Rules 7321 through 7328 apply to all railroads and railroad corporations which operate on standard gauge railroad track.

**7321. Definitions.**

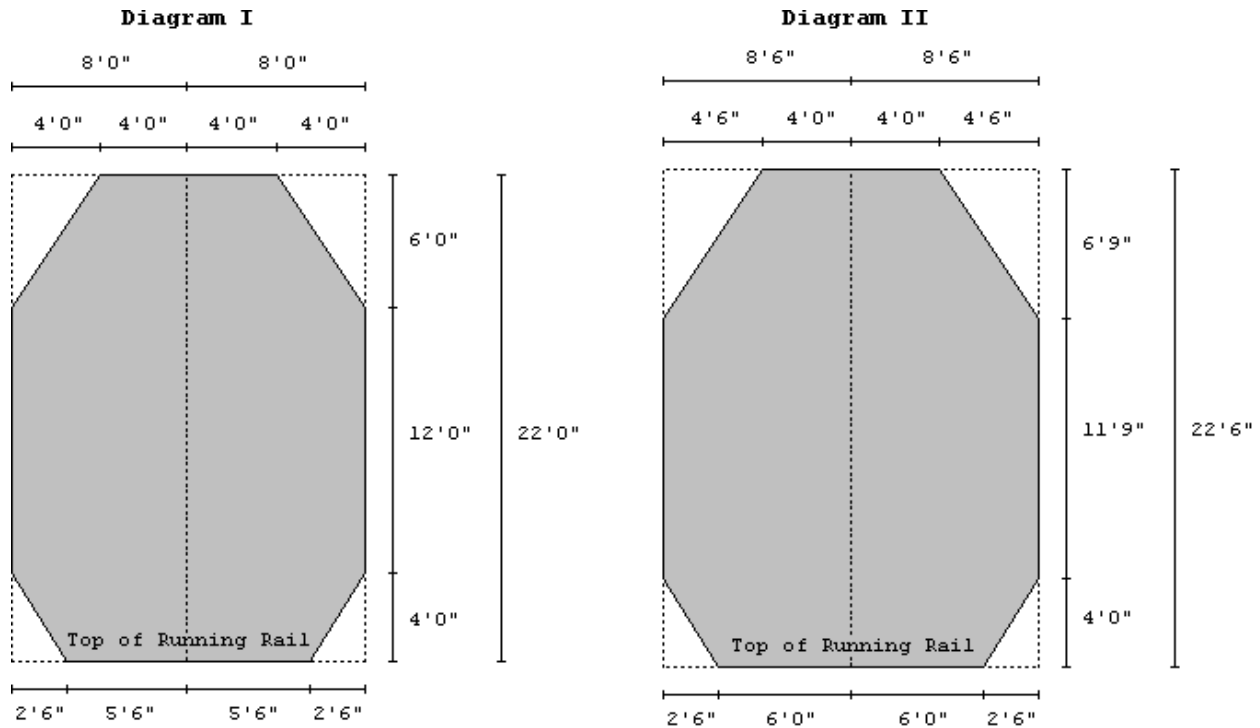
The following definitions apply only in the context of rules 7321 through 7328.

- (a) "Overhead clearance" means the vertical distance from the top of the highest rail to a structure or obstruction above.
- (b) "Side clearance" means the shortest horizontal distance from the center line of track to a structure or obstruction at the side of the track.
- (c) "Track clearance" means the shortest horizontal distance between the center lines of adjacent tracks.

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**7322. Diagrams.**

The following two diagrams are referenced in rules 7321 through 7328 as “Diagram I” and “Diagram II”:



- (a) Diagram I is described as follows: starting at the center line of track at top of rail and extending 5'6" both sides horizontally and level therewith, thence upward diagonally to a point 4'0" above top of rail and 8'0" laterally from center line of track, thence vertically to a point 16'0" above top of rail, thence diagonally upward to a point 22'0" above top of rail and 4'0" horizontally from center of track, thence horizontally to center of track.
- (b) Diagram II is described as follows: starting at the center of track at top of rail and extending 6'0" both sides horizontally and level therewith, thence diagonally upward to a point 4'0" above top of rail and 8'6" laterally from center line of track, thence vertically upward to a point 15'9" above top of rail, thence diagonally upward to a point 22'6" above top of rail and 4'0" horizontally from center of track, thence horizontally to center of track.

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**7323. Special Provisions.**

- (a) All existing structures, operating appurtenances, pole lines, service facilities, and track arrangements shall be exempt from these rules, except as hereinafter provided.
- (b) No change in existing track location or elevation shall be made which will reduce existing vertical or horizontal structural clearance below the minimum specified in rules 7320 through 7328.
- (c) No repair or maintenance work shall be done on structures, facilities or appurtenances adjacent to tracks which will reduce existing vertical or horizontal structural clearance below the minimum specified in rules 7320 through 7328.
- (d) As used in paragraphs (b) and (c), minimum clearance shall be as in Diagram I.
- (e) Where an existing structure does not provide clearance equal to the minimum of paragraph (d) or such other minima less than that which may be herein specified, the portion of the structure producing the impaired clearance may be repaired and maintained by partial replacements, which shall in no case reduce the clearance available at the time this order takes effect.
- (f) When the owner shall replace in its entirety the portion of a structure which has not previously provided standard clearance, the rebuilt portion must, when complete, provide the full standard clearance of this order unless otherwise ordered by the Commission.
- (g) Existing tracks.
  - (l) Existing tracks of all kinds may be maintained by reballasting, resurfacing, and replacing rails and ties subject to the limitations of paragraph (b). Where existing yards are completely replaced or are partially replaced as a unit or section of a master plan, the arrangement must meet the provisions of this order both as to track centers and clearances to structures and other facilities being built in connection with and as a part of such plan. Existing structures which are to remain and which do not provide the minimum clearance of paragraph (d) with respect to the

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proposed new tracks must be approved by the Commission for exemption from the terms of this order.

- (II) Existing tracks having less vertical clearance than that specified in paragraph (d) may be maintained but the top of rail may not be raised without a corresponding raise of the overhead structure so as to maintain the existing available clearance.
- (III) Existing tracks having less horizontal clearance between them than is herein specified for new construction or having less horizontal clearance to structures than is specified in paragraph (d) may be maintained but they may not be shifted horizontally to reduce either the existing track centers or the existing structural clearance.

**7324. Overhead Clearances.**

- (a) Generally.
  - (I) Overhead clearance generally shall be at least 22'6".
  - (II) Overhead clearances may be reduced to comply with paragraphs (d) and (e).
- (b) Inside enclosed buildings.
  - (I) Overhead clearance inside of enclosed buildings may be reduced to 18'0", provided that this clearance shall apply only to tracks terminating within the building or in the immediate plant area if said tracks should extend through the building.
  - (II) Overhead clearance of doors may be reduced to 17'0".
- (c) Tunnels.
  - (I) The minimum overhead clearance in tunnels shall be 23'0".
  - (II) The clearance may be decreased to the extent defined by the half-circumference of a circle having a radius of 8'0" and tangent to a horizontal line 23'0" above the top of rail at a point directly over the center line of track.



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- (d) Through Bridges.
  - (I) The minimum overhead clearance in through bridges shall be 22'0".
  - (II) See paragraph 7323(d) and Diagram I.
- (e) All other structures.
  - (I) The minimum overhead clearance for all other structures shall be 22'6".
  - (II) Except as herein specifically provided, all other structures shall have at least the clearances illustrated by Diagram II.
  - (III) Overhead clearance for structures other than buildings may be reduced if approved by the Commission.
- (f) All wires in general shall have a minimum vertical clearance of not less than that specified by the National Electrical Safety Code, as incorporated by reference in rule 7008.
- (g) Engine houses and shop buildings are exempt from paragraphs (a) through (e) of this rule.

**7325. Side Clearances.**

- (a) Generally.
  - (I) Side clearance generally shall be at least 8'6".
  - (II) Wherever practicable, all posts, pipes, warning signs, and other small obstructions should be given a side clearance of at least 10'0".
  - (III) Side clearance may be reduced to comply with provisions of subparagraph (c)(I).
- (b) Platforms.
  - (I) The side clearances in this paragraph to apply to both main line and side tracks unless otherwise indicated.
  - (II) The minimum side clearance for platforms that are 8" or less above top of rail shall be 5'0".

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- (III) For platforms that are greater than 8" above top of rail and 4'0" or less above top of rail:
  - (A) The minimum side clearance for freight platforms on side tracks shall be 6'3" or 8'0".
  - (B) If side clearance is reduced to 6'3" on one side, a full clearance of 8'0" shall be maintained on the opposite side.
  - (C) No intermediated clearance is permitted, except compensation for curvature under paragraph (i).
  - (D) The minimum side clearance for freight platforms on main line tracks or passing tracks shall be 8'6".
- (IV) For platforms that are greater than 4'0" above top of rail:
  - (A) The minimum side clearance on side tracks shall be 8'0".
  - (B) The minimum side clearance on main line and passing tracks shall be 8'6".
- (V) Combination platforms. Platforms covered under subparagraph (b)(II) may be combined with platforms covered under either subparagraph (b)(III) or (b)(IV) provided that the lower platform presents a level surface to the face of the wall of the platform with which it is combined. No other combinations are permitted.
- (VI) The minimum side clearance for all other platforms shall be 8'0".
  - (A) This subparagraph (VI) applies to side tracks only.
  - (B) Retractable platforms, either sliding or hinged, which are attached to a permanent structure, must be so constructed that, when retracted or in a non-working position and firmly secured or anchored, the resulting clearance shall not be less than clearances mandated by rules 7321 through 7328.
- (c) The minimum side clearance for bridges and tunnels shall be 8'0".

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- (I) Lower section of bridges and structures of bridges.
  - (A) This subparagraph applies to those sections of bridges and structures of bridges that are at or below 4'0" above top of rail.
  - (B) Hand rails, water barrels and refuge platforms on bridges and trestles, water columns, oil columns, block signals, or cattle guards, or portions thereof, which are 4'0" or less above top of rail, may have clearances decreased to the extent defined by a line extending diagonally upward from a point level with the top of rail and 5'6" distant laterally from center line of track to a point 4'0" above top of rail and 8'0" distant laterally from center line of track.
  - (C) The clearances authorized in this subparagraph (I) are not permitted on through bridges where the work of train-men or yardmen require them to be upon the decks of such bridges for the purpose of coupling or uncoupling cars in the performance of switching service on a switching lead.
- (II) Upper section of bridges and tunnels.
  - (A) This subparagraph applies to those sections of bridges, structures of bridges, and tunnels that are greater than 16'0" (Diagram I) or 15'9" (Diagram II) above top of rail.
  - (B) Side clearances in tunnels and through bridges may be decreased to the extent permitted by paragraphs 7324(c) and (d).
- (d) The minimum side clearance for all of the following shall be 3'0":
  - (I) switch boxes that project 4" or less above top of rail;
  - (II) switch operating mechanisms that are necessary for the control and operation of signals and that project 4" or less above top of rail; and
  - (III) interlockers that project 4" or less above top of rail.
- (e) The minimum side clearance for mail cranes and train order stands shall be 8'6", but only when such cranes or stands are not in an operative position.

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- (f) The minimum side clearance for oil and water columns shall be 8'0", except as provided by subparagraph 7325(c)(I)(B).
- (g) Signals or switch stands.
  - (I) The minimum side clearance for signals and switch stands shall be 6'0", if such signals or switch stands are 3'0" high or less above top of rail when located either between tracks or where it is not practicable to provide clearances as otherwise prescribed in rules 7321 through 7328.
  - (II) The minimum side clearance for signals or switch stands that are over 3'0" high shall be 8'3".
  - (III) Signals and signal poles higher than 3'0" above top of rail shall, for the portions thereof that are higher than 4'0" above top of rail and less than 16'0" above top of rail, keep such portions 8'6" from center of track. The portions thereof that are below 4'0" and over 16'0" shall not encroach on the limits illustrated by Diagram II.
- (h) Buildings and entrances.
  - (I) The minimum side clearance inside buildings shall be 8'0".
  - (II) At elevations of 4'0" or less above top of rail inside of buildings, the minimum side clearance may be reduced on one side of the track to 6'3", provided that 8'0" is maintained on the opposite side.
  - (III) The minimum side clearance at building doors shall be 7'0".
  - (IV) Side clearance at doors may be reduced to 5'9" on one side of track only, provided a full clearance of 8'3" is maintained on the opposite side.
- (i) Curved track. The horizontal clearances specified in rules 7320 through 7328 relate to tracks on tangent. On curved track the clearances shall be increased to allow for the over-hang and the tilting of a car 85 feet long, 60 feet between centers of trucks, and 14 feet high.
- (j) The minimum side clearance for material, merchandise, or other articles adjacent to tracks shall be 8'6".

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- (k) Engine houses, shop buildings, and passenger platforms, at car floor height, are exempt from this rule.

**7326. Track Clearances.**

- (a) Generally. The minimum distance between the center lines of parallel standard gauge railroad tracks, which are used or proposed to be used for transporting freight cars, shall be 14'0", except as hereinafter prescribed.
- (b) Main and subsidiary tracks.
  - (I) The minimum distance between two parallel main tracks shall be 14'0".
  - (II) The minimum distance between main and passing tracks shall be 15'0".
  - (III) When another track is constructed adjacent to a passing track the clearance may be as prescribed in paragraph (a).
- (c) The minimum clearance between center lines of parallel team, house, or industry tracks shall be 13'0".
- (d) Ladder tracks.
  - (I) The minimum clearance between a ladder track and any parallel track, except another ladder track, shall be 17'0".
  - (II) The minimum clearance between a ladder track and another parallel ladder track shall be 20'0".
- (e) Existing tracks. Existing tracks built prior to June 1, 1952 may be extended at the railroad company clearances prevailing at the time the tracks were built.

**7327. Public Highway and Pathway Crossings.**

- (a) Where a public highway or pathway crosses above any railroad or rail fixed guideway system track used or proposed to be used for transporting freight cars or passenger cars, minimum overhead and side clearances as set forth in this rule must be observed.
- (b) Overhead clearances.

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- (I) Where a railroad or rail fixed guideway system crosses above any public highway, a minimum overhead clearance of 14'0" shall be provided above the surface of such highway.
  - (II) Where a railroad or rail fixed guideway system crosses any public highway of the State Highway System or any Federal Aid Highway, a minimum overhead clearance of 16'0" shall be provided above the surface of such highway.
  - (III) Where a railroad or rail fixed guideway system crosses above any public pathway, a minimum overhead clearance of 10'0" shall be provided above the surface of such pathway.
- (c) Minimum opening clearances.
- (I) Where a railroad or rail fixed guideway system crosses above any public highway on a single supporting span, a minimum width of 26'0" shall be provided for the opening for such highway.
  - (II) Where a railroad or rail fixed guideway system crosses any public highway of the State Highway System, or any Federal Aid Highway, on a single supporting span, a minimum width of 30'0" shall be provided for the opening of such highway.
  - (III) Where two or more supporting spans are used for such an opening, the minimum widths specified in subparagraphs (I) and (II) of this paragraph shall be provided for each of such supporting spans.
  - (IV) Where a railroad or rail fixed guideway system crosses above any public pathway, on a single supporting span, a minimum clear width of 8'0" shall be provided for the opening of the pathway if the pathway is for pedestrian use only, and a minimum clear width of 12'0" shall be provided for the opening of the pathway if the pathway is a shared use pathway for pedestrian and bicycle use.

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**7328. General Conditions.**

- (a) No restricted clearance set out in rules 7320 through 7328 shall apply to falsework, shoo-fly tracks, or other temporary emergency conditions caused by derailments, washouts, slides, or other unavoidable disasters.
- (b) No restricted clearances set out in rules 7320 through 7328 shall apply to ballast, track material, or construction material unloaded on and adjacent to tracks for contemplated use thereon or in the immediate vicinity, nor shall they apply to falsework or temporary construction necessary on any construction project.

**7329. [Reserved].****Railroad and Hazardous Materials Safety****7330. Applicability.**

Rules 7330 through 7335 apply to all railroads, defined in paragraph 7331(t) and passenger rail systems, defined in paragraph 7331(s).

**7331. Definitions.**

The following definitions apply only in the context of rules 7330 through 7335.

- (a) “Adequacy” has the same meaning as set forth in § 40-20-305(1)(a), C.R.S., and refers to sufficient capabilities, resources, and staffing to meet initial response objectives for hazards likely in the defined area.
- (b) “Class I railroad” has the meaning set forth in §40-20-302(2), C.R.S.
- (c) “Class II railroad” has the meaning set forth in §40-20-302(3), C.R.S.
- (d) “Class III railroad” has the meaning set forth in §40-20-302(4), C.R.S.
- (e) “Coordinate” has the same meaning as used in § 40-20-305, C.R.S., and means to share information, confer, and plan jointly with Emergency Management Organizations, as defined in paragraph 7331(h). Coordination does not require approval by, or the assumption of duties or authority of, any other governmental entity.
- (f) “Defect” means a condition in railroad equipment or infrastructure that violates safety regulations including, but not limited to, hot wheel bearings, hot wheels,

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deficient bearings detected through acoustic means, dragging of equipment, excessive height, excessive weight, a shifted load, a loose hose, improper rail temperature, or a deficient wheel condition.

- (g) “Dragging equipment detector” means an electronic device or other technology that monitors a passing train to actively detect and alert operators of the train of the existence of any objects dragging from the train.
- (h) “Emergency Management Organization” means a local emergency management agency or office established under state or local law, including local emergency planning committees.
- (i) “First Responder Organization” means a fire department, law enforcement agency, emergency medical services provider, or other public safety entity with legal authority under state or local law over the geographic area in which a railroad line or facility is located.
- (j) “Functional Exercise” means an operations-based exercise designed to test capabilities and functions in a realistic, real-time environment; movement of resources may be simulated.
- (k) “Hazardous material” has the meaning set forth in § 40-20-302(10), C.R.S.
- (l) “High-hazard flammable train (HHFT)” has the meaning set forth in § 40-20-305(1)(a), C.R.S.
- (m) “High-consequence hazardous material” means shipments moving as HHFTs or consisting of toxic or poison inhalation hazard materials, as defined in § 40-20-302(10), C.R.S.
- (n) “Hot bearings detector” means an infrared detector located along railroad tracks to detect and alert the operators of a passing train to any overheating of a train’s bearings, or wheels.
- (o) “Hot box detector” means a stationary, infrared detector located wayside that provides continuous, real-time monitoring to detect and alert railroad personnel of train equipment temperature changes allowing for early intervention.



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- (p) “Incident” has the meaning set forth in § 40-20-302(13), C.R.S.
- (q) “Main line” means a segment or route of railroad tracks of any railroad over which five million or more gross tons of railroad traffic is transported annually as documented in timetables filed with the Federal Railroad Administration, pursuant to § 40-20-302(14), C.R.S. Main line does not include tourist, scenic, historic, or excursion operations as defined in § 40-20-302(14), C.R.S.
- (r) “Onboard hot box detector” means an infrared detector located on board a train that provides continuous, real-time monitoring to detect and alert railroad personnel of train equipment temperature changes allowing for early intervention.
- (s) “Passenger rail system” means a rail system as defined in § 32-22-102(9), C.R.S.
- (t) “Railroad” means a person providing railroad transportation.
- (u) “Railroad transportation” means any form of nonhighway ground transportation that runs on rails or electromagnetic guideways. “Railroad transportation” does not include rapid transit operations, public transportation, rail fixed guideway operations, or commuter passenger rail that:
  - (I) is in an urban or a suburban area; and
  - (II) is not connected to a general or an interstate railroad system.
- (v) “Sensitive area protection walkthrough” means a field-based familiarization activity focused on site-specific sensitive environmental or community areas (e.g., waterways, drinking water intakes) to review spill containment and protection strategies.
- (w) “Siding” has the meaning set forth in § 40-20-302(22), C.R.S.
- (x) “Tabletop exercise” means a discussion-based exercise conducted in response to a simulated hypothetical emergency or crisis scenario, that involves key personnel from affected railroads, Emergency Management Organizations, and first responder agencies, and is intended to promote conceptual understanding,

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strengthen coordination, identify strengths and areas for improvement, and evaluate relevant plans, policies, or procedures.

- (y) “Train” means a locomotive unit or locomotive units, with or without cars, that require an air brake test pursuant to § 40-20-302(23), C.R.S.
- (z) “Wayside detector system” means an electronic device or a series of connected devices that monitors a passing train to determine whether the train has a defect, including, but not limited to, a hot box detector, hot bearings detector, and dragging equipment detector.

**7332. Wayside Detector Systems and Reports.**

Starting January 1, 2025, and on or before January 1 of each year thereafter, all railroads operating any main line in the state of Colorado shall submit to the Commission a report, available for public inspection, that discloses the following information regarding wayside detector systems:

- (a) type of wayside detector system;
- (b) general location of wayside detector system;
- (c) spacing of wayside detectors by each type of wayside detector system;
- (d) a description of how each wayside detector system used by the railroad promotes safety;
- (e) a general description of the process by which defects or other detections are managed in order to provide notice to train operators and others for each wayside detector system used by the railroad;
- (f) the percentage of time that each type of wayside detector was operational for the previous year; and
- (g) plans to adjust or improve the wayside detector system or review wayside detector technology.

**7333. [Reserved].****7334. Railroad Safety Training Requirements.**

- (a) Offer of training

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- (I) On or before July 1, 2025, and at least once every three years thereafter, each railroad shall offer safety training to each fire department and other First Responder Organization along track upon which the railroad operates in the state. A railroad may offer such safety training simultaneously to more than one fire department and other First Responder Organization.
- (II) A Class II or Class III railroad may satisfy the training requirements of this rule 7334 by either:
  - (A) entering into an agreement with a Class I railroad to be a partner with the Class I railroad in its training program; or
  - (B) adopting the training programs provided by the Short Line Safety Institute.
- (b) Railroad safety training content.
  - (I) Railroad safety training is required to address the following subject matters:
    - (A) general hazards of hazardous materials;
    - (B) techniques to assess the risks posed to the public emergency responders, and the environment consistent with § 40-20-310(2)(a), C.R.S.;
    - (C) factors an incident commander must consider in determining whether to attempt to suppress a fire or to evacuate the public and emergency responders from an area;
    - (D) railroad-specific hazards;
    - (E) method and timing of communications between railroads and fire departments, Emergency Management Organizations, and First Responder Organizations, including emergency notification procedures during an incident;

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- (F) the railroad's procedures for promptly providing the train consist to the appropriate First Responder Organizations, and Emergency Management Organizations, consistent with § 40-20-310(2), C.R.S.;
    - (G) public notification processes;
    - (H) environmental contamination response;
    - (I) resource coordination;
    - (J) other strategies for initial response by emergency responders; and
    - (K) include safety drills that implement suggested protocols or practices for emergency responders to use to safely accomplish the tasks outlined in subparagraphs 7334(b)(I)(A-J) above.
  - (II) Railroad safety training may be offered through virtual based training, in-person/on-site training, or a combination of both. Training for the topics identified in subparagraphs 7334(b)(I)(A-K) above may be offered through a single course or may be addressed over a series of courses.
  - (III) The railroads are required to keep records for each person receiving railroad safety training including date, time, location, and scope of training and should be available to the Commission upon request.
- (c) Railroad safety drills.
- (I) Each railroad shall coordinate with the Department of Public Safety to conduct the following annual safety drills with other federal, regional, state, and local agencies:
    - (A) at least one hazardous materials response tabletop scenario involving a derailment and release of crude oil or other flammable materials;
    - (B) at least one hazardous materials response tabletop scenario involving a derailment involving inhalation hazards; and

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- (C) at least one oil containment, recovery, and sensitive area protection walkthrough; tabletop exercise; or functional exercise involving oil or hazardous substances.
  - (II) Every five years, each railroad shall conduct at least one full-scale functional exercise in coordination with Emergency Management Organizations and local fire chiefs, consistent with § 40-20-310(2)(b), C.R.S.
  - (III) Exercises shall be designed using scenarios and scopes aimed at thoroughly testing and applying the safety train concepts specified in paragraph 7334(b).
  - (IV) Any oil-spill or hazardous-substance response plan exercise required by a federal agency, state agency, Emergency Management Organization, or First Responder Organization may be conducted as part of, or in conjunction with, the railroad safety drills required under this paragraph 7334(c). Participation in such combined exercises shall satisfy the corresponding requirement of this subsection, provided that the combined exercise meets or exceeds the scope and objectives of the railroad safety drills described herein.
- (d) Communications.
- (I) Railroads shall perform quarterly testing of communication between wayside detectors, trains, train crews, and railroad dispatch centers to ensure operational readiness throughout Colorado.
  - (II) Railroads shall update, on an annual basis, contact information for their dispatch center with the Department of Public Safety and the Public Safety Answering Point centers responsible for the area in which an accident or incident could occur.

**7335. Incident Response Requirements.**

- (a) A railroad that accommodates high-hazard flammable trains or high-hazard high-consequence hazardous material shall coordinate with the Department of Public Safety regarding emergency response and spill response capacity and planning.
- (b) Railroads shall coordinate incident response efforts with local law enforcement agencies and the Hazardous Materials Section of the Colorado State Patrol.
- (c) Each railroad shall coordinate with the Department of Public Safety regarding the adequacy of caches of equipment, supplies, and available staff to mitigate all hazards likely within the area covered by each cache, consistent with § 40-20-305(1)(a), C.R.S., and in assessing adequacy, consideration shall include:
  - (I) fire suppression foam and foam systems;
  - (II) absorbent materials and containment booms;
  - (III) specialized leak mitigation and repair kits;
  - (IV) chemical protective clothing;
  - (V) personnel decontamination supplies;
  - (VI) interoperable communication equipment; and
  - (VII) response times.
- (d) Railroads shall ensure that First Responder Organizations have access, as needed during an incident, to cached equipment owned or maintained by the railroad or its contractors that is necessary to respond to rail incidents.
- (e) The resources described in subparagraphs 7335(b)(I-VII) may be maintained:
  - (I) through partnerships with federal, state, county, or local agencies including local fire departments and police departments; or
  - (II) pursuant to contracts with other railroads or emergency response entities.
- (f) Nothing in this rule 7335 creates any duty for a local government, except that a local government may agree to assume duties delegated to the local government by a railroad.

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- (g) A railroad may partner with one or more counties or other regional entities to support regional hazardous materials teams and capabilities, provided such partnerships are consistent with the definitions of “coordinate” and “adequacy” set forth in rule 7331.

**7336. – 7339. [Reserved].****State Safety Oversight Program Standard for Rail Fixed Guideway Public Transportation Systems****7340. Applicability.**

Rules 7341 through 7363 apply to all transit agencies and rail fixed guideway systems operating within the State of Colorado, which agencies or systems are regulated by the Commission pursuant to Title 40, Article 18, C.R.S.

**7341. Definitions.**

The following definitions apply only in the context of rules 7341 through 7363:

- (a) “Accountable executive” means a single identifiable individual who has ultimate responsibility for carrying out the PTASP of a RTA; responsibility for carrying out the RTA’s TAMP; and control or direction over the human and capital resources needed to develop and maintain both the RTA’s PTASP, in accordance with 49 U.S.C. 5329(d), and the RTA’s TAMP in accordance with 49 U.S.C. 5326.
- (b) “Assault on a transit worker” means, as defined under 49 U.S.C 5302, a circumstance in which an individual knowingly, without lawful authority or permission, and with intent to endanger the safety of any individual, or with a reckless disregard for the safety of human life, interferes with, disables, or incapacitates a transit worker while the transit worker is performing the duties of the transit worker.
- (c) “Audit” means a review and analysis of records and related materials.
- (d) “Cameras” means any device that can produce audio and image recordings capable of providing a means to continuously record and verify actions.
- (e) “CDC” means the Center for Disease Control and Prevention of the United States Department of Health and Human Services.

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- (f) “C.F.R.” means the Code of Federal Regulations.
- (g) “Chief safety officer” means an adequately trained individual who has responsibility for safety and reports directly to a RTA’s chief executive officer, general manager, president, or equivalent officer. A chief safety officer may not serve in other operational or maintenance capacities.
- (h) “Collision” means any impact between a rail transit vehicle and any other vehicle, object, or any person.
- (i) “Contractor” means an entity that performs tasks on behalf of an SSOA, or a RTA through contract or other agreement. The RTA is not a contractor for the Commission.
- (j) “Corrective action plan” (CAP) means a plan developed by the RTA that describes the actions the RTA will take to address an identified deficiency or safety concern, and report to the Commission, to minimize, control, correct, or eliminate safety risks and hazards with a high-risk safety assessment code of 1A, 2A, 1B, or 2B, a serious safety risk assessment code of 1C, 2C, 3A, or 3B, or resulting from a reportable safety event, and the schedule for implementing those actions. Either the SSOA or the RTA may require a RTA to develop and carry out a CAP.
- (k) “Derailment” means a safety event in which one or more wheels of a rail transit vehicle unintentionally leaves the rails.
- (l) “Designated personnel” means:
  - (I) employees and contractors identified by a RTA whose job functions are directly responsible for safety oversight of the RFGPTS of the RTA; or
  - (II) employees and contractors of a SSOA whose job functions require them to conduct reviews, inspections, examinations, and other safety oversight activities of the RFGPTS subject to the jurisdiction of the SSOA.
- (m) “Directly responsible for safety oversight” means RTA personnel whose primary job function includes the development, implementation, and review of the RTA’s



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safety plan and/or the SSOA requirements for the RFGPTS pursuant to 49 CFR part 674.

- (n) “Disabling damage” means damage to a rail transit vehicle resulting from a collision and preventing the vehicle from operating under its own power.
- (o) “Emergency” means, as defined under 49 U.S.C. 5324, a natural disaster affecting a wide area (such as a flood, hurricane, tidal wave, earthquake, severe storm, or landslide) or a catastrophic failure from any external cause, as a result of which the Government of a State has declared as emergency and the Secretary has concurred; or the President has declared a major disaster under section 401 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170).
- (p) “Evacuation for life safety reasons” means a condition that occurs when persons depart from transit vehicles or facilities for life safety reasons, including self-evacuation. A life safety reason may include a situation such as a fire, the presence of smoke or noxious fumes, a fuel leak from any source, an electrical hazard, or other hazard to any person. An evacuation of passengers into the rail right of way (not at a platform or station) for any reason is presumed to be an evacuation for life safety reasons.
- (q) “Examination” means a process for gathering or analyzing facts or information related to the safety of a RFGPTS.
- (r) “Fatality” means a death confirmed within 30 days of a safety event. Fatalities include suicides, but do not include deaths in or on RTA property that are a result of drug overdose, exposure to the elements, illness, or natural causes.
- (s) “Finding” means non-compliance with the RTA’s PTASP, rules, procedures, programs, or other regulatory guidelines, which results in the formulation of a CAP.
- (t) “FRA” means the Federal Railroad Administration, an agency of the United States Department of Transportation.

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- (u) “FTA” means the Federal Transit Administration, an agency of the United States Department of Transportation.
- (v) “Hazard” means any real or potential condition that can cause injury, illness, or death; damage to or loss of the facilities, equipment, rolling stock, or infrastructure of a RFGPTS; or damage to the environment.
- (w) “Initial training” means the group of specific courses an individual must complete within three years of enrollment in the PTSCTP to receive their first program certificate.
- (x) “Injury” means any harm to persons as a result of an event that requires immediate medical attention away from the scene. Injury does not include harm resulting from a drug overdose, exposure to the elements, illness, natural causes, or occupational safety events occurring in administrative buildings.
- (y) “Inspection” means a physical observation of equipment, facilities, rolling stock, operations, personnel, or records for the purpose of gathering or analyzing facts or information.
- (z) “Investigation” means the process of determining the causal and contributing factors of a safety event or hazard, for the purpose of preventing recurrence and mitigating safety risk.
- (aa) “Joint labor-management process” means a formal approach to discuss topics affecting transit workers and the public transportation system.
- (bb) “National public transportation safety plan” (NPTSP) means the plan to improve the safety of all public transportation systems that receive Federal financial assistance under 49 U.S.C. Chapter 53.
- (cc) “Near-miss” means a narrowly avoided safety event.
- (dd) “NTSB” means the National Transportation Safety Board, an independent Federal agency.

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- (ee) “Passenger” means a person who is on board, boarding, or alighting from a rail transit vehicle for the purpose of travel.
- (ff) “Passenger operations” means the period of time when any aspect of RTA operations are initiated with the intent to carry passengers.
- (gg) “Performance measure” means an expression based on a quantifiable indicator of performance or condition that is used to establish targets and to assess progress toward meeting the established targets.
- (hh) “Person” means a passenger, transit worker, contractor, volunteer, official worker, pedestrian, trespasser, or any other individual on the property of a RFGPTS or associated infrastructure.
- (ii) “Potential consequence” means the effect of a hazard.
- (jj) “Procedure” means an established or official way of doing something.
- (kk) “Process” means a series of actions or steps taken to achieve a particular end.
- (ll) “Program standard” means the standards in rules 7340 through 7363, which codify the policies, objectives, responsibilities, and procedures used to provide RTA safety oversight.
- (mm) “Public transportation” means, as defined under 49 U.S.C. 5302, regular continuing shared-ride surface transportation services that are open to the general public or open to a segment of the general public defined by age, disability, or low income. Public transportation does not include:
  - (I) intercity passenger rail transportation provided by the entity described in 49 U.S.C. chapter 243 (or a successor to such entity);
  - (II) intercity bus service;
  - (III) charter bus service;
  - (IV) school bus service;

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- (V) sightseeing service;
- (VI) courtesy shuttle service for patrons of one or more specific establishments; and
- (VII) intra-terminal or intra-facility shuttle services.
- (nn) “Public Transportation Agency Safety Plan” (PTASP) means the documented comprehensive agency safety plan for a transit agency, including a RTA, that is required by 49 U.S.C. 5329 and established by the regulations set forth in 49 C.F.R. Part 673, and based on an SMS.
- (oo) “Public transportation safety certification training program” (PTSCTP) means the certification training program required by 49 U.S.C. 5329(c) and established by the regulations set forth in 49 C.F.R. Part 672.
- (pp) “Rail fixed guideway public transportation system” (RFGPTS) means any rail fixed guideway system, or any such system in engineering or construction as defined in paragraph 7001(d) that use rail, is operated for public transportation, is within the jurisdiction of the Commission, and are not subject to the jurisdiction of the FRA. These include, but are not limited to, rapid rail, heavy rail, light rail, monorail, trolley, and automated guideway that are under the jurisdiction of the Commission.
- (qq) “Rail transit agency” (RTA) means any entity that provides services on a RFGPTS.
- (rr) “Rail transit vehicle” means any rolling stock used on a RFGPTS, including but not limited to passenger and maintenance vehicles.
- (ss) “Recommendation” means a suggestion or proposal for improvements to how the PTASP is implemented by a RTA.
- (tt) “Record” means any writing, drawing, map, recording, diskette, DVD, CD-ROM, tape, film, photograph, electronic file, or other documentary material by which information is preserved. The term record also includes any such documentary material stored electronically.

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- (uu) “Revenue vehicle” means a rail transit vehicle used to provide revenue service for passengers. This includes providing fare free service.
- (vv) “Risk” means the composite of predicted severity and likelihood of the potential effect of a hazard.
- (ww) “Risk-based inspection program” means an inspection program that uses qualitative and quantitative data analysis to inform ongoing inspection activities. Risk-based inspection programs are designed to prioritize inspections to address safety concerns and hazards associated with the highest levels of safety risk.
- (xx) “Risk mitigation” means a method or methods to eliminate or reduce the effects of hazards.
- (yy) “Roadway” means land on which rail transit tracks and support infrastructure have been constructed to support the movement of the RTA’s vehicles, excluding station platforms.
- (zz) “Safety” means freedom from harm resulting from unintentional acts or circumstances.
- (aaa) “Safety assurance” means processes within a RTA’s SMS that function to ensure the implementation and effectiveness or safety risk mitigation, and to ensure that the RTA meets or exceeds its safety objectives through the collection, analysis, and assessment of information.
- (bbb) “Safety committee” means the formal joint labor-management committee on issues related to safety that is required by 49 U.S.C. 5329.
- (ccc) “Safety event” means an unexpected outcome resulting in injury or death; damage to or loss of the facilities, equipment, rolling stock, or infrastructure of a public transportation system; or damage to the environment.
- (ddd) “Safety management policy” means a RTA’s documented commitment to safety, which defines the RTA’s safety objectives and the accountabilities and responsibilities for the management of its safety.

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- (eee) “Safety management system” (SMS) means the formal organization-wide approach to managing safety risk and assuring the effectiveness of a RTA’s safety risk mitigation. SMS includes systematic procedures, practices, and policies for managing hazards and safety risks.
- (fff) “Safety management system executive” means a chief safety officer or an equivalent.
- (ggg) “Safety performance target” means a quantifiable level of performance or condition, expressed as a value for the measure, related to safety management activities, to be achieved within a specified time period.
- (hhh) “Safety promotion” means a combination of training and communication of safety information to support SMS as applied to the RTA’s RFGPTS.
- (iii) “Safety review” means a review or analysis of safety records and related materials.
- (jjj) “Safety risk” means the composite of predicted severity and likelihood of a potential consequence of a hazard.
- (kkk) “Safety risk assessment” means the formal activity whereby a RTA determines safety risk management priorities by establishing the significance or value of its safety risks.
- (III) “Safety risk assessment code” means the combination of a severity ranking and a likelihood level to identify the safety risk of a specific hazard as defined in paragraph 7350(d).
- (mmm) “Safety risk management” means a process within a RTA’s safety plan for identifying hazards and analyzing, assessing, and mitigating the safety risk of the potential consequences of each hazard.
- (nnn) “Safety risk mitigation” means a method or methods to eliminate or reduce the severity and/or likelihood of a potential consequence of a hazard.

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- (ooo) “Safety set-aside” means the allocation of not less than 0.75 percent of assistance received by a RTA under 49 U.S.C. 5307 to safety-related projects eligible under 49 U.S.C. 5307.
- (ppp) “State of good repair” means the condition in which a capital asset is able to operate at a full level of performance.
- (qqq) “State safety oversight agency” (SSOA) means the Colorado Public Utilities Commission, the agency established by Colorado that meets the requirements and performs the functions specified by 49 U.S.C. 5329(e) and (k) and the regulations set forth in 49 C.F.R. Part 674.
- (rrr) “Testing” means an assessment of equipment, facilities, rolling stock, or operations of a RFGPTS.
- (sss) “Transit asset management plan” (TAMP) means a plan developed by a RTA that includes, at a minimum, capital asset inventories and condition assessments, decision support tools, and investment prioritization.
- (ttt) “Transit worker” means any employee, contractor, or volunteer working on behalf of the transit agency.
- (uuu) “U.S.C.” means the United States Code.
- (vvv) “Unintended train movement” means any instance where a revenue vehicle is moving and is not under the control of a driver (whether or not the operator is physically on the vehicle at the time). This applies regardless of whether the event occurred in revenue service.

**7342. Incorporation by Reference.**

References in these rules to 49 C.F.R. Part 671, Part 672, Part 673 and Part 674 are rules issued by the FTA and are hereby incorporated by reference in these rules. These rules may be found at 49 C.F.R. Part 671, Part 672, Part 673 and Part 674 revised as of March 20, 2025. References to 49 C.F.R. Part 671, Part 672, Part 673 and Part 674 do not include later amendments to, or editions of, 49 C.F.R. Part 671, Part 672, Part 673 and Part 674. A copy of all material that has been incorporated by reference is maintained at the offices of the Colorado Public Utilities Commission, 1560 Broadway,

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Suite 250, Denver, Colorado 80202, and is available for inspection during normal business hours. Copies of the incorporated rules shall be provided at cost upon request. The Director of the Commission will provide information regarding how 49 C.F.R. Part 671, Part 672, Part 673 and Part 674 may be examined at any state publications depository library. The incorporated federal regulations are also available from the original issuing agency at: [www.govinfo.gov/help/cfr](http://www.govinfo.gov/help/cfr).

**7343. State Safety Oversight Program Management, Policies and Objectives.**

The Commission is the established SSOA for Colorado. The Commission has the statutory authority under § 40-18-102, C.R.S. and obligation to establish a state safety oversight program and minimum safety standards for RFGPTS's under its jurisdiction in accordance with the "Moving Ahead for Progress in the 21st Century Act", 49 U.S.C. sec. 5329, and Title 49 C.F.R. Part 674, which replaced Title 49 C.F.R. Part 659.

- (a) Commission policies and objectives governing state safety oversight activities.
  - (I) The Commission's statutory charge in rail matters is to prevent accidents and promote public safety.
  - (II) The Commission is responsible for establishing standards for RFGPTS safety and procedures to be used by the RTA. The Commission's program standard outlined in rules 7340 to 7363 is consistent with the NPTSP, the PTSCTP, the rules for PTASPs, and all applicable federal and state laws.
  - (III) The Commission is responsible for overseeing the safety performance of RTA practices and procedures, RTA internal safety reviews, and the RTA PTASP to ensure compliance with the program standard and compliance with 49 C.F.R. Part 674 through audits once every three years of the RTA PTASP and in an on-going manner.
  - (IV) The Commission has authority to access and enter each RTA the Commission oversees. This access includes both with advanced notice and without advance notice. Access to restricted areas



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must be allowed with an appropriate attendant. Access includes, but is not limited to, rail transit vehicle repair and maintenance facilities, signal and power facilities, control center, track facilities, and training facilities.

- (V) The Commission must be allowed the capability to physically access each RTA the Commission oversees through an access key card, physical keys, or other method used by the RTA.
- (VI) The Commission's access will be dependent on the necessary safety training and requirements to safely access facilities including, but not limited to, on-track safety training, use of personal protective equipment, facility safety awareness, lock out tag out training, and accompaniment of a RTA transit worker with appropriate communication devices.
- (VII) The Commission has authority to investigate any allegation of noncompliance with the program standard, the RTA PTASP, and the RTA safety policies, practices and procedures pursuant to its statutory authority and federal authority.
- (VIII) The Commission has the authority and capability to audit, inspect, investigate, and enforce the program standard, the RTA PTASP, the RTA safety policies, practices and procedures, address imminent threat to public safety on a RFGPTS, and address non-responsiveness of a RTA to respond to identified issues and implement corrective action in a timely manner. The Commission authority and capability includes inspection of activities, infrastructure, equipment, records, personnel, and data of the RTA.
- (IX) The Commission has the primary responsibility for the investigation of a safety event on a RFGPTS. The Commission may allow the RTA to perform a safety event investigation on its behalf.

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- (X) The Commission may enter into an agreement with a contractor for assistance in overseeing safety event investigations, performing independent safety event investigations, and reviewing safety events, and for expertise the Commission does not have within its own organization.
  - (XI) All SSOA staff and contractors the Commission may employ to work on the Commission's behalf, including those conducting investigations, must comply with the requirements of the PTSCTP as applicable.
  - (XII) SSOA staff shall develop a process and procedures manual to outline how SSOA staff will conduct activities necessary to meet the requirements of the program standard. Any policies and procedures developed by SSOA staff must be developed in consultation with each RTA overseen by the Commission.
- (b) Commission enforcement authority.
- (I) The Commission's oversight and enforcement activities will be conducted in an on-going manner.
  - (II) Imminent threats to public safety.
    - (A) If SSOA staff determines any imminent threats to public safety requiring immediate action from the RTA, SSOA staff shall provide a written request to meet with the chief safety officer, safety department, and necessary rail operations departments for necessary inspections and initial discussion of corrective action, that may include removal of deficient equipment or system infrastructure from service, that will be taken to address the imminent public safety threat.
    - (B) If the initial discussion and CAP development fails to address the imminent public safety threat, SSOA staff shall file a formal complaint with the Commission requesting

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Commission action to correct an unsafe public safety condition.

- (C) If the imminent public safety threat is not addressed upon determination by the Commission through completion of the formal complaint proceeding, the Commission may take additional action up to and including suspending a RTA's applicable RFGPTS operations until the imminent public safety threat is resolved.

(III) RTA non-responsiveness.

- (A) If the RTA fails to complete and implement corrective action in a timely manner pursuant to the requirements of the CAP, SSOA staff shall provide a written request to meet with the chief safety officer, safety department, and necessary rail operations departments to discuss the specific CAP and determine necessary action to complete the CAP and a timeline in which to complete the CAP.
- (B) If discussion with SSOA staff fails to address the RTA non-responsiveness or failure to implement any CAP, SSOA staff shall file a formal complaint with the Commission requesting Commission action to require response and completion of the CAP.
- (C) If required corrective action is not addressed upon determination by the Commission through completion of the formal complaint proceeding, the Commission may take additional action up to and including requiring the accountable executive, the chief safety officer, and others as may be necessary to appear before the Commission for discussion and determination of the failure of the RTA to respond and steps to ensure completion of corrective action and a plan to address the non-responsiveness of the RTA.

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- (c) On-going communication between Commission and RTAs.
  - (I) SSOA staff, the RTA safety department, and other RTA departments as necessary, shall meet monthly to discuss general safety issues, safety events, hazards, CAPs, and any other necessary matters.
  - (II) The SSOA program manager and the RTA chief safety officer or SMS executive shall meet at least quarterly.
  - (III) The SSOA program manager and the RTA accountable executive shall meet at least semi-annually.
  - (IV) The SSOA program manager and the RTA board of directors shall meet at least annually to discuss the annual report.
  - (V) Either SSOA staff or the RTA can request any additional meetings or conference calls on an as needed basis to discuss any general or specific matters.
- (d) Reporting requirements to the FTA.
  - (I) Annual reporting. On or before March 15th of each year, the Commission shall submit the following information to the FTA through FTA's electronic reporting system:
    - (A) the Commission program standard and any referenced program procedures, with an indication of any revisions made to the program standard and procedures since the last annual submittal;
    - (B) evidence that each of its employees and contractors has completed the requirements of the PTSCTP, or, if in progress, the anticipated completion date of the training;
    - (C) a publicly available report that summarizes its oversight activities for the preceding twelve months, describes the causal factors of safety events identified through

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- investigation, identifies the status of corrective actions, identifies any changes to the PTASP, includes the Commission order showing review and approval of the PTASP, and describes the level of effort by the Commission in carrying out its oversight activities;
- (D) a summary of the internal safety reviews conducted by RTAs during the previous twelve months, and the RTA's progress in carrying out CAPs arising under subparagraphs 7348(a)(I) through (VIII).
  - (E) a summary of the triennial audits completed during the preceding twelve months, and the RTA's progress in carrying out CAPs arising from audits conducted in accordance with rule 7352;
  - (F) evidence that the Commission has reviewed and approved any changes to the PTASP during the proceeding 12 months; and
  - (G) certification that the Commission is in compliance with the requirements of 49 C.F.R. Part 674.
- (II) The Commission shall provide a copy of its annual report to the Governor of Colorado and to the RTA board of directors.
  - (III) The Commission shall submit all filings to the FTA electronically using a reporting system specified by FTA.
- (e) Conflict of interest.
- (I) The Commission is legally and financially independent from a RFGPTS for State Safety Oversight activities.
  - (II) The Commission does not employ any individual who provides services to a RFGPTS under the State Safety Oversight of the Commission.

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- (III) The Commission does not provide any public transportation services in Colorado.
- (IV) The Commission shall prohibit a party or entity from providing services to both the Commission and the RTA concerning the PTASP and all State Safety Oversight activities so as to avoid appearances of impropriety or conflict of interest pursuant to § 40-6-123, C.R.S.

**7344. State Safety Oversight Program Standard Development**

The Commission will work with SSOA staff and affected RTAs to develop any necessary changes that may need to be made to revise minimum standards for safety and update the program standard in rules 7340 through 7363 as required or as needed. The Commission will require SSOA staff to review the program standard and any procedures manuals at least annually to determine if changes are required or needed. The Commission will use its rulemaking proceeding, as outlined in rule 1306, to review, adopt, and revise its minimum standards for safety and will distribute those revised standards through publication in the Colorado Register upon completion of the rulemaking process and through its website.

**7345. Public Transportation Agency Safety Plan.**

Every RTA must establish and maintain a written PTASP. The PTASP must be consistent with the regulations implementing such plans, consistent with the NPTSP, based on the principles of SMS, and in compliance with the requirements of rule 7345. The RTA will establish a PTASP that complies with the program standard and includes the following sections.

- (a) Safety management policy. The RTA must establish its organizational accountabilities and responsibilities and have a written statement of safety management policy that includes the RTA's safety objectives. The safety management policy section of the PTASP shall contain the following information.
  - (I) Introduction.

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- (A) A safety management policy supporting the PTASP signed by the accountable executive and the chief safety officer or safety management system executive of the RTA and approved by the board of directors. Additionally, the safety management policy must:
  - (i) establish the RTA's organizational accountabilities and responsibilities and have a written statement of the safety management policy that includes the RTA's safety objectives and annual safety performance targets based on the safety performance measures established under the NPTSP and a description of the RTA's safety committee;
  - (ii) establish and implement a process that allows transit workers to report safety concerns, including assaults on transit workers, near-misses, and unsafe acts and conditions to senior management, includes protections for transit workers who report, and includes a description of transit workers behaviors that may result in disciplinary action;
  - (iii) state how the policy will be communicated throughout the RTA;
  - (iv) state the legal authority for the PTASP;
  - (v) establish the necessary authorities, accountabilities, and responsibilities for the management of safety including organizational diagrams of the RTA and the safety unit that identify the lines of authority and communications used by the RTA amongst the following individuals or groups including the:
    - (1) accountable executive;
    - (2) chief safety officer or SMS executive;
    - (3) joint labor-management safety committee;

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- (4) RTA leadership and executive management; and
  - (5) key staff.
- (II) PTASP implementation and maintenance. The PTASP implementation and maintenance section of the PTASP shall contain the following information:
  - (A) specified process and time intervals between PTASP reviews to determine whether or not the PTASP needs to be revised because of changed operating conditions and/or system modifications;
  - (B) a detailed description of the PTASP revision process including the identification of the transit workers responsible for initiating, developing, and approving changes to the PTASP; and
  - (C) a statement that the Commission will be notified of all changes to the PTASP and supplied with a copy of all revised pages.
- (III) Emergency preparedness and response plans and procedures. The PTASP must include or incorporate by reference an emergency preparedness and response plan or procedures that address, at a minimum:
  - (A) the assignment of transit worker responsibilities during an emergency;
  - (B) coordination with federal, state, regional, and local officials with roles and responsibilities for emergency preparedness and response in the RTA's service area;
  - (C) any policy and procedures regarding rail transit workers on the roadway the RTA has issued; and
  - (D) the RTA policies and procedures developed in consultation with the SSOA to provide access and required data for the SSOA's safety risk-based inspection program.



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- (IV) The PTASP must include a safety risk reduction program for transit operations to improve safety performance by reducing the number and rates of safety events, injuries, and assaults on transit workers. The safety risk reduction program must, at a minimum:
  - (A) address the reduction and mitigation of vehicular and pedestrian safety events involving rail transit vehicles that includes safety risk mitigations;
  - (B) address the reduction and mitigation of assaults on transit workers that includes safety risk mitigations; and
  - (C) include the safety performance targets set by the safety committee for the safety risk reduction program performance measures established in the NPTSP. These targets must be set based on a three-year rolling average of the data submitted by the RTA to the National Transit Database.
- (V) Coordination with metropolitan, statewide, and non-metropolitan planning processes.
  - (A) The RTA must make its safety performance targets available to states and Metropolitan Planning Organizations to aid in the planning process.
  - (B) To the maximum extent practicable, a RTA must coordinate with states and Metropolitan Planning Organizations in the selection of state and Metropolitan Planning Organization safety performance targets.
- (b) Safety risk management. The safety risk management section of the PTASP shall develop and implement a safety risk management process for all elements of its RFGPTS that will be comprised of the following activities including: hazard identification, safety risk assessment, and safety risk mitigation.
  - (I) Hazard identification.

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- (A) Pursuant to 49 U.S.C. Section 5329(d)(1)(C), the RTA must establish methods or processes for identifying hazards and potential consequences of hazards and evaluating safety risks throughout all FTA regulated elements of its public transportation system. For purposes of the requirements of this State Safety Oversight Program Standard, the RTA must establish methods for identifying and evaluating safety risks for its RFGPTS. The methods or processes applicable to the RFGPTS must include a description of:
  - (i) how hazards will be analyzed, evaluated and ranked for elimination or control including hazards associated with operations, maintenance, and engineering;
  - (ii) the process and mechanism used to track identified hazard(s) through resolution to the extent practicable; and
  - (iii) how the RTA will provide on-going reporting of hazard resolution activities to the Commission.
- (B) The RTA must consider as a source for hazard identification;
  - (i) data and information provided by the SSOA and the FTA;
  - (ii) data and information regarding exposure to infectious disease provided by the CDC or state health authority; and
  - (iii) safety concerns identified through safety assurance activities.
- (II) Safety risk assessment.
  - (A) The RTA must establish methods or processes to assess the safety risks associated with identified hazards.
  - (B) A safety risk assessment includes an assessment of the likelihood and severity of the potential consequences of the hazards, taking into account existing safety risk mitigations, to determine if safety

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risk mitigation is necessary and to inform prioritization of safety risk mitigations.

(III) Safety risk mitigation.

- (A) The RTA must establish methods or processes to identify safety risk mitigations or strategies necessary as a result of the RTA's safety risk assessment to reduce the likelihood and severity of the potential consequences. The methods or processes must address the role of the RTA's safety committee.
- (B) The RTA must consider, as a source for safety risk mitigation:
  - (i) guidance provided by the SSOA and the FTA; and
  - (ii) guidelines to prevent or control exposure to infectious diseases provided by the CDC or a state health authority.
- (C) When identifying safety risk mitigations for the safety risk reduction program related to vehicular and pedestrian safety events involving rail transit vehicles, including to address a missed safety performance target set by the safety committee, each RTA and its safety committee must consider mitigations, including mitigation efforts already in place already, to reduce visibility impairments for rail transit vehicle operators that contribute to safety events, including retrofits to vehicles in revenue service and specifications for future procurements that reduce visibility impairments.
- (D) When identifying safety risk mitigations for the safety risk reduction program related to assaults on transit workers, including to address a missed safety performance target set by the safety committee, each large urbanized area provider and its safety committee must consider deployment of assault mitigation infrastructure and technology on vehicles and in transit facilities. Assaults mitigation infrastructure and technology includes barriers

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- to restrict the unwanted entry of individuals and objects into the workstations of vehicles.
- (E) As a part of the safety risk reduction program, when the RTA's safety committee identifies and recommends safety risk mitigations, including mitigation efforts already in place and including mitigations relating to vehicular and pedestrian safety events involving vehicles to pedestrian safety events involving vehicles or assaults on transit workers, based on safety risk assessment conducted, the RTA must include or incorporate by reference these safety risk mitigations in its PTASP.
  - (F) When the RTA's safety committee recommends a safety risk mitigation unrelated to the safety risk reduction program, and the accountable executive decides not to implement the safety risk mitigation, the accountable executive must prepare a written statement explaining their decision, pursuant to recordkeeping requirements in paragraph 7345(e). The accountable executive must submit and present this explanation to the RTA's safety committee and board of directors.
- (c) Safety assurance. The RTA must develop and implement a safety assurance process that will be comprised of the following activities including safety performance monitoring and measurement, management of change, and continuous improvement.
- (l) Safety performance monitoring and measurement.
    - (A) The RTA shall monitor its system for compliance with, and sufficiency of, the RTA's procedures for operations and maintenance.
    - (B) The RTA shall monitor its operations to identify any safety risk mitigations that may be ineffective, inappropriate, or were not

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- implemented as intended. These activities must address the role of the RTA's safety committee.
- (C) The RTA shall conduct investigations of safety events to identify causal factors and contributing factors.
  - (D) The RTA shall monitor information reported through any internal safety reporting programs.
- (II) Management of change.
- (A) The RTA must establish a configuration management control process for identifying and assessing changes that may introduce new hazards or impact the RTA's safety performance. The process shall include:
    - (i) the identification of the unit(s) or group(s) of the RTA responsible for ensuring that the hazards associated with the system expansions or modifications are included in the RTA's hazard resolution process and are assessed for the introduction of new hazards or impacts to the RTA safety performance;
    - (ii) participation of operating and safety department transit workers in the design review process for new equipment, new or replacement vehicles, new starts projects, subsequent major projects to extend, rehabilitate, modify, or expand the existing system to ensure that safety concerns and hazards are adequately addressed;
    - (iii) a safety certification and sign-off process for verification of operational readiness of new equipment and system expansions of modifications prior to entering revenue service;

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- (iv) documentation of responsibility and authority for approval of modification exceptions to established design criteria for new equipment and system expansions; and
    - (v) procurement procedures that preclude the introduction into the RFGPTS of unauthorized hazardous materials and supplies, as well as defective or deficient equipment.
  - (B) If the RTA determines that a change may impact its safety performance, then the RTA must evaluate the proposed change through its safety risk management process.
- (III) Continuous improvement.
  - (A) The RTA must establish a process to assess its safety performance annually.
    - (i) This process must include the identification of deficiencies in the RTA's SMS and deficiencies in the RTA's performance against safety performance targets.
    - (ii) This process must also address the role of the RTA's safety committee and include the identification of deficiencies in the RTA's performance against annual safety performance targets set by the safety committee for the safety risk reduction program.
    - (iii) The RTA must also address any specific internal safety review requirements established by the SSOA including the following:
      - (1) identification of the RTA departments and functions subject to review;
      - (2) identification of the RTA's schedule for conducting internal safety reviews and the responsibility for scheduling such reviews;

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- (3) a description of the process for conducting internal safety reviews, including the development of written checklists and procedures and the issuance of findings;
- (4) written documentation of the process and procedures for issuing internal safety review findings including an evaluation of the adequacy and effectiveness of the PTASP;
- (5) a description of the process to assess the RTA's safety performance;
- (6) a process for the review of reporting requirements, identification of any deficiencies as part of the safety performance assessment, and how the RTA will develop and carryout, under the direction of the accountable executive and chief safety officer a plan to address the identified safety deficiencies;
- (7) a description of the process for tracking the status of implemented recommendations;
- (8) a requirement for an annual internal safety review and audit report, a copy of which must be submitted to the Commission by February 15th each year, which summarizes the results of the internal safety reviews performed during the previous year, including a summary of required corrective actions taken, if any, and provision for follow up to ensure timely implementation and to determine effectiveness; and
- (9) coordination with the Commission.

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- (B) The RTA must assess and monitor safety performance against annual safety performance targets set by the safety committee for the safety risk reduction program.
  - (i) Assessment of safety performance must include a procedure for safety events, and hazard notification, reporting and investigation. This procedure shall comply with rules 7348, 7349, and 7350 and shall include the following:
    - (1) notification thresholds for internal and external organizations;
    - (2) the criteria for determining which safety events require investigation and who is responsible for conducting the investigation;
    - (3) a description of the safety risk management process and safety assurance process and procedures used for conducting safety event investigations which include the reporting of findings to internal and external organizations, conclusions, development, implementation and tracking of corrective actions that address investigation findings, and follow up to verify corrective action implementation; and
    - (4) coordination with the Commission.
  - (ii) A description of the process used to monitor, collect, maintain, analyze and distribute safety data, including data and information provided to the RTA by the SSOA, the FTA, and any internal safety reporting programs to ensure that the safety function within the RTA receives the necessary information to support implementation of the PTASP.



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- (C) If the RTA does not meet an established annual safety performance target set by the safety committee for the safety risk reduction program, it must:
  - (i) assess associated safety risk using the methods or processes established under subparagraph 7345(b)(II);
  - (ii) mitigate associated safety risk based on the results of a safety risk assessment using the methods or processes established under subparagraph 7345(b)(III). The RTA must include these mitigations in the PTASP describe in subparagraph 7345(c)(III)(D) and in the PTASP as described in subparagraph 7345(b)(III); and
  - (iii) allocate its safety set-aside in the following fiscal year to safety-related projects eligible under 49 U.S.C 5307 that are reasonably likely to assist the RTA in meeting the safety performance target in the future.
- (D) The RTA must develop and carry out, under the direction of the accountable executive, a plan to address any deficiencies identified through the safety performance assessment as described in this rule 7345.
- (d) Safety promotion. The safety promotion section of the PTASP shall develop and implement a safety promotion process for the RTA that will include the following activities: establish competencies and training and safety communication.
  - (l) Competencies and training.
    - (A) Safety certification and training for those directly responsible for safety.
      - (i) The RTA must establish and implement a comprehensive PTSCPT safety certification training program for all transit workers and contractors directly responsible for safety in the RTA's public transportation system. The training program

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must include de-escalation training, safety concern identification and reporting training, and refresher training, as necessary. The PTSCTP training program must include training and certification, drug and alcohol testing, as well as information about drug and alcohol abuse, and a hazardous materials program. The PTSCTP training program shall include a description of the training material and documentation of training test scores and dates and the RTA must maintain such training records. The comprehensive transit worker PTSCTP training program shall apply to personnel directly responsible for safety of the RFGPTS and shall comply with the requirements of the PTSCTP. Maintenance transit workers must be included in the PTSCTP safety training program. The transit workers training and certification shall also include:

- (1) categories of safety-related work requiring training and certification;
- (2) a description of the training and certification program for transit workers and contractors in safety-related positions including a description of the training material used;
- (3) a process used to maintain and access transit workers and contractor records including documentation of training test scores and dates, when applicable; and
- (4) a process used to assess compliance with training and certification requirements.

- (B) Safety training for all RTA employees.

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- (i) The RTA must establish and implement a comprehensive training program for all transit workers in the agency's public transportation system. The training program must include refresher training, as necessary. The program must include training and certification, drug and alcohol testing, as well as information about drug and alcohol abuse, and a hazardous materials program. The transit worker training program shall include a description of the training material and documentation of training test scores and dates and must maintain such training records. The comprehensive transit worker training shall also include:
    - (1) categories of safety-related work requiring training and certification;
    - (2) a description of the training and certification program for transit workers positions including a description of the training material used;
    - (3) a process used to maintain and access transit worker records including documentation of training test scores and dates, when applicable; and
    - (4) a process used to assess compliance with training and certification requirements.
- (II) Safety communication.
  - (A) The RTA must communicate safety and safety performance information throughout the RTA's organization that, at a minimum, conveys information on hazards and safety risks relevant to transit workers roles and responsibilities and informs transit workers of safety actions taken in response to reports submitted through a transit worker safety reporting program. The RTA must also

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communicate the results of cooperation with frontline transit workers representatives and the safety committee activities.

- (e) Safety plan documentation. The RTA must maintain documents that set forth its PTASP, including those related to the implementation of its SMS, and results from SMS processes and activities. The RTA must maintain documents that are included in whole, or by reference, that describe the programs, policies, and procedures that the RTA uses to carry out its PTASP. These documents must be made available upon request by the FTA or other federal entity, or the SSOA. The RTA must maintain these documents for a minimum of three years after they are created.
- (f) Safety committee. A RTA is required to form a safety committee that:
  - (I) is appropriately scaled to the size, scope, and complexity of the RTA;
  - (II) is convened by a joint labor-management process; and
  - (III) consists of an equal number of:
    - (A) frontline transit worker representatives, selected by a labor organization representing the plurality of the frontline workforce employed by the RTA that must include frontline transit worker representatives from major transit service functions, such as operations and maintenance, across the RTA; and
    - (B) management representatives.
  - (IV) Safety committee procedures. The RTA must include or incorporate by reference in its PTASP procedures regarding the composition, responsibilities, and operations of the safety committee which, at a minimum, must address:
    - (A) the organizational structure, size, and composition of the safety committee and how it will be chaired;
    - (B) how meeting agendas and notices will be developed and shared, and how meeting minutes will be recorded and maintained;

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- (C) any required training for safety committee members related to the RTA's PTASP and the processes, activities, and tools to support the RTA's SMS;
  - (D) the compensation policy established by the RTA for participation in safety committee meetings;
  - (E) how the safety committee will access technical experts, including other transit workers, to serve in an advisory capacity as needed; RTA information, resources, and tools; and submissions to the transit worker safety reporting program to support its deliberations;
  - (F) how the safety committee will reach and record decisions;
  - (G) how the safety committee will coordinate and communicate with the RTA's board of directors and the accountable executive;
  - (H) how the safety committee will manage disputes to ensure it carries out its operations. The safety committee may use the dispute resolution or arbitration process from the RTA's Collective Bargaining Agreement, or a different process that the safety committee develops and agrees upon, but the accountable executive may not be designated to resolve any disputes within the safety committee; and
  - (I) how the safety committee will carry out its responsibilities identified in paragraph 7345(f).
- (V) The safety committee must conduct the following activities to oversee the RTA's safety performance.
- (A) Review and approve the PTASP and any updates required.
  - (B) Set annual safety performance targets for the safety risk reduction program.
  - (C) Support operation of the RTA's SMS by:

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- (i) identifying and recommending safety risk mitigations necessary to reduce the likelihood and severity of potential consequences identified through the RTA's safety risk assessment, including safety risk mitigations associated with any instance where the RTA did not meet an annual safety performance target in the safety risk reduction program;
  - (ii) identifying safety risk mitigations that may be ineffective, inappropriate, or were not implemented as intended, including safety risk mitigations associated with any instance where the RTA did not meet an annual safety performance target in the safety risk reduction program; and
  - (iii) identifying safety deficiencies for purposes of continuous improvement, including any instance where the RTA did not meet an annual safety performance target in the safety risk reduction program.
- (VI) Safety committee responsibilities. The safety committee must conduct the following activities to oversee the RTA's safety performance:
  - (A) review and approve the RTA's PTASP and any updates as required at subparagraph 7345(a)(I)(i);
  - (B) set annual safety performance targets for the safety risk reduction program as required at subparagraph 7345(a)(V)(B);
  - (C) support operation of the RTA's SMS by:
    - (i) identifying and recommending safety risk mitigations necessary to reduce the likelihood and severity of potential consequences identified through the RTA's safety risk assessment, including safety risk mitigations associated with any instance where the RTA did not meet an annual safety performance target in the safety risk reduction program;

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- (ii) identifying safety risk mitigations that may be ineffective, inappropriate, or were not implemented as intended, including safety risk mitigations associated with any instance where the RTA did not meet an annual safety performance target in the safety risk reduction program; and
  - (iii) identifying safety deficiencies for purposes of continuous improvement as required at subparagraph 7345(c)(III), including any instance where the transit agency did not meet an annual safety performance target in the safety risk reduction program.
- (D) establishing safety risk reduction safety performance targets using a three-year rolling average of the data submitted by the RTA to the National Transit Database under 49 U.S.C. Section 5335. Risk reduction safety performance targets are not required to be in place until after FTA updates the NPTSP to include applicable performance measures.

**7346. Submittal and Review of the Public Transportation Agency Safety Plan.**

- (a) On or before November 1st of the first year of operation for new systems, and each November 1st thereafter, each RTA subject to rules 7340 through 7363 shall file its PTASP as an application for Commission approval. The Commission shall give ten days' notice of the filing of the application.
- (b) On or before December 20th, the Commission shall review the plan and shall approve the plan that complies with rules 7340 through 7363. All plans approved shall be approved by Commission order.
- (c) In the event that the Commission finds that the PTSAP does not comply with rule 7345, the Commission shall specify, in writing, the sections not in compliance, recommend appropriate modifications and/or additions necessary to bring the PTASP into compliance, and set a time frame for bringing the PTASP into compliance.

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- (d) On an annual basis, the RTA must certify to the FTA, using the FTA's determined certification method, which the RTA has established and is in compliance with a PTASP meeting the requirements of rule 7345 and approved by the Commission pursuant to this rule.

**7347. Corrective Action Plan (CAP)**

Every RTA required to develop a CAP for the RFGPTS shall develop a CAP for the RFGPTS that is based upon a hazard analysis that complies with the following standards.

- (a) CAP Development. The RTA shall develop a CAP for the following:
- (I) results from safety event investigations, in which the RTA or the SSOA identify causal and contributing factors that require corrective actions;
  - (II) findings of noncompliance from safety reviews or audits performed by the SSOA or RTA internal safety reviews; and
  - (III) any hazard that meets a safety risk assessment code outlined in subparagraphs 7347(d)(I) and (d)(II).
- (b) All CAPs are required to be filed within 45 days of identification of the need for a CAP unless otherwise ordered by the Commission.
- (c) Each CAP and associated hazard analysis shall identify:
- (I) the element or activity identified including the assigned tracking number;
  - (II) the action or actions to be taken by the RTA to minimize, control, correct, or eliminate the safety risks and hazards identified by the CAP;
  - (III) the interim measures the RTA plans to implement to prevent recurrence before the final corrective actions are implemented;
  - (IV) the CAP implementation schedule;
  - (V) the method(s) the RTA will use to validate the effectiveness of the corrective measures;
  - (VI) the individual responsible for the CAP implementation; and



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- (VII) any specific actions required by the Commission.
- (d) A CAP must be reviewed by the Commission or SSOA staff and formally approved by the Commission.
  - (I) For hazards that meet a high safety risk assessment code of 1A, 2A, 1B, or 2B, of paragraph 7350(d), the Commission must review and formally approve the CAP before the RTA begins its safety risk mitigation activities.
    - (A) The Commission shall open an investigation proceeding and notify the RTA by order that a CAP is required.
    - (B) The RTA shall file a CAP and associated hazard analysis, if necessary, in the investigation proceeding within 30 days of the Commission order notifying the RTA that a CAP is required.
    - (C) The Commission shall issue an order in the investigation proceeding approving or rejecting the CAP within 15 days of receiving the RTA's CAP.
    - (D) If the CAP is rejected, the Commission order rejecting the CAP will provide the reasons for rejection and recommended revisions.
    - (E) If the CAP is rejected, the RTA shall submit a revised CAP within 15 days of the Commission's order rejecting the CAP.
    - (F) The Commission shall issue an order in the investigation proceeding approving or rejecting the revised CAP within 10 days of receiving the RTA's revised CAP.
    - (G) If the revised CAP is rejected, the Commission shall initiate its dispute resolution process.
  - (II) For hazards that meet the serious safety risk assessment code of IC, 2C, 3A, or 3B, SSOA staff will review and preliminarily approve the CAP before the RTA begins its safety risk mitigation activities.

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- (A) SSOA staff shall review the proposed CAP through the RTA hazard and CAP tracking system and shall provide preliminary approval of the CAP safety risk mitigation measures.
- (B) If the CAP is rejected by SSOA staff, SSOA staff shall provide reasons for the rejection and recommended revisions.
- (C) If the CAP is rejected, the RTA shall submit a revised CAP within five business days of SSOA staff's rejection of the CAP.
- (III) For hazards that do not meet the safety risk assessment codes outlined in subparagraphs (d)(I) or (d)(II) above, a CAP is not required.
- (IV) If an emergency corrective action must be taken immediately to ensure safety, the RTA must notify SSOA staff immediately of the issue and then must follow up with the Commission for subsequent review and approval of a CAP pursuant to the criteria outlined in (I) above within 30 days of the Commission order requiring a CAP, or must follow up with SSOA staff for subsequent review and preliminary approval of a CAP pursuant to the criteria outlined in (II) above within 45 days.
- (V) If an interim corrective action needs to be taken immediately including, but not limited to, information that needs to be included in daily train orders, bulletin distribution, or emergency training to ensure safety, the RTA must notify SSOA staff immediately of the issue by email and then must follow-up with SSOA staff for subsequent review and approval of the interim measures for the CAP pursuant to the criteria outlined in subparagraph (II) above within 15 days.
- (VI) The Commission will review and provide final approval of CAPs on a quarterly basis.
- (e) The Commission's dispute resolution process will be used to resolve disputes between the Commission and the RTA, or SSOA staff and the RTA resulting from the development or enforcement of a CAP.

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- (f) The Commission will evaluate the findings from any NTSB accident investigation and will determine if a CAP should be developed by either the Commission or the RTA to address the NTSB findings.
- (g) The RTA must provide to the Commission the following information:
  - (I) verification that the corrective action(s) has been implemented as described in the CAP, or that a proposed alternate action(s) has been implemented subject to Commission review and approval; and
  - (II) periodic reports requested by the Commission describing the status of each corrective action(s) not completely implemented as described in the CAP.
- (h) The Commission will monitor and track the implementation of each approved CAP using the following procedure:
  - (I) The RTA shall submit quarterly reports on the status of the actions and activities contained in the CAP. The quarterly report shall address, at a minimum, the following:
    - (A) actions and activities associated with the CAP that has occurred in the interim or since the last report;
    - (B) a statement as to whether the actions and activities are on-schedule, behind schedule, or ahead of schedule;
    - (C) if actions and activities are behind schedule, a statement as to the causes of the delay and the planned measures to meet the schedule;
    - (D) any changes in key transit workers assigned to implementing the CAP;
    - (E) any management issues;
    - (F) effectiveness of safety measures;
    - (G) a statement as to the effectiveness of actions and/or activities that have already been implemented; and

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- (H) if a like safety event and/or hazardous condition has been identified subsequently to the CAP, a statement about the possible impacts on the CAP.
- (II) The Commission shall actively monitor the progress of the CAP by meeting periodically with the RTA and shall develop a monitoring plan in cooperation with the RTA.
- (III) The Commission may monitor the RTA's progress in carrying out a CAP through unannounced, on-site inspections, or any other means the Commission deems necessary or appropriate.
- (IV) All CAP related correspondence between the Commission and the RTA will include a CAP tracking number.
- (V) The Commission shall have access to the RTA computerized log for tracking and recordkeeping of CAPs, shall monitor all quarterly status reports, additional information, and information from the finalization of the CAP, and shall check CAP due dates.

**7348. Safety Event Notification.**

- (a) The Commission shall require the RTA to notify SSOA staff and the FTA within two hours of any safety event occurring on a RFGPTS where one or more of the following occurs:
  - (I) a fatality;
  - (II) two or more injuries;
  - (III) a derailment;
  - (IV) a collision resulting in one or more injuries;
  - (V) a collision between two rail transit vehicles;
  - (VI) a collision resulting in disabling damage to a rail transit vehicle;
  - (VII) evacuation for life safety reasons; or
  - (VIII) unintended train movement.

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- (b) RTAs must notify SSOA staff within two hours of any safety event occurring at a RFGPTS grade crossing that does not meet the notification requirements listed in subparagraphs 7348(a)(I) through (VIII), results in no injuries, or does not result in a fatality. The Commission does not require RTAs to notify the FTA of such safety events.
- (c) The two-hour notification requirement excludes criminal actions that result in fatalities or injuries, such as homicides and assaults.
- (d) RTA's that share tracks with the general railroad system and are subject to FRA notification requirements must notify both SSOA staff and the FTA within two hours of a safety event for which the RTA must also notify the FRA.
- (e) The Commission's required method of notification of safety events is by electronic mail within two hours of the safety event. The RTA shall provide the following information as part of the electronic mail notification:
  - (I) the nature of the safety event as described in subparagraphs 7348(a)(I) through VIII) and paragraph 7348(b) above;
  - (II) the time, date, and location of the safety event;
  - (III) the time and date of the notification to the Commission;
  - (IV) a description of the safety event including vehicles, rail transit vehicles, passengers, persons, all property involved in the safety event, and the direction vehicles and rail transit vehicles were traveling at the time of the safety event, if known; and
  - (V) whether the safety event has been reported to the FRA or the NTSB.

**7349. Investigations and Reporting Procedures for Safety Events.**

- (a) The Commission shall investigate, or cause to be investigated, at a minimum, any safety event meeting the notification thresholds identified in paragraphs 7348(a) and (b).
- (b) No later than June 30, 2027, RTAs must install and use forward facing and operator facing in-cab cameras on all light rail vehicles to record activity at all

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times when the light rail vehicle power is on. RTAs that already have such cameras installed must immediately begin using them to record activity at all times when the light rail vehicle power is on. RTAs must use footage from the cameras to assist in the management of safe light rail operations. In all safety event investigations, whether performed by SSOA staff or the RTA, footage from such cameras must be reviewed.

- (c) The Commission shall use its own investigation procedures or those that have been formally adopted from the RTA and that have been submitted to FTA.
- (d) Investigation of safety events.
  - (I) Each RTA shall investigate safety events on behalf of SSOA staff. SSOA staff may also perform separate, independent investigations at its discretion. If SSOA staff performs a separate, independent investigation, such investigation shall be coordinated with any internal investigation of the safety event by the RTA.
  - (II) When investigating a safety event as defined in paragraphs 7348(a) and (b), the RTA shall give prior sufficient telephone notice to SSOA staff of the times that a safety event investigation team will convene to conduct interviews, inspections, examinations, or tests to determine the cause of the safety event. SSOA staff will oversee a RTA's internal investigation through participation in the RTA's safety event investigation team activities, as necessary, and through monthly investigation review meetings.
  - (III) The RTA shall document its investigation in a written report. The RTA shall submit the report summary describing the investigation activities to the Commission on forms available from the Commission and additional investigation report documentation as needed. The report shall be submitted within 45 days after the safety event occurred and shall state if the report is an initial safety event report because of outstanding documentation needed from outside agencies, or the final safety event report. Reports shall be submitted for all safety events, as specified in

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paragraphs 7348(a) and (b). The safety event report shall contain the following information:

- (A) the name of the RTA and the name of the RFGPTS, if different;
- (B) the following safety event data, if applicable: the safety event date and time; the safety event's location; the type of safety event; whether the safety event occurred at a grade crossing; the number of fatalities; the number of injuries; and the estimated damage in dollars to the rail fixed guideway system, vehicles, or other rail transit-controlled property;
- (C) a written description of the safety event;
- (D) a diagrammatic sketch of the safety event;
- (E) an explanation of the safety event's most probable cause and any additional contributing causes;
- (F) a CAP to prevent reoccurrence of the safety event if a determination is made that a CAP is warranted, or a statement that a CAP is not necessary under paragraph 7347(a);
- (G) the schedule for the implementation of the CAP if a CAP is warranted;
- (H) the signature and title of the transit worker authorized to certify the accuracy of the report, together with the date the report is signed by either an electronic signature or wet ink;
- (I) all photographs of the safety event, or a statement that no such photographs exist;
- (J) any evidence that exists in the form of magnetic media, such as video, forward facing and operator facing in-cab camera footage, event data recorder information, audio recordings of the event, or a statement that none exists;

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- (K) any report from an outside agency that was involved in the investigation (e.g., local police investigation reports or coroners' reports), or a statement explaining why none is available. Copies of police reports must include, if available, information regarding whether a citation or notice of violation was issued and to whom it was issued;
  - (L) a statement regarding whether drug and/or alcohol testing was performed on any RTA transit workers in connection with the safety event, and copies of the results of any such drug and/or alcohol tests or an affidavit reporting the results of any such testing;
  - (M) any witness statements; and
  - (N) any other information, reports, or statements that would aid in the formation of a conclusion as to the cause of the safety event.
- (IV) The RTA shall submit its safety event investigation report, including its CAP and implementation schedule, if necessary, to SSOA staff. The safety event investigation report (but not the CAP or implementation schedule) shall be submitted under seal and identified as a Highly Confidential Report filed in accordance with extraordinary protections afforded by Commission rules and § 40-18-104, C.R.S. Upon submission, such report, in whole or in part, is an investigative report of the Commission, defined in § 40-18-104, C.R.S., that shall be afforded extraordinary protections as highly confidential information while the investigation is an ongoing investigation. Unless modified by subsequent Commission decision, such extraordinary protections shall restrict access to the Highly Confidential Report only to Commissioners, Administrative Law Judges, Commission Advisory staff, SSOA staff, and legal counsel for each of these groups while the investigation is an ongoing investigation; however, the RTA may maintain and use copies of such safety event investigation reports and components thereof to assist in the management



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of safe light rail operations. Once the report is adopted as a final report of the Commission, the final report shall be available to the public with information described in §§ 24-72-204(2)(a)(VIII) and (IX), C.R.S. remaining confidential. This rule is effective for all preliminary investigation reports submitted to the Commission on or after August 6, 2025.

- (V) SSOA staff may request that the Commission consider the RTA's investigation and report thereon. The Commission may, after considering the RTA's investigation and report, make such order as it deems necessary, including an order mandating a SSOA staff investigation. If a SSOA staff investigation is ordered, the Commission shall consider SSOA staff's report and issue an appropriate order. Nothing in this subparagraph shall preclude SSOA staff from, in its discretion, performing its own investigation without an order of the Commission.
- (e) The threshold for the Commission's investigation of safety events is the same as the RTA's threshold for reporting safety events as set forth in paragraphs 7348(a) and (b).
- (f) The Commission authorizes the RTA to conduct investigations on the Commission's behalf and requires the RTA to use investigation procedures that have been formally approved by the Commission.
- (g) Each investigation must be documented in a final report that includes a description of investigation activities, identified causal and contributing factors, and a CAP and hazard analysis if warranted.
- (h) The Commission shall formally adopt a final investigation report for each investigation. Such adoption shall include the following information.
  - (I) If the Commission has conducted the investigation, the Commission shall formally transmit its initial investigation report to the RTA within 45 days of the safety event. The Commission shall formally transmit its final investigation report to the RTA once all required documentation from outside agencies has been provided and included in the report.

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- (II) If the RTA does not concur with the findings of the Commission's safety event investigation report, the RTA agency shall either:
  - (A) request a meeting with SSOA staff to discuss the items of non-concurrence and to negotiate with SSOA staff until a resolution on the findings is reached; or
  - (B) formally transmit the RTA's dissent to the findings of the investigation in writing, to the Commission, and negotiate with the Commission until a resolution on the findings is reached.
- (III) The Commission shall review and formally adopt the final investigation report conducted by the RTA or any other entity that the Commission authorizes to conduct a safety event investigation.
- (IV) If the Commission does not concur with the findings of the RTA investigation report, the Commission shall either:
  - (A) conduct a Commission investigation according to rule 7349; or
  - (B) formally transmit to the RTA the Commission's disagreement with the findings of the RTA's investigation and discuss the Commission's areas of disagreement with the RTA until a resolution of the findings is reached.
- (V) The Commission shall formally adopt final investigation reports on a quarterly basis.
  - (A) The Commission shall review reports that document investigation activities and findings on a quarterly basis.
  - (B) The Commission shall participate in any investigation conducted or findings and recommendations made by the NTSB, FRA, or FTA.
    - (i) Pursuant to 49 C.F.R. Part 674.35(d), the FTA administrator may conduct an independent investigation of a safety event or review SSOA or RTA findings of causation of a safety event.

**7350. Investigations and Reporting Procedures for Hazards.**

- (a) Each RTA must investigate and report the following hazards to the Commission:
  - (I) activation failure, partial activation, or false activation of a highway-rail grade crossing warning system;
  - (II) any track condition that prevents train movement over a section of track as indicated by the RTA Track Standard manual, not including maintenance repair efforts;
  - (III) broken Messenger or Contact wire, or Overhead Contact System wire;
  - (IV) train separation (train uncoupling) in revenue service;
  - (V) incapacitated train operator in revenue service;
  - (VI) red signal violations;
  - (VII) vehicle door opening on wrong side, opening away from station platforms, or opening during train movement;
  - (VIII) a near-miss collision with transit workers or other individuals including trespassers on the rail right-of-way or the general public including motorized vehicles and non-motorized vehicles, and pedestrians; or
  - (IX) any other hazard that meets a high safety risk assessment code of 1A, 2A, 1B, or 2B, or a serious safety risk assessment code of 1C, 2C, 3A, or 3B.
- (b) All RTA transit workers and SSOA employees that conduct investigations of hazards must be trained to perform their functions in accordance with the PTSCTP.
- (c) Each RTA must notify SSOA staff of the hazards specified in paragraph 7350(a) by electronic mail as soon as practicable, but not later than 24 hours from the earlier of the time or discovery of the safety event or determination of safety risk assessment code, except that hazards specified in subparagraph 7350(a)(IX) must be reported within 24 hours of the determination of the safety risk assessment code.
- (d) Safety risk assessment code.

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- (I) Each hazard shall be assigned a safety risk assessment code. The safety risk assessment code shall consist of a severity category and a likelihood level. Descriptions of severity categories, likelihood levels, and the resulting safety risk assessment matrix are included in paragraph 7350(d).

- (A) Severity categories shall be identified as follows:

| <b>SEVERITY CATEGORIES</b> |                          |                                                                                                                                                                                                                                                                                            |
|----------------------------|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Description</b>         | <b>Severity Category</b> | <b>Mishap Result Criteria</b>                                                                                                                                                                                                                                                              |
| <b>Catastrophic</b>        | <b>1</b>                 | Could result in one or more of the following: death, permanent total disability, irreversible significant environmental impact, or monetary loss equal to or exceeding \$10M.                                                                                                              |
| <b>Severe</b>              | <b>2</b>                 | Could result in one or more of the following: permanent partial disability, injuries or occupational illness that may result in hospitalization of at least three personnel, reversible significant environmental impact, or monetary loss equal to or exceeding \$1M but less than \$10M. |
| <b>Serious</b>             | <b>3</b>                 | Could result in one or more of the following: injury or occupational illness resulting in one or more lost workday(s), reversible moderate environmental impact, or monetary loss equal to or exceeding \$100K but less than \$1M.                                                         |
| <b>Limited</b>             | <b>4</b>                 | Could result in one or more of the following: injury or occupational illness not resulting in a lost workday, minimal environmental impact, or monetary loss equal to or exceeding \$25K, but less than \$100K.                                                                            |
| <b>Negligible</b>          | <b>5</b>                 | Could result in one or more of the following: no injuries or occupational illness, no environmental impact, minor public inconvenience or nuisance, or monetary loss less than \$25K.                                                                                                      |

- (B) Likelihood levels shall be identified as follows:

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| LIKELIHOOD LEVELS |       |                                                                                          |                                                    |
|-------------------|-------|------------------------------------------------------------------------------------------|----------------------------------------------------|
| Description       | Level | Specific Individual Item                                                                 | Fleet or Inventory                                 |
| Frequent          | A     | Likely to occur often in the life of an item.                                            | Continuously experienced.                          |
| Probable          | B     | Will occur several times in the life of an item.                                         | Will occur frequently.                             |
| Remote            | C     | Likely to occur sometime in the life of an item.                                         | Will occur several times.                          |
| Improbable        | D     | Unlikely, but possible to occur in the life of an item.                                  | Unlikely, but can reasonably be expected to occur. |
| Highly Improbable | E     | So unlikely, it can be assumed occurrence may not be experienced in the life of an item. | Unlikely to occur, but possible.                   |

(C) Risk assessment categories shall be identified as in the following safety risk assessment matrix:

| SAFETY RISK ASSESSMENT MATRIX |                     |               |                |                |                   |
|-------------------------------|---------------------|---------------|----------------|----------------|-------------------|
| Severity<br>Likelihood        | Catastrophic<br>(1) | Severe<br>(2) | Serious<br>(3) | Limited<br>(4) | Negligible<br>(5) |
| Frequent<br>(A)               | High                | High          | Serious        | Medium         | Medium            |
| Probable<br>(B)               | High                | High          | Serious        | Medium         | Moderate          |
| Remote<br>(C)                 | Serious             | Serious       | Medium         | Moderate       | Low               |
| Improbable<br>(D)             | Medium              | Medium        | Moderate       | Low            | Low               |

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|                                      |               |                 |            |            |            |
|--------------------------------------|---------------|-----------------|------------|------------|------------|
| <b>Highly<br/>Improbable<br/>(E)</b> | <b>Medium</b> | <b>Moderate</b> | <b>Low</b> | <b>Low</b> | <b>Low</b> |
|--------------------------------------|---------------|-----------------|------------|------------|------------|

- (e) Each hazard investigation required by paragraph 7350(a) must be documented in a final report that includes: a description of investigation activities, identified causal and contributing factors, a CAP when required by paragraph 7347(a), or when the RTA determines a CAP is needed, a hazard analysis, and any evidence that exists in the form of magnetic media such as video, forward facing and operator facing in-cab camera footage, event data recorder information, and audio recordings. Other safety events investigated, by the RTA per their event reporting processes and procedures, shall be documented.

**7351. Safety Risk Based Inspection Program.**

- (a) The Commission shall develop a safety risk-based inspection program. The SSOA staff process and procedures manual must address:
- (I) scheduling inspections;
  - (II) inspection reports;
  - (III) safety event concerns;
  - (IV) inspections of equipment, infrastructure, and practices specific to each RFGPTS;
  - (V) safety event verification;
  - (VI) ongoing monitoring;
  - (VII) defects and corrective or remedial action; and
  - (VIII) CAP and safety risk mitigation verification.
- (b) Each RTA must provide the Commission with the data collected by the RTA when identifying hazards and assessing and mitigating safety risk. The SSOA staff process and procedures manual must define and identify:
- (I) safety data sets to be shared with the Commission;

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- (II) processes and procedures for sharing data with the Commission; and
  - (III) the frequency that the data will be shared with the Commission.
- (c) Safety program data that the Commission will collect includes:
  - (I) records of safety events including primary source information from each RTA investigation if the RTA completes investigations on behalf of the Commission;
  - (II) hazard records including hazard source, associated consequences, safety risk ratings, and the status of any mitigations;
  - (III) safety risk mitigation records including before and after safety risk ratings and how the RTA monitors the implementation and effectiveness of safety risk mitigations;
  - (IV) CAPs; and
  - (V) records of near misses.
- (d) Maintenance data that the Commission will collect includes:
  - (I) inspection and maintenance records and report forms;
  - (II) work orders;
  - (III) records of failures and defects;
  - (IV) records of revenue vehicles out of service, including causal information;
  - (V) major maintenance and vehicle testing activity schedule and progress; and
  - (VI) adherence to maintenance and vehicle testing schedules, including reports and documentation of deferred maintenance.
- (e) Inspection data that the Commission will collect includes:
  - (I) inspection records and report forms;
  - (II) records of failures and defects;
  - (III) records of speed restrictions;

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- (IV) safety event and safety risk mitigation verification;
  - (V) adherence to inspection schedules including reports and documentation of inspections not performed; and
  - (VI) capital project schedules and progress.
- (f) SSOA staff shall develop policies and procedures regarding how the data management system will;
  - (I) store and use data sets for analysis;
  - (II) where data sets will be stored;
  - (III) will organize the data;
  - (IV) document how long records must be kept;
  - (V) when and how records will be disposed;
  - (VI) ensure the system is maintained;
  - (VII) ensure the system accurately stores records; and
  - (VIII) Security Sensitive Information will be protected.
- (g) The Commission's data management system is required to have the capacity to store all data and records collected by the Commission and is required to accurately store data and records collected by the Commission.
- (h) The Commission shall specify and develop in the SSOA staff process and procedures manual a prioritization process for the safety risk-based inspection program.
- (i) The Commission shall require the SSOA staff process and procedures manual to outline data analysis procedures that will:
  - (I) specify the safety metrics used to prioritize inspections by evaluating relevant data; and
  - (II) include comprehensive data analysis of safety program metrics data, maintenance data, and inspection data types.



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- (j) The Commission shall require the SSOA staff process and procedures manual to outline safety risk prioritization ratings that will:
  - (I) explain how the data regarding safety risks will be analyzed and used to prioritize inspection activities; and
  - (II) determine how to scale the prioritization ratings.
- (k) The Commission shall require the SSOA staff process and procedures manual regarding inspection prioritization what will:
  - (I) identify and prioritize safety risks for each RTA; and
  - (II) describe how to prioritize inspections for each RTA.
- (l) The safety risk-based inspection and prioritization process shall be a continuous process for each RTA overseen by the Commission and the SSOA staff process and procedures manual will:
  - (I) specify the frequency of data analysis, safety risk prioritization, and inspection prioritization for each RTA;
  - (II) perform at least four onsite safety risk-based inspections per RTA per year; and
  - (III) analysis shall be performed at least once per year.
- (m) The Commission shall require the SSOA staff process and procedures manual will be written such that safety risk-based inspections can be performed commensurately with the complexity of each RTA the Commission oversees.

**7352. RTA Internal Safety Reviews.**

- (a) The RTA is required to develop and document in its PTASP the process for the performance of on-going internal safety reviews.
- (b) The internal safety review process must:
  - (I) describe the process used by the RTA to determine if all identified elements of its PTSAP are performing as intended;

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- (II) ensure that all elements of the PTSAP are reviewed in an on-going manner and completed over a three-year cycle; and
  - (III) provide the internal review schedule for the three-year internal safety review cycle.
- (c) The RTA must notify the Commission at least 30 days before the conduct of scheduled internal safety review to allow SSOA staff to observe the internal review.
- (d) The RTA shall submit to the Commission any checklists or procedures it will use during the internal safety review prior to conducting such review.
- (e) The RTA must annually submit to the Commission a report documenting internal safety review activities and the status of subsequent findings and corrective actions.
- (f) The annual report must be accompanied by a formal letter of certification signed by the RTA's accountable executive, indicating that the RTA is in compliance with its PTASP.
- (g) If the RTA determines that findings from its internal safety review indicate that the RTA is not in compliance with its PTASP, the accountable executive must identify the activities the RTA will take to achieve compliance.
- (h) The Commission must formally review and approve the annual report.
  - (I) The RTA shall file its annual report on or before February 15th of the first year of operation for new systems, and each February 15th thereafter as an application for Commission approval. The Commission shall give ten days' notice of the filing of the application.
  - (II) On or before April 5th of the year in which the application for approval of the annual report is filed, the Commission shall review the annual report and shall approve those annual reports that conform to this rule.
  - (III) In the event the Commission finds that the annual report does not comply with this rule, the Commission shall specify the sections not in compliance,

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recommend appropriate modifications and/or additions necessary to bring the annual report into compliance, and set a time frame for bringing the annual report into compliance.

**Rail Transit Roadway Worker Protection.****7353. Applicability.**

Rules 7353 through 7359 apply to the rail transit roadway worker protection rules.

**7354. Definitions.**

The following definitions apply only in the context of rules 7353 through 7359.

- (a) “Ample time” means the time necessary for a roadway worker to be clear of the track zone or in a place of safety 15 seconds before a rail transit vehicle moving at the maximum authorized speed on that track could arrive at the location of the roadway worker.
- (b) “Equivalent entity” means an entity that carries out duties similar to that of a board of directors, for a recipient or sub-recipient of FTA funds under 49 U.S.C. Chapter 53, including sufficient authority to review and approve a recipient or sub-recipient’s PTASP.
- (c) “Equivalent protection” means alternative designs, materials, or methods that the RTA can demonstrate to the SSOA will provide equal or greater safety for roadway workers than the means specified in rule subparagraph 7357(e)(IV)(C).
- (d) “Flag person” means a roadway worker designated to direct or restrict the movement of rail transit vehicles or equipment past a point on a track to provide on-track safety for roadway workers, while engaged solely in performing that function.
- (e) “Foul time protection” is a method of establishing working limits in which a roadway worker is notified by the control center that no rail transit vehicles will be authorized to operate within a specific segment of track until the roadway worker reports clear of the track.

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- (f) “Fouling a track” means the placement of an individual or an item of equipment in such proximity to a track that the individual or equipment could be struck by a moving rail transit vehicle or on-track equipment, typically within four feet of the outside rail on both sides of any track.
- (g) “Individual rail transit vehicle detection” means a process by which a lone worker acquires on-track safety by visually detecting approaching rail transit vehicle or equipment and leaving the track in ample time.
- (h) “Job safety briefing” means a meeting addressing the requirements of paragraph 7357(b) that is conducted prior to commencing work by the Roadway Worker in Charge, typically at the job site, to notify roadway workers or other transit workers about the hazards related to the work to be performed and the protections to eliminate or protect against those hazards. Alternatively, briefings can be conducted virtually for those individuals who are working remotely on the job site.
- (i) “Lone worker” means an individual roadway worker who is not afforded on-track safety by another roadway worker, who is not a member of a roadway work group, and who is not engaged in a common task with another roadway worker.
- (j) “Maximum authorized speed” means the highest speed permitted for the movement of rail transit vehicles established by the rail transit vehicle control system, service schedule, and operating rules. This speed is used when calculating ample time.
- (k) “Minor tasks” mean those tasks performed without the use of tools during the execution of which a roadway worker or other transit worker can hear and visually assess their surroundings at least every five seconds for approaching rail transit vehicles and that can be performed without violating ample time.
- (l) “On-track safety” means a state of freedom from the danger of being struck by a moving rail transit vehicle or other equipment, and other on-track hazards as provided by operating and safety rules that govern track occupancy by roadway workers, other transit workers, rail transit vehicles, and on-track equipment.

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- (m) “Place of safety” means a space an individual or individuals can safely occupy outside the track zone, sufficiently clear of any rail transit vehicle, including any on-track equipment, moving on any track.
- (n) “Qualified” means a status attained by a roadway worker or other transit worker who has successfully completed required training (including refresher training) for, has demonstrated proficiency in, and is authorized by the RTA to perform, the duties of a particular position or function.
- (o) “Rail transit vehicle approach warning” means a method of establishing on-track safety by warning roadway workers of the approach of rail transit vehicles in ample time for them to move to or remain in a place of safety.
- (p) “Redundant protection” means at least one additional protection beyond individual rail transit vehicle detection to ensure on-track safety for roadway worker. Redundant protections may be procedural, physical, or both.
- (q) “Roadway maintenance machine” means a device which is used on or near rail transit track for maintenance, repair, construction or inspection of track, bridges, roadway, signal, communications, or electric traction system. Roadway maintenance machines may have road or rail wheels or may be stationary.
- (r) “Roadway worker” means a transit worker whose duties involve inspection, construction, maintenance, repairs, or providing on-track safety such as flag persons and watchpersons on or near the roadway or right-of-way or with the potential of fouling track.
- (s) “Roadway work group” means two or more roadway workers organized to work together on a common task.
- (t) “Roadway worker in charge” means a roadway worker who is qualified under this part to establish on-track safety.
- (u) “Roadway Worker Protection” (RWP) means the policies, processes, and procedures implemented by an RTA to prevent safety events for transit workers who must access the roadway in the performance of their work.

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- (v) “RWP manual” means the entire set of the RTA’s on-track safety rules and instructions maintained together including operating rules and other procedures concerning on-track safety protection and on-track safety measures, designed to prevent roadway workers from being struck by rail transit vehicles or other on-track equipment.
- (w) “Sight distance” means the length of roadway visible ahead for a roadway worker.
- (x) “Track access guide” means a document that describes the physical characteristics of the RTA’s track system, including track areas with close or no clearance, curves with blind spots or restricted sight lines, areas with loud noise, and potential environmental conditions that require additional consideration in establishing on-track safety.
- (y) “Track zone” means an area identified by the RTA where a person or equipment could be struck by the widest equipment that could occupy the track.
- (z) “Transit worker safety reporting program” (TWSRP) means the process required under paragraph 7345(a) that allows transit workers to report safety concerns including transit worker assaults, near-misses, and unsafe acts and conditions to senior management, provides protections for transit workers who report safety conditions to senior management, and describes transit worker behaviors that may result in disciplinary action.
- (aa) “Watchperson” means a roadway worker qualified to provide warning to roadway workers of approaching rail transit vehicles or track equipment whose sole duty is to look out for approaching rail transit vehicles and track equipment and provide at least 15 seconds advanced warning plus time to clear based on the maximum authorized track speed for the work location to transit workers before the arrival of rail transit vehicles.
- (bb) “Working limits” means a segment of track with explicit boundaries upon which rail transit vehicles and on-track equipment may move only as authorized by the roadway worker having control over that defined segment of track.

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- (cc) “Work zone” means the immediate area where work is being performed within the track zone.

**7355. RWP Program and RWP Program Manual.**

- (a) RWP program.
- (I) Each RTA must adopt and implement an approved RWP program to improve transit worker safety that is consistent with Federal and State safety requirements and meets the minimum requirements of rules 7353 through 7359.
  - (II) The RWP program must include:
    - (A) an RWP manual as described in paragraph 7355(b); and
    - (B) all of the RWP program elements described in rule 7357.
  - (III) Each RTA must submit its RWP manual and subsequent updates to the Commission for review and approval as described in paragraph 7357(a).
- (b) RWP manual
- (I) Each RTA must establish and maintain a separate, dedicated manual documenting its RWP program.
  - (II) The RWP manual must include the terminology, abbreviations, and acronyms used to describe the RWP program activities and requirements.
  - (III) The RWP manual must document:
    - (A) all elements of the RWP program in paragraphs 7357(a) through (h);
    - (B) a definition of RTA and transit worker responsibilities as described in paragraph 7356(b);
    - (C) training, qualification, and supervision required for transit workers to access the track zone, by labor category or type of work performed;

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- (D) processes and procedures, including any use of roadway workers to provide adequate on-track safety, for all transit workers who may access the track zone in the performance of their work, including safety and oversight personnel. Procedures for SSOA personnel to access the roadway must conform with the SSOA's safety risk-based inspection program.
- (IV) The RWP manual must include or incorporate by reference a track access guide to support on-track safety. The track access guide must be based on a physical survey of the track geometry and conditions of the transit system and include, at a minimum:
  - (A) locations with limited, close, or no clearance, including locations (such as alcoves, recessed spaces, or other designated places or areas of refuge or safety) with size or access limitations;
  - (B) locations subject to increased rail vehicle or on-track equipment braking requirements or reduced rail transit vehicle operator visibility due to precipitation or other weather conditions;
  - (C) curves with no or limited visibility;
  - (D) locations with limited or no visibility due to obstructions or topography;
  - (E) all portals with restricted views;
  - (F) locations with heavy outside noise or other environmental conditions that impact on-track safety; and
  - (G) any other locations with access considerations.
- (V) Following initial approval of the RWP manual by the Commission, not less than every two years, the RTA must review and update its RWP manual to reflect current conditions and lessons learned in implementing the RWP program and information provided by the Commission and FTA Manual.



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- (VI) The RTA must update its RWP manual and track access guide as necessary and as soon as practicable upon any change to the system that conflicts with any element of either document.
- (VII) The RWP manual must be distributed to all transit workers who access the roadway and redistributed after each revision.

**7356 RTA and Transit Worker Responsibilities.**

- (a) RTA responsibilities.
  - (I) In general, each RTA must establish procedures to:
    - (A) provide ample time and determine the appropriate sight distance based on maximum authorized track speeds;
    - (B) ensure that individual rail transit vehicle detection is never used as the only form of protection in the track zone;
    - (C) provide job safety briefings to all transit workers who must enter a track zone to perform work;
    - (D) provide job safety briefings to all transit workers whenever a rule violation is observed;
    - (E) provide transit workers with the right to challenge and refuse in good faith any assignment based on on-track safety concerns and resolve such challenges and refusals promptly and equitably;
    - (F) require the reporting of unsafe acts, unsafe conditions, and near-misses on the roadway as part of the TWSRP and as described in subparagraph 7345(a)(I)(A)(ii);
    - (G) ensure all transit workers who must enter a track zone to perform work understand, are qualified in, and comply with the RWP program; and
    - (H) provide an escort, as needed, to support individuals that are not RWP certified and do not fall into the categories of roadway

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- worker, transit worker, or emergency personnel if they must enter a track zone.
- (II) Each RTA must establish the equipment and protection requirements for on-track safety, including:
    - (A) equipment that transit workers must have to access the roadway or a track zone by labor category, including personal protective equipment such as high-reflection vests, safety shoes, and hard hats;
    - (B) credentials (e.g., badge, wristband, RWP card) for transit workers to enter the roadway or track zone by labor category and how to display them so they are visible;
    - (C) protections for emergency response personnel who must access the roadway or the track zone; and
    - (D) protections for multiple roadway work groups within a common work area in a track zone.
  - (b) Transit worker responsibilities.
    - (I) RWP program. Each transit worker must follow the requirements of the RTA's RWP program by position and labor category.
    - (II) Fouling the track. A transit worker may only foul the track once they have received appropriate permissions and redundant protections have been established as specified in the RWP manual.
    - (III) Acknowledgement of protections providing on-track safety. A transit worker must understand and acknowledge in writing the protections providing on-track safety measures for their specific task before accessing the roadway or track zone.
    - (IV) Refusal to foul the track. A transit worker may refuse to foul the track if the transit worker makes a good faith determination that they believe any assignment is unsafe or would violate the RTA's RWP program.

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- (V) Reporting. A transit worker must report unsafe acts and conditions, and near-misses related to the RWP program as part of the RTA's TWSRP.

**7357. Commission and SSOA Staff Responsibilities.**

- (a) Review and approve RWP program elements. The Commission must coordinate with the RTA on the initial review and approval of the RWP manual and any subsequent updates for each RTA.
  - (I) The Commission must coordinate with the RTA on the initial review and approval of the RWP program elements so that the RWP program is established and approved on or before December 2, 2025; and
  - (II) The Commission also must submit all approved RWP program elements for each RTA in its jurisdiction, and any subsequent updates, to FTA within 30 calendars days of approving them.
  - (III) After the initial review and approval of the RWP manual, the RTA is required to annually submit the RWP manual for review and approval on or before November 1st of each year as part of the submittal and review of the PTASP.
- (b) RWP program oversight. The Commission must update its program standard to explain the role of the Commission in overseeing a RTAs execution of its RWP program.
- (c) Annual RWP program audit.
  - (I) SSOA staff must conduct an annual audit of the RTA's compliance with its RWP program, including all required RWP program elements, for each RTA overseen.
  - (II) The Commission must issue a report with any findings and recommendations arising from the audit, which must include, at a minimum:
    - (A) an analysis of the effectiveness of the RWP program, including, at a minimum, a review of:

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- (i) all RWP-related events over the period covered by the audit;
    - (ii) all RWP-related reports made to the TWSRP over the period covered by the audit;
    - (iii) all documentation of instances where a transit worker(s) challenged and refused in good faith any assignment based on on-track safety concerns and documentation of the resolution for any such instance during the period covered by the audit;
    - (iv) an assessment of the adequacy of the track access guide, including whether the guide reflects current track geometry and conditions;
    - (v) a review of training and qualification records for transit workers who must enter a track zone to perform work;
    - (vi) a representative sample of written job safety briefing confirmations as described in paragraph 7357(b); and
    - (vii) the compliance monitoring program described in paragraph 7357(g);
  - (B) recommendations for improvements, if necessary, or appropriate; and
  - (C) corrective action plan(s), if necessary or appropriate, must be developed and executed consistent with requirements established in rule 7347.
- (d) The RTA must be given an opportunity to comment on any findings and recommendations.

**7358. Required RWP Program Elements.**

- (a) Roadway worker in charge requirements.

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- (I) On-track safety and supervision. The RTA must designate one roadway worker in charge for each roadway work group whose duties require fouling a track.
  - (A) The roadway worker in charge must be qualified under the RTA's training and qualification program as specified in paragraph 7357(f).
  - (B) The roadway worker in charge may be the designated personnel generally or may be designated specifically for a particular work situation.
  - (C) The roadway worker in charge is responsible for the on-track safety for all members of the roadway work group.
  - (D) The roadway worker in charge must serve only the function of maintaining on-track safety for all members of the roadway work group and perform no other unrelated job function while designated for duty.
  - (E) For multiple roadway work groups within common working limits, the RTA may designate a single roadway worker in charge for the entire working limit. If a single roadway worker in charge is designated over multiple roadway work groups within a working limit, each work group must be accompanied by an employee qualified to the level of a roadway worker in charge, as specified in paragraph 7357(a), who shall be responsible for direct communication with the roadway worker in charge.
- (II) Communication. The RTA must ensure that the roadway worker in charge provides a job safety briefing to all roadway workers before any member of a roadway work group fouls a track, following the requirements specified in paragraph 7357(b).
  - (A) The roadway worker in charge must provide a job safety briefing to all members of the roadway work group before any on-track safety

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procedures change during the work period, whenever on-track safety conditions change, or immediately following an observed violation of on-track safety procedures, before work in the track zone may continue.

- (B) In the event of an emergency, the roadway worker in charge must warn each roadway worker to immediately leave the roadway and not return until on-track safety is re-established, and a job safety briefing is completed.

(b) Job safety briefing policies.

- (I) The RTA must ensure the roadway worker in charge provides any roadway worker who must foul a track with a job safety briefing prior to fouling the track, every time the roadway worker fouls the track.
- (II) The job safety briefing must include, at a minimum, the following elements, as appropriate:
  - (A) a discussion of the nature of the work to be performed and the characteristic of the work, including work plans for multiple roadway worker groups within a single work area;
  - (B) working limits;
  - (C) the hazards involved in performing the work. For RTAs with an electrified system, this discussion must include the status of power and hazards explicitly related to the electrified system;
  - (D) information on how on-track safety is to be provided for each track identified to be fouled; identification and location of key personnel, such as a watchperson and the roadway worker in charge; and information on what should be done in the event of an emergency;
  - (E) instructions for each on-track safety procedure to be followed, including appropriate flags and proper flag placement;

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- (F) communication roles and responsibilities for all transit workers involved in the work;
  - (G) safety information about any adjacent track, defined as track next to or adjoining the track zone where on-track safety has been established, and identification of roadway maintenance machines or on-track equipment that will foul such tracks;
  - (H) information on the accessibility of the roadway worker in charge, including emergency contact information, and alternative procedures in the event the roadway worker in charge is no longer accessible to members of the roadway work group;
  - (I) required personal protective equipment;
  - (J) designated place(s) of safety of all sufficient size to accommodate all roadway workers within the work area; and
  - (K) the means for determining ample time.
- (III) Confirmation and written acknowledgement. A job safety briefing is complete only after:
- (A) the roadway worker in charge confirms that each roadway worker understands the on-track safety procedures and instructions;
  - (B) each roadway worker acknowledges in writing that they have received the briefing and the requirement to use the required personal protective equipment; and
  - (C) the roadway worker in charge confirms in writing that they have received written acknowledgement of the briefing from each worker.
- (IV) Follow-up briefings. If after the initial job safety briefing there is any change in the scope of work or roadway work group, or on-track safety conditions change, or a violation of on-track safety is observed, a follow-up job safety briefing must be conducted.

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- (c) Lone worker.
  - (I) On-track safety and supervision. The RTA may authorize lone workers to perform limited duties that require fouling a track.
    - (A) The lone worker must be qualified as a roadway worker in charge and lone worker under the RTA's training and qualification program as specified in paragraph 7357(f).
    - (B) The lone worker may perform routine inspection or minor tasks and move from one location to another. The lone worker may not use power tools and may only access locations that have been defined in the track access guide as appropriate for lone workers, i.e., no loud noises, no restricted clearances.
    - (C) The lone worker may not use individual rail transit vehicle detection, where the lone worker is solely responsible for seeing approaching trains and clearing the track before the trains arrive, as the only form of on-track safety.
  - (II) Communication. Each lone worker must communicate prior to fouling the track with a supervisor or another designated employee to receive an on-track safety job briefing consisting of the elements in paragraph 7357(b), including a discussion of their planned work activities and the procedures that they intend to use to establish on-track safety. The lone worker must acknowledge and document the job safety briefing in working, consistent with paragraph 7357(c).
- (d) Good faith safety challenge
  - (I) Written procedure. Each RTA must document its procedures that provide, to every roadway worker, the right to challenge and refuse in good faith any assignment they believe is unsafe or would violate the RTA's RWP program.



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- (II) Prompt and equitable resolution. The written procedure must include methods or processes to achieve prompt and equitable resolution of any challengers and refusals made.
  - (III) Requirements. The written procedure must include a requirement that the roadway worker provide a description of the safety concern regarding on-track safety and that the roadway work group must remain clear of the roadway or track zone until the challenge and refusal is resolved.
- (e) Risk-based redundant protections.
- (I) General requirements.
    - (A) Each RTA must identify and provide redundant protections for each category of work roadway workers perform on the roadway or track.
    - (B) Each RTA must establish redundant protections to ensure on-track safety for multiple roadway work groups within a common work area.
  - (II) Safety risk assessment to determine redundant protections. Each RTA must assess the risk associated with transit workers accessing the roadway using the methods and processes established under subparagraph 7345(b)(II). The RTA must use the methods and processes established under subparagraph 7345(b)(III) to establish redundant protections for each category of work performed by roadway workers on the rail transit system and must include lone workers.
    - (A) The safety risk assessment must be consistent with the RTA's PTASP and the SSOA Program Standard.
    - (B) The safety risk assessment may be supplemented by engineering assessments, inputs from the safety assurance process established under paragraph 7345(c), the results of safety event investigations, and other safety risk management strategies or approaches.

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- (C) The RTA must review and update the safety risk assessment at least every two years to include current conditions and lessons learned from safety events, actions taken to address reports of unsafe acts and conditions, and near-misses, and results from compliance monitoring regarding the effectiveness of the redundant protections.
  - (D) The SSOA may also identify and require the RTA to implement alternate redundant protections based on the RTA's unique operating characteristics and capabilities.
- (III) Categories of work requiring redundant protections. Redundant protections must be identified for roadway workers performing different categories of work on the roadway and within track zones, which may include but are not limited to categories such as:
  - (A) roadway workers moving from one track zone location to another;
  - (B) roadway workers performing minor tasks;
  - (C) roadway workers conducting visual inspections;
  - (D) roadway workers using hand tools, machines, or equipment in conducting testing of track system components or non-visual inspections;
  - (E) roadway workers using hand tools, machines, or equipment in performing maintenance, construction or repairs; and/or
  - (F) lone workers accessing the roadway or track zone or performing visual inspections or minor tasks.
- (IV) Types of redundant protections.
  - (A) Redundant protections may be procedural or physical.
    - (i) Procedural protections alert rail transit vehicles operators to the presence of roadway workers and use radio

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communications, personnel, signage, or other means to direct rail transit vehicle movement.

- (ii) Physical protections physically control the movement of rail transit vehicles into or through a work zone.

(B) Redundant protections may include but are not limited to:

- (i) approaches consistent with the FRA rules covering redundant protections;
- (ii) rail transit vehicle approach warning;
- (iii) foul time;
- (iv) exclusive track occupancy, defined as a method of establishing working limits, as part of on-track safety, in which movement authority of rail transit vehicles and other equipment is withheld by the control center or restricted by flag persons and provided by a roadway worker in charge;
- (v) warning signs, flags, or lights;
- (vi) flag persons;
- (vii) lock outs from the rail transit vehicle control systems or lining and locking track switches or otherwise physically preventing entry and movement of rail transit vehicles;
- (viii) secondary warning devices and alter systems;
- (ix) shunt devices and portable trip stops to reduce the likelihood of rail transit vehicles entering work zone with workers;
- (x) restricting work to times when propulsion power is down with verification that track is out of service, and when barriers are placed that physically prevent rail transit vehicles, including on-track equipment, from entering the work zone;

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- (xi) use of walkways in tunnels and on elevated structures to reduce roadway worker time in the track zone; and
    - (xii) speed restrictions.
  - (C) Redundant protections for lone workers must include, at a minimum, foul time or an equivalent protection approved by the Commission
- (f) RWP training and qualification program.
  - (I) Each RTA must adopt an RWP training program.
    - (A) The RWP training program must address all transit workers responsible for on-track safety, by position, including roadway workers, operations control center personnel, rail transit vehicle operators, operators of on-track equipment and roadway maintenance machines, and any other worker with a role in providing on-track safety or fouling a track for the performance of work.
    - (B) The RWP training program must be completed for the relevant position before an RTA may assign a transit worker to perform the duties of a roadway worker, to oversee or supervise access to the track zone from the operations control center, or to operate vehicles, on-track equipment, and roadway maintenance machines on the rail transit system.
    - (C) The RWP training program must address RWP hazard recognition and mitigation, and lessons learned through the results of compliance testing, near-miss reports, reports of unsafe acts or conditions, and feedback received on the training program.
    - (D) The RWP training program must include initial and refresher training, by position. Refresher training must occur every two years at a minimum.

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- (E) The RTA must review and update its RWP training program not less than every two years, to reflect lessons learned in implementing the RWP program and information provided by the SSOA and FTA. The RTA must provide an opportunity for roadway worker involvement in the RWP training program review and update process.
- (II) Required elements. The RWP training program must include interactive training with the opportunity to ask the RWP trainer questions and raise and discuss RWP issues.
  - (A) Initial training must include experience in a representative field setting.
  - (B) Initial and refreshed training must include demonstrations and assessments to ensure the ability to comply with RWP instructions given by transit workers performing, or responsible for, on-track safety and RWP functions.
- (III) Minimum contents for RWP training. The RWP training program must address, as applicable, the following minimum contents:
  - (A) how to interpret and use the RTA's RWP manual;
  - (B) how to challenge and refuse assignments in good faith;
  - (C) how to report unsafe acts, unsafe conditions, and near-misses after they occur, and the mandatory duty to make such reports;
  - (D) recognition of the track zone and understanding of the space around tracks within which on-track safety is required, including use of the track access guide;
  - (E) the functions and responsibilities of all transit workers involved in on-track safety, by position;
  - (F) proper compliance with on-track safety instructions given by transit workers performing or responsible for on-track safety functions;

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- (G) signals and directions given by watchpersons, and the proper procedures upon receiving a rail transit vehicle approach warning from a watchperson;
  - (H) the hazards associated with working on or near rail transit tracks to include traction power, if applicable;
  - (I) rules and procedures for redundant protections identified under paragraph 7357(d) and how they are applied to RWP; and
  - (J) requirements for safely crossing rail transit tracks in yards and on the mainline.
- (IV) Specialized training and qualification for transit workers with additional responsibilities for on-track safety. The RWP training program must include additional training for watchpersons, flag persons, lone workers, roadway workers in charge, and other transit workers with responsibilities for establishing, supervising, and monitoring on-track safety.
  - (A) This training must cover the content and application of the additional RWP program requirements carried out by these positions and must address the relevant physical characteristics of the RTA's system where on-track safety may be established.
  - (B) This training must include demonstrations and assessments to confirm the transit worker's ability to perform these additional responsibilities.
  - (C) Refresher training on additional responsibilities for on-track safety, by position, must occur every two years, at a minimum.
- (V) Competency and qualification of training personnel. Each RTA must ensure that transit workers providing RWP training are qualified and have active RWP certification at the RTA to provide effective RWP training, and at a minimum must consider the following when selecting training personnel:

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- (A) a trainer's experience and knowledge of effective training techniques in the chosen learning environment;
  - (B) a trainer's experience with the RTA RWP program;
  - (C) a trainer's knowledge of the RTA RWP rules, operations, and operating environment, including applicable operating rules; and
  - (D) a trainer's knowledge of the training requirements specified in this paragraph 7357(f).
- (g) RWP compliance monitoring program.
  - (I) Each RTA must adopt a program for monitoring its compliance with the requirements specified in its RWP program.
  - (II) Required elements. The RWP compliance monitoring program must include inspections, observations, and audits, consistent with safety performance monitoring and measurement requirements in the RTA's PTASP described in subparagraph 7345(c)(I) and the SSOA's program standard.
    - (A) The RTA must provide quarterly reports to the SSOA documenting the RTA's compliance with and sufficiency of the RWP program.
    - (B) The RTA must provide an annual briefing to the accountable executive and the board of directors, or equivalent entity, regarding the performance of the RWP program and any identified deficiencies requiring corrective action.

**7359. RWP Program Recordkeeping**

- (a) Each RTA must maintain the documents that set forth its RWP program; documents related to the implementation of the RWP program, and results from the procedures, processes, assignments, training and activities specified in this part for the RWP program.

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- (b) Each RTA must maintain records of its compliance with this requirement including records of transit worker RWP training and refresher training, for a minimum of three years after they are created.
- (c) These documents must be made available upon request, as required by the FTA or other Federal entity, or the SSOA having jurisdiction.

**7360. Commission Safety Audits.**

At least once every three years, beginning with the initiation of RTA passenger operations, the Commission shall conduct a complete on-site safety audit of each RTA's implementation of its PTASP in an on-going manner. Audits may include record examinations, inspections, observations, field checks, interviews, and testing. At the conclusion of the three-year review cycle during which all parts of the PTASP have been audited, the Commission shall prepare and issue a report containing findings resulting from the audits, which at a minimum must include an analysis of the effectiveness of the PTASP, and a determination of whether the PTASP should be updated.

- (a) The Commission shall conduct six semi-annual safety audits during the three-year review process. Semi-annual audits shall be conducted during the spring and fall of a calendar year. SSOA staff shall notify the RTA at least 30 days prior to the start of the semi-annual safety audit which checklists will be reviewed and to determine the appropriate RTA transit worker to include for each checklist. The first five semi-annual audits shall involve a review of approximately five to ten areas of interest such that the entire PTASP is fully examined during the first five semi-annual audits. The sixth semi-annual audit shall be comprised of a review of the auditing process and procedures used during the previous five semi-annual audits, and preparation of the checklists to be used for the next three-year review process.
- (b) For each semi-annual audit during the three-year review process, SSOA staff shall prepare audit checklists that identify the safety areas of interest and the compliance criteria to be used for the audit during the specific semi-annual audit.



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- (c) For each semi-annual audit during the three-year review process, SSOA staff shall prepare a draft report for the semi-annual audit with completed audit checklists, and audit findings. This draft report will be provided to the RTA for a 30-day review and comment by the RTA. The RTA shall provide written responses to all audit report findings, any written comments, and proposed CAP's and implementation schedules within 30 days of receipt of the Commission's audit report. The RTA shall also be allowed to make corrections to any findings outlined in the draft report within the 30-day review period. The Commission shall incorporate comments, CAPs and implementation schedules in a final audit report for the semi-annual audit. The Commission shall approve the final audit report for each semi-annual audit.
- (d) At the conclusion of the three-year review cycle, the Commission shall prepare and issue a report summarizing the audits conducted during the three-year cycle, including the six semi-annual audit reports, and shall file this report with the FTA.

**7361. Safety Oversight of Rail Fixed Guideway System Design, Construction, Pre-Operational Testing and Operation Start-Up.**

The Commission shall provide safety oversight and review of rail fixed guideway system design, construction, pre-operational testing and operation start-up.

**7362. Inspection of Records.**

All RTA records required by these rules and necessary for the Commission to perform its State Safety Oversight functions shall be made available upon request to authorized personnel of the Commission.

**7363. Variances.**

A RTA may request a variance from these rules. A RTA seeking such a variance shall comply with the variance request procedures contained in Commission's Rules Regulating Practice and Procedure.

**7364. – 7399. [Reserved].**

**MISCELLANEOUS**

**Employment of Class I Railroad Peace Officers**

**7400. Applicability.**

- (a) Rules 7401 through 7404 are applicable to all Class I railroads operating in the State of Colorado that employ railroad peace officers.
- (b) Rules 7401 through 7404 are in addition to the Class I railroad's standard employment rules and regulations.
- (c) Rules 7401 through 7404 apply to railroad peace officers employed on or after January 30, 1988.

**7401. Definitions.**

The following definitions apply only in the context of rules 7401 through 7404:

- (a) "Railroad peace officer" means any person employed by a Class I railroad corporation operating within the State of Colorado to protect and investigate offenses against the railroad corporation.
- (b) "CLETA" means the Colorado Law Enforcement Training Academy.
- (c) "POST Board" means the Peace Officer Standards and Training Board.

**7402. Minimum Requirements.**

A Class I railroad shall not employ an individual as a railroad peace officer unless such individual meets all of the following requirements:

- (a) Meets any of the following criteria:
  - (I) has a minimum of four years education at an accredited college or university,
  - (II) has a minimum of two years experience in public law enforcement or as a railroad peace officer,
  - (III) has any combination of education at an accredited college or university and law enforcement experience totaling four years,

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- (IV) has completed a basic training course at a training academy approved by CLETA, or
  - (V) has been certified by the POST Board, or holds a current equivalent certification from another state.
- (b) Has been fingerprinted by the railroad.
- (c) Has been investigated by the railroad, in local, state, and national files, to disclose any criminal record. (Pursuant to § 24-5-101, C.R.S., prior conviction of a felony or other offense involving moral turpitude shall not, in and of itself, preclude employment).

**7403. Transfer to Colorado.**

A railroad peace officer transferring into Colorado from another state shall meet the requirements of rule 7402 at the time of transfer.

**7404. Variance.**

A Class I railroad may request a variance from rules 7402 and/or 7403. A railroad making such a request shall comply with the variance provisions of the Commission's Rules Regulating Practice and Procedure. In addition to the standards set forth in the Commission's Rules Regulating Practice and Procedure, the Commission shall consider whether granting the variance will endanger the public peace, health, or safety.

**7405. - 7999. [Reserved].**

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**Editor's Notes****History**

Rules 7000-7339 eff. 08/01/2007.

Rules SB&P, 7002, 7201, 7203, 7204, 7301, 7342 eff. 12/30/2008.

Rules 7203.(f), 7204.(d), 7208.(d), 7213 emer. rules eff. 09/07/2016; expired 04/05/2017.

Rules 7000-7006, 7008, 7101-7103, 7200-7208, 7210-7213, 7301, 7327 eff. 08/14/2017.

Rules 7340-7355 emer. rules eff. 02/15/2018.

Rules 7340-7355 eff. 08/14/2018.

Rules 7008.(c), 7342 eff. 04/30/2019.

Rules 7340-7342, 7345-7352 eff. 06/30/2022.

Rules SB&P, 7001, 7002(a), 7009-7011, 7200, 7201, 7204(a)(X)(C)-(D), 7208(e), 7211(k)-(n), 7212, 7213(a), 7214 eff. 04/30/2024.

Rules SB&P, 7000.(b)(V), 7340, 7341, 7341.(dd), 7343(a), 7344, 7345.(c)(III)(A)(i), 7346.(a),(b), 7351, renumbered 7352-7347 emer. rules eff. 05/31/2024.

Rules SB&P, 7000.(b)(V), 7340, 7341, 7341.(dd), 7343(a), 7344, 7345.(c)(III)(A)(i), 7346.(a),(b), 7351, renumbered 7352-7347 eff. 10/30/2024.

Rules SB&P, 7330-7332 emer. rules eff. 11/27/2024.

Rules SB&P, 7330-7332 emer. rules eff. 12/23/2024; expired 07/21/2025.

Rules SB&P, 7330-7331, 7334-7335 emer. rules eff. 04/04/2025.

Rules SB&P, 7330-7331, 7334-7335 emer. rules eff. 04/30/2025.

Rules SB&P, 7000.(b)(V), 7002.(a)(VI), 7340-7364 emer. rules eff. 05/29/2025.

Rule 7349 (d)(IV) emer. rule eff. 08/06/2025.

Rules 7201, 7211 emer. rules eff. 08/27/2025.

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Rules SB&P, 7010(a), 7010(b)(I), 7010(b)(II)(G)-(I), 7010(c), 7010(d), 7011(a), 7011(b) eff. 11/30/2025.

Rule 7332 emer. rule eff. 12/03/2025.

Rule 7349(d)(IV) eff. 01/14/2026.

Rules 7330, 7331, 7334, 7335 eff. 02/14/2026.

Rules 7000(b)(V), 7002(a)(VI), 7340–7364 eff. 03/02/2026.

Rules 7201(x)-(tt), 7211(j)-(o) eff. 04/30/2026.

Rules 7331, 7332 eff. 08/30/2026.